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Loudoun County Board of Supervisors, Public Hearing, Wednesday, April 15, 2026

Date Wednesday, April 15, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 5h 57m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8158>
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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:10:43] should we we here are we good okay well good evening supervisors good evening staff and good

[00:11:31] evening loud and i'd like to call the april 15th text day 2026 loud and kind of board supervisors public hearing to order this room has a hearing loop if you need hearing assistance please switch your hearing aid to the telecom mode if you need a headset we have those available as well Please see the clerk to request one. Would everyone please join me in the Pledge of Allegiance?

[00:11:55] Pledge of Allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all. Okay, colleagues, before I read all the stuff I read every time, let me just go over some stuff.

[00:12:19] If one of my colleagues asks me to take something off of the consolidated agenda, I will. I will just out of respect to my colleagues. I will say, though, if you could do that faster, that would be much better in the future because right now what we have are two items or at least I know one item that will come off consolidated, but because we didn't get it off in time, the applicant can't be here, which is a problem.

[00:12:48] So just to know that this is what I'm going to do tonight when we get to item number four. take it off consolidated, we'll have staff give their information, we'll ask questions to staff, we'll ask anyone in the public who would like to speak. But because the applicant isn't here, the motion is to send it to the meeting on May 19th. When we send it to the meeting on May 19th, I'm going to do something that I don't normally do. I'm going to let the applicant come to the table on May 19th and speak because they're not here tonight.

[00:13:19] And they're not here tonight because this was asked to be taken off consolidated a couple of hours ago, literally. And so if we are going to a public hearing, the applicants are always given a chance to speak. So if they're not given that chance tonight, no matter how we end up voting eventually, they still have to have the opportunity to speak.

[00:13:41] So that's what's going to happen today with that, with number four. Madam Chair, point of inquiry on number four. would it yes I'm the one that for full disclosure I asked for it to be taken off because I had questions for the applicant um would it make more sense just to move it to the next public hearing well I don't know I don't know the conditions around this I don't know if there's any timelines or any dates and so I thought about that but I don't know and this is in the it's in the Leesburg district so how about we ask first of all ask our Leesburg colleague um and secondly

[00:14:18] moving into another public hearing is next month. And then we still then would actually move it to a board meeting, which would put the board meeting itself into like June or something. And I don't know that it's fair to the applicant, no matter how you vote for it, to push them to June when they didn't even know about it. That just doesn't seem right to me. So I'm going to do it. We're going to do how I said it. We're going to Move to the May 19th year.

[00:14:46] Yeah, okay. Hopefully staff can answer my question. And it didn't matter who took it. I would do the same thing, no matter who took this off of the casualty agent. The applicants here I now just found out. So you let me do all that for nothing.

[00:15:03] Well, first of all, thank you for coming in, because two hours ago you didn't know you were going to come in. So if you came in and you had a presentation, that's great. If you don't, I'll still do what I said, because that's pretty short notice for you to know that you were going to come in with presentations. So we'll get there when we get there. Also, I'm not going to go in order of the agenda because for two of the items on our agenda tonight, one of them has one speaker, one of them has no speakers, and then we have the one item that has 40-some odd speakers. And so I'm going to go on and get through -- Valley Commerce has 40-some

[00:15:43] speak. I'm going to go on and try to get through the other two items and so we can get them done, get them out, and then go to the Valley Commerce item because we don't have to have everybody sitting here for that. So that's why I'm going to do this tonight. And so just know that's the order.

[00:15:58] So if you are here for Valley Commerce, I'm not trying to make you sit longer or ignore you. I'm actually trying to get through everything else faster so we can like focus on that. Okay? Yes. Having said that, thank you. As a reminder, if you are a member of the public and you want to and address the board this evening, you may sign up to speak only on matters that are on and have been advertised for the public hearing. Due to the broadcast delay, any member of the public who are not in the boardroom, if you wish to address the boards on item one or item two, which at this moment are on the consolidated agenda, please call the number that you see

[00:16:34] squilling across your screen at this time. If you sign up to speak, you will be allowed at two minutes. If you're in the room, we ask when your name is called, please come to the podium closest to you. State your name for the record. If you'd like to state the district you live in, you can do that as well. The timer on the podium will indicate your remaining time.

[00:16:53] When your time has expired, please yield the floor to the next speaker. If you're providing any comments by phone, I'm going to ask you to time yourself because you probably can't see the timer in the boardroom. And I don't want to stop you when you get to like one minute and 30 seconds because it stops your flow. And so if you time yourself, you're You're going to know when two minutes is up, because when two minutes hits, I will stop you at two minutes.

[00:17:14] When taking input for items, I will ask if there's anyone in the room first, and then I will go to people who are online. The moderator of the day is Andy Torres-Paz, and ask if any speaker is online. So let me start with Andy, can you hear me? Yes, I can.

[00:17:30] Wonderful. Let me also say that it happens to be allergy season, so this is my voice for the next month. colleagues i'm not sick this is just a voice i have during allergy season that's just how it goes all right so the first thing i'm going to do the board will hear the following items as a consolidated hearing as a reminder these items are being consolidated because there were no outstanding issues staff has recommended approval the applicant has waived their presentation time and no public speakers signed up to speak to the board on these items

[00:18:08] Item number one, federal fiscal year 2026-2030, five-year consolidated plan, federal fiscal year 2026-2027, annual action plan, and citizen participation plan. That's a county-wide item.

[00:18:24] I will make that motion. And number two, Leji 2025-0040, Duvall Properties, special exception 2025-0114, that's the exception 2025-0115, and special exception 2025-0116, that is in the Catoctin District.

[00:18:44] Mr. Kirshner will make that motion. So now I will ask, are there any members of the public or anyone on the broadcast tonight who would like to speak on either items one or two, both of which are on the consolidated agenda. Seeing none, I'm going to close the consolidated agenda hearing out, and I'm going to ask board members to refer to your consolidated hearing motion sheet that's placed at your dais.

[00:19:11] As I said, the first one's a county-wide item, so I'm happy to make that motion. I move the board supervisor to approve motion to be for the approval of the five-year consolidated plan annual action plan instead of the participation plan as provided in the April 15, 2026 public hearing item number one staff report.

[00:19:34] Motion is made seconded by Supervisor Sane. Discussion on that motion? Seeing none, on paper, please say aye. Aye. Any opposed? That motion passed 8-0-1. By the way, Ms. Supervisor Glass will be out for this meeting.

[00:19:50] She's still dealing with a family medical issue. I have spoken to her. She is doing well and asked me to give everyone, thank everyone for all their well wishes. Item number two is in the Catoctin District. Mr. Kirshner, do you want to make that motion?

[00:20:06] Thank you, Madam Chair, with the allergies. I appreciate that. I move the Board of Supervisors approve motion to be for the approval of the special exceptions as provided in the April 15, 2026 public hearing item number two, staff report. second discussion on that item just briefly madam chair this is a

um application by a property owner to put a driveway to their home um that required them to because of the steep slopes map required them to come in with three special exceptions it cost them an astronomical amount

[00:20:42] of money just to get a driveway to their home um this i know we're going to the western lounge om but this is a perfect example as as i have in my off many many of those examples where just individual homeowners desire to do something very basic and have to spend i'm guessing this is well over a hundred thousand dollars to do this so i'm glad we got it done but i just i just wanted to highlight the issues that we do have in terms of the number of hoops that have to drop um folks have to jump through at times for a very simple process that perhaps at some point could be more simplified simply by going through a staff process and having those oversights rather than having to

[00:21:21] go through both the planning commission and this board but glad we got it done thank you and i would i would um i don't know if there's that much money but i would associate myself with your comments and i will thank my planning commissioner um dale poland myers who made me aware of this issue and i've had one or two i think two um discussions with the applicant and um and then the staff uh had a couple of discussions and kind of fast-tracked this themselves it took longer than It should have because we were not aware, but once we became aware, it moved along.

[00:21:58] And I really do thank the staff for that, but I do believe that in the future, there's probably a more concise way to do something like this. So Mr. Kirsten made the motion. I second the motion. On paper, say aye.

[00:22:13] Unless you want to close it. You want to close it? Okay. On paper, say aye. Aye. Any opposed? That motion will pass 801. All right, we're going to do number three next, which is the, it's in the Little River District. Thank you very much. Thank you so much.

[00:22:28] It's LEGIE 2025-0016 Eastern Gas Transmission and Storage, Inc. Leesburg Compressure Station, Special Acceptance 2025-0053 in the Little River District with staff and the applicant. Please come to the table.

[00:22:49] Good evening. Good evening. The staff is prepared to defer the presentation if the board so wishes. Otherwise, happy to give a condensed version or anything. Well, let me look over to Leesburg District Supervisor, since it is in her.

[00:23:05] I'm sorry, a little bit of a district supervisor. Mr. Crony, would you like the presentation? I doubt it, but I'd like to hear from the applicant. Well, they're going to speak in just a second. I actually, if you have a condensed version of the presentation, I wouldn't mind seeing that, to be honest.

[00:23:20] Sure. Thank you. It's only eight slides.

[00:23:37] Very well. Yeah. Good evening. My name is Christian Malnotto with the Department of Planning and Zoning for the application Eastern Gas Transmission and Storage Leesburg Compressor Station. Property is located just outside the village of Watson in the Little River Election District and the rural policy area.

[00:23:55] The application is for a special exception to permit upgrades and expansion of an existing use in the Agricultural Rule 1 zoning district. The proposal is centered within a 73.4-acre parcel. The 2019

General Plan supports the co-location of said facilities to improve service efficiencies and promotes expansion of existing sites.

[00:24:23] Further, the 2019 General Plan promotes the preservation of existing vegetation to address environmental impacts. Staff could find the proposal to be consistent with the appropriate design. The original station was constructed in the early 1990s to collect and distribute natural gas and is part of a larger pipeline system that connects from Pennsylvania to Virginia.

[00:24:45] so often improvements take place over time to expand capacity. Staff notes the improvements will largely remain within the existing compound. Staff recommends the following conditions pertaining to operation and design, including testing, safety, environmental mitigation, and enhanced screening to limit potential noise impacts. Staff supports board approval subject to conditions. The proposal is found to be consistent with the land use and energy policies of the 2019 general plan. Thank you. Mr. Crony, is this in the transition policy or? No, AR1.

[00:25:20] I got one. Okay. Do you have questions for staff? No. Do I see anyone have questions for staff? No? Okay. Good evening. How are you? Good evening. Thank you. Do you have 10 minutes? You can sit there or stand at the podium. Either one's fine with me. Okay. Well, I think I'll make the presentation if it's okay. That's fine.

[00:25:43] Good evening. My name is Sherry Akin. I'm a senior land use planner with the law firm of McGuire Woods, and it's a pleasure to be here this evening. With me tonight, I have Dane Hamilton with EGTS, and as always, after our presentation. Be happy to answer any questions that you may have. I did not get the little clicker.

[00:26:10] Okay. Let me begin by first talking. I think you clicked twice. That was just a. Okay. Oh, you're right, actually. The chair is always right. Let me begin. Wow. It's about time so everyone can hear that right now. Let me begin by first talking about the overall project and need. EGTS is proposing a capital area project to meet energy needs of customers in Virginia and Maryland.

[00:26:41] The project proposes a series of infrastructure improvements at four different stations, three of which are in Pennsylvania, and the fourth is here in Virginia at the Leesburg compressor site. Overall, once completed, the improvements will create an incremental 67,500 decatherms per day and to put that in perspective 67,500 decatherms is equivalent to heating approximately 355,000 residential homes per day. So this project is an important reliability

[00:27:18] improvement for the region and it's important to note also that as far as infrastructure improvements there's no new pipelines or adjustments to the pipelines. The improvements that are needed to get this capacity is through the station improvements that we are here for tonight. And then just for orientation, this site is located about two and a half miles north of Route 50. Route 15, James Madison Highway, is to our west. Evergreen Mills is to our east. The site

[00:27:55] totals about 73.4 acres. And as you can see on this aerial, outside of the facility fence line, which is interior to the site, there is a significant treed buffer surrounding the equipment. Of those 73 acres that you see there, approximately 13,000 is, I'm sorry, 13 acres is developed, and the remaining 60, which is the treed areas, will remain, and there will be no changes to the trees. The compressor station itself is fairly low profile. It's set back a significant distance

[00:28:32] from Watson Road approximately 1,000 feet and then with those proposed improvements like I said no changes to the trees are proposed and there won't be any impacts on adjacent property owners or Watson Road. This site has been the site of an existing compressor station since the early 1990s when it received its initial special exception application and Commission permit application. Interestingly, in 2006, as part of the rural remapping, the county rezoned it to AR1

[00:29:12] and this use actually became by right. So since 2006, we've been a by right use. We've had site changes that have been administratively approved through the county site plan process and we've had no issues and the site really has remained pretty much unchanged since that time.

[00:29:33] Here is a perspective we wanted to show you from the entrance at Watson Road. You can see here the station is set back over 1,000 feet.

[00:29:48] The natural topography of the site really also helps to minimize views of the station. This picture was taken in the fall, as you see. Most of the leaves are down, but again, even with leaves down, The trees and mature vegetation that exists surrounding the actual facility really do mitigate views of it.

[00:30:16] And then one item I would like to underscore is the majority of the proposed work on this station is going to take place completely within its existing fence line. The areas outlined in red are where you're going to see the changes take place, except for a new utility line that will be running in from Watson Road, which will be undergrounded and will run a long consolidated lane into the facility.

[00:30:44] And then for the equipment, we'll start at the bottom of the screen within the area outlined in red in that location. EGTS will be demolishing an existing drum storage building and replacing it with a new compressor building that will contain the new 5,000 horsepower electric-driven compressor.

[00:31:06] That compressor will be located inside a building, which will be about 37,000 square feet. It will be appropriately mitigated. We do not anticipate significant sound level increases or changes, and we do anticipate that we will be meeting a 55 DBA at the property line.

[00:31:27] The replacement drum building will then be oriented to the north on the top of the screen, And then there'll be other minor site changes, such as secondary containment areas and new switch gear within that existing fence line.

[00:31:45] It's important to note, limits of disturbance are minimal, and the new equipment is constructed over already impervious areas. And then again, I just want to keep reiterating that the site is going to remain heavily wooded.

[00:32:01] No changes to the trees are going to be made. and EGTS really did try to make the most changes it could with the minimal impacts to the site. As far as public outreach, the initial stages of the project began in 2024.

[00:32:21] EGTS had two open houses. The first was in October of 2024, and the second one was in July of 2025. Feedback from the community was good. Not too many concerns were brought up. Further, we have not had any negative inquiries since the Planning Commission or as part of the public hearing process for the hearings.

[00:32:44] We did have one neighbor who was kind enough to attend our Planning Commission. He didn't speak, but we did have a nice conversation after the hearing, and he did express that EGTS is a good

neighbor. I also received a phone call last week of a neighbor who was out of town for the Planning Commission.

[00:33:00] He was just verifying that he understood the project, and he, too, also said that EGTS and the compressor station is a good neighbor. Then for timeline, the project began again in 2024 when the customer agreement was signed and the FERC application was submitted.

[00:33:21] EGT received its CPCN in November of 2025 with the notice to proceed issued this past January. We had our planning commission last month, and then if the board moves forward with an approval tonight, we anticipate getting site plan approval within the next couple of months since we are processing it concurrently.

[00:33:43] EGTS will start construction very soon thereafter, and they anticipate that the construction will be completed and in service by the end of 2027. And with that, we are pleased to be here with a recommendation of approval from the Planning Commission as well as from staff.

[00:34:03] I would like to take the time to thank Mr. Maldonado for his assistance with this application, and we'd be happy to answer any questions. Thank you. Thank you very much. I appreciate that. This is your district. Mr. Crony, do you have any questions? Yeah, thank you, Chair Randall, and thank you for the presentation and for doing two community meetings.

[00:34:21] Can I move your mic a little closer to your mic? Thank you for doing two community meetings. I really appreciate that going out and hearing from the residents is really important to me. Can you explain what the safety features are, just so that the public can know that there are enhanced safety features?

[00:34:41] Sure. Dane Hamilton, manager of engineering. My team has evaluated and we have significant standards, including emergency fire and gas systems, as well as fire detection, gas detection.

[00:34:59] We have valves that are automated that will shut off the flow of natural gas in the event of an emergency. Additionally, we have a pneumatic ESD air system throughout with eutectic devices that would, as an additional backup, to alleviate any emergency situation.

[00:35:21] Okay, thank you. And then what are the acoustical treatments you're putting in place just to mitigate any noise? Yeah, great question. We will be installing acoustic soundproofing in the walls of the building.

[00:35:38] The building is designed to minimize the noise. The bulk of the noise comes from the compressor, so that exists inside the building and is minimized. Additional noise can come from valves outside, and those are mitigated with blanketing. And we will do a post-construction noise study as required by FERC.

[00:35:58] That sound study will evaluate if we meet the requirements. If not, we will have a remedy period where we will add additional mitigation to resolve any noise issues. Okay, and then what is your relationship with the Loudon compressor station across the street?

[00:36:14] Because this is Leesburg. So what's your relationship with that? Are you owners of that too? We are, yes. Okay, and how will the two be related at all? Are you planning to upgrade that one and expand that one too in the future? I can't speak to future opportunities.

[00:36:31] Certainly as demands would come up, we would evaluate those. But as part of this project, there are no plans to modify the existing Loudon compressor station, which is one of our facilities. Okay.

And was that built in 1992 as well?

[00:36:48] It was built a little bit after. I don't remember the exact date off the top of my mind. Okay. Thank you very much. Mr. Kirshner. Thank you, Madam Chair. I just have a couple questions, mostly on the noise. I know Supervisor Cronin mentioned it. mentioned in your presentation that you think that for terminology you said you did you didn't expect it to be more than 55 db um b um at the property line so i'm i'm dba okay did i stumble over those words sorry thanks for being helpful because the chair is always right i heard that

[00:37:22] earlier, right? Push back. So what are we having at the property line right now? Because it sounds like you're going to be putting in some additional mitigation sound proofing, which you just described. But what are we getting at the property line right now? And what's the closest house to the property line? Well, as part of the FERC application, a sound study was completed. And they took into account the new equipment, and it showed a 55 DBA result. I don't know if you know what it is currently. I would have to reference back to that study. It was less than 55 DBA at

[00:38:01] the property line now, and with the projected additional noise, that study confirmed that it would still be under the 55 DBA at the property line. And how does that run? Constantly, daily, a couple hours at that level. I mean, can you give me some sense of that?

[00:38:19] Well, it depends on customer demand. Our facility is 24-7. There are multiple units that run based on demand on our system. They're controlled by a gas control system. Can you go back to the map real quick? How close is the nearest home from the property line? It looks like it's a Waze, but overhead map. There you go right there. It looks like significant distance to any home surrounding?

[00:38:49] It is a significant distance to the south. I think it was about 1,300 feet to the nearest property line. To the north was a little bit more. And that was from the facility fence line, not the property boundary. Okay. Thank you.

[00:39:10] Appreciate that. Thank you. Mr. Turner. Thank you, Madam Chair. Was there any measurement of DBC? I don't believe so in the sound study. I'd have to reference back to it.

[00:39:26] Okay. And then this is kind of a granular question. I think I may have visited this facility. I did, didn't I? You did, yes. Yeah, I was very impressed. What is the demand in the market that's requiring this station? Is it more gas?

[00:39:49] Yes. And so we're achieving more gas. And the only new pipeline, as I understand it, is from the main line to this new facility, correct? This would actually not even require a new line from the main line. We will be modifying internal headers within the station.

[00:40:08] Okay. A question I had when I drove away after that visit was, so we're going to add, this is a compressor station, right? Yes, sir. So we're going to increase, what are we increasing? Are we increasing the pressure in the main pipeline or are we increasing the velocity of the existing gas to attain the higher volume of gas in the main pipeline?

[00:40:26] Great question. The pipeline will continue to operate at its current maximum allowable operating pressure. So there will not be an increase of that pressure. There will be additional velocity and flow on the pipeline and potentially higher pressure than it is currently operating at, but that will depend

on system conditions, the required pressure of customers downstream, and general operating conditions across our wider system.

[00:40:51] Interesting. If I remember my Bernoulli's principle from my flying days, the higher speed equals lower pressure actually inside the pipeline. So it can if volume is fixed. Okay. Thank you.

[00:41:06] I think I've impressed everybody sufficiently. Thank you. everything. I cannot. First of all, thank you for being here. My only question is, first of all, Mr. Kershaw, ask all my DBA questions, because we often hear that what a DBA will be, but it's supposed to be at your property line, not the property line of the resident and

[00:41:42] And that discussion is something that we're dealing with completely different. But you're saying the DBA would be, so that will stop at your property line, correct? Correct. Okay, that's great news. And we do have a development condition to the 55 DBA.

[00:42:00] Yeah, at your property line. Correct. And then, as Dane mentioned, as part of the FERC application, they're going to be doing a secondary noise study once the facility improvements are completed. Okay, we will need the name of who we're going to contact if that noise starts to get heard in neighborhoods.

[00:42:21] We're going to need that information. My only other question is the construction traffic during the process, how often, how much, what times? Yeah, so we are limited by our FERC CPCN to 7 to 7, Monday through Saturday.

[00:42:39] So that will be the time that we can be doing active construction noise, noise generating construction on site. The volume of traffic will depend on the site. But since we are essentially close to net zero on soil needs, we should not anticipate significant traffic for hauling dirt to and from the site.

[00:43:05] There will be loads of gravel, but typically just traffic for the construction team to arrive on site for the day. Thank you very much. We do have two speakers on this item. I'm going to call both of them right now. Nobody else signed up, right? Two speakers. We have Chris Tandy and Phil Lopresti.

[00:43:21] Mr. Tandy, if you can come forward. Good evening, sir. How are you? I'm all right. How are you, Chair? I'm well, thank you. I can relate to the allergies. I'm an allergy sufferer myself, if it's not too unrelated. I hope you're all doing well. Thank you for the time.

[00:43:38] I would ask you to vote against the compressor expansion because of climate change. Obviously, natural gas is a significant greenhouse gas. There's plenty of research that suggests that natural gas is as harmful to the climate as coal is when the leak rate is factored in.

[00:43:55] There's also significant research suggesting that relying on natural gas is precluding development of more sustainable energy solutions like solar, wind, wave energy, etc. We're doing especially louncing on the PJM grid in this regard, and especially when you compare us to Europe, where 47.3 of the electricity generated in the EU in 2025 came from renewable energy resources.

[00:44:18] On the PJM grid, I've seen different estimates of this, but the highest was 8%. So we kind of, you know, we're kind of doing poorly here at renewable energy. We should be drawing down the natural gas industry, not expanding it.

[00:44:38] Natural gas plant explosions happen once in a while, not every month, but the most recent one I could find was January of 2026. That was in east-central Minnesota. You don't see them in the news a lot.

They don't tend to make national news, but they do happen.

[00:44:56] In that regard, I just don't think that natural gas is either clean nor safe, as its industry advocates tend to suggest. climate change is affecting ecosystems all over the place making parts of the planet uninhabitable I was just reading about mooses in north northern New England that are increasingly being attacked by thousands of ticks because the tick larva don't get frozen anymore let's see we already talked about PJM yeah please be advocates for sustainable energy which is a natural gas thank you thank you thank you mr. Tandy Phil Lopresti I know I did see there you are

[00:45:34] good evening sir good evening supervisors staff my name is philip presti forgive my appearance i literally just came out of the woods at the northeast corner of that property um my wife and i own we're the neighbor that was at the planning commission that didn't speak i did go to the community meeting saw colonel turner there uh these folks have been good neighbors uh the farm i manage and my wife and i own we share a 2 000 foot boundary with them so if you see their parcels, the L, we're that L, northeast corner. And you can see my land,

[00:46:14] my farm is all woodland. It's trees. So we have ag use. It's a very compatible land use. And the gas company has been a great neighbor. The current owner is the new owner. We know this company is CNG. I'd still call them that, Consolidated Natural Gas out of West Virginia. But when that was built in 1990, and to answer your question, Mr. Croner, the other plant was built much later than 1990. We could look it up, but it's probably like 2010 or 2005. I don't know the exact, but it wasn't built in 1990. That one is near Green Mill Preserve, the Loudoun Station, it's 35 acres. But this parcel was built in 1990, and if you look into the history,

[00:46:51] there was a huge outcry from the community. And the reason is, there's actually three gas companies, or two companies, three gas transmission plants on Watson Road. The other one was the former columbia plant which has been bought by another company now and i forgot what the current name is but they were very noisy so when cng came in they made it a point to confront the community's response and the frustration and they went and visited that they helped the other plant get quieter and then they were quiet they were much quieter than they were so they've been pretty much

[00:47:27] a good neighbor i can answer any of your questions i know my time's running out but i would just say this is a compatible land use. We do have trees on our side. I've talked to a lot of the neighbors on Creighton Farms, and they're all suspicious at first, but once they learn, the only comment I would make, and I know my time's up, is just that they used to burn the compressor, the compressed gas, and that would generate noise, but since a lot of it's electric, it's not as noisy. All right,

[00:47:53] thank you, sir. Appreciate it. Mr. Crony, would you like to make a motion? Yeah, I'm just going to send it. Okay. I move that the Board of Supervisors Ford-Legy 2025-0016 Eastern Gas Transmission and Storage Inc. Gleesburg Compressor Station, spec 2025-0053 to the May 19, 2026 Board of

[00:48:29] Supervisors Business Meeting for action. That motion was seconded by Mr. Kirshner. Discussion on the motion, Mr. Crony. So, I'm glad that Mr. Lopresti came and said that they're a good neighbor. I just want a little more time since Mr. Tandy came. You know, I do obviously care about sustainable energy and making sure we're looking out for renewable energy sources. But I do want to make the point that this compressor station is here. You know, it's already

[00:49:07] in the community, and that no new pipelines will be required, only the station improvements and expansion. It's a 73-acre property, very wooded, with only 13 acres developed, and I liked that it's 1,000 feet from Watson Road, so that's excellent. It's very setback. In fact, you know, I didn't even know it existed before I took office. So you're doing a good job hiding it back there. And I'm happy to hear that you're doing noise attenuation, that you're looking out

[00:49:47] for, you know, the surrounding, making sure there isn't any noise, making sure it's mitigated so that it's not heard from any surrounding property owners. And I'm also pleased to hear that you've put in some safety measures so that there's no public safety issues so you know I mean I think I will be supporting when it goes to May to the May meeting but I do want to do a little more research because we had a nice speaker who came and I want to thank you for all that you've done

[00:50:22] especially going out to the community two times like I said that's very important to me that you out and listen to the community. Thank you. All right, so this motion is just to send it to the next meeting for a decision. Ms. Cronian made the motion. Mr. Kirshner seconded the motion. I'm able to say aye. Aye. Any opposed? That motion passed 8-0-1. Thank you very much. We appreciate it. Supervisors, we're going to go on to the item number four because I am told there's an applicant here. Which is the Aspen substation, special exception. If the staff and the applicant

[00:50:56] will come to the table please. This is in the Leesburg district. Good evening. I will first go to the Leesburg supervisor. Ms. Umstead, would you like to see the presentation? I think it might be helpful. Thank you. Sounds good. It's also just an eight slide presentation so we're ready when you are. Good evening. My name is Tess Lynch with the Department of Planning and Zoning here to present

[00:51:32] the application for Aspen substation. Staff received one public comment on Lola expressing concerned that the development would encroach onto the Washington and Old Dominion Trail. To clarify, the development is not going to encroach onto the trail. The subject property is located northwest of Cochran Mill Road and southwest of the Washington and Old Dominion Trail. The site is located within the Leesburg JLMA employment place type in the Leesburg Election District. The site is a total of 34.32 acres. The substation

[00:52:10] shown is the existing Goose Creek expansion, which is not part of today's application. The applicant is proposing a special exception to construct a utility substation, a special exception to reduce the parking ratio from one space per 1,000 square feet to one per 33,000 square feet, which would be one for the whole facility, and a minor special exception to modify buffers.

[00:52:33] An existing substation on the property was approved in 2013 as the Pleasant View substation and an expansion was approved in 2023 as the Goose Creek substation expansion. These are not part of the current application. The commission permit associated with this application was ratified by the Board of Supervisors in January.

[00:52:56] Present on screen is an annotated specs plat. The limits of this specs application are outlined in green with a proposed substation in purple. The approved substation on the site is to the north in gold. existing substations in the area are to the right in gray existing transmission lines are shown in red this application is a compatible use in the place type and is located in an existing developed industrial area it is part of the Aspen to Golden transmission line project the transmission lines run through the center of the property along the top line of the specs limits the general

[00:53:33] plan supports locating substations proximate to existing overhead high voltage electric transmission infrastructure and promotes the preservation and protection of trees and forests. Staff have no outstanding issues related to this application. Staff recommends conditions related to the redistribution of TCA, wood turtles, pollinator habitat, specimen trees, easement realignment, and screening. The Planning Commission forwarded the application to the board with a recommendation of approval. Staff supports

[00:54:06] approval of this application subject to the proposed conditions. Thank you. Good. Thank you very much. Ms. Umset, this is your district. I'll go to you first. Do you have any questions? I do not have any questions. Thank you, ma'am. Thank you. Ms. Dizinewell Southwest and Ms.

[00:54:23] Bricksman. Thank you. Could you please go back to the slide that had the substations depicted in purple and yellow? So this one is the one that they are building. This one exists in purple, yes? It's the other way around. Other way around. Okay, so this one is the one they're building.

[00:54:40] These are two existing substations? Yes. And this is the WNOD trail? Yes. Okay. So the applicant is asking to basically remove the type C buffer and any sort of tallish trees and proposing to replace it with what?

[00:54:58] Shrubs. And a six-foot concrete wall, right? Like they don't want to have any of the buffering that's along the trail or here or here, right? They don't want to have the trees or anything that would be the type C buffer.

[00:55:15] There will be a 20-foot opaque wall. A 20-foot opaque wall? Yes. That's not concrete? What does opaque mean? That's a color. It's unable to be seen through. Okay. So it has to be a thick material. Do we know what color it's going to be?

[00:55:32] I could defer to the applicant on that. Okay. All right. So is there any, well, I guess I could ask the applicant this question, But obviously my concerns are the WNOD trail and no buffers. And was there any, do you know, I'm suspecting I have to ask the applicant this question, but do you happen to know if this is being built to serve existing capacity for power?

[00:56:02] Or is it to, can you go back to the overhead slide where it showed like the non-developed part? Yeah, so we know that this is Bi-Right Data Center right here. Correct. So do we know if this substation is being built for that? I think he has a substation already. I could be wrong. But is it being built like in conjunction with this or is it being built to meet existing lacking capacity and power? I could defer to the applicant for further information, but it's not related to the Tuscarora. It's not related to Tuscarora. Okay.

[00:56:39] Okay. Do we know the square footage of this one by any chance? I defer to the applicant. Okay. - This is 33,000 square feet? - Yes. - Okay, so this one's bigger. I mean, just by the naked eye, right? And these two are smaller, just by the naked eye.

[00:56:57] I think that we can assume that, correct? - Yes. - Okay, and again, the buffers, they don't want to, they're asking for a special exception not to build buffers here by the WNOD, here by Cochrane Mill, and then here, which is kind of next to, is that Bullen Park?

[00:57:17] - Yes. Right. So they're requesting to get a waiver not to build buffers around three sides. Yes, that's correct. Okay, thank you. Thank you. Mr. Turner. Thank you, Madam Chair. So this supports the Aspen to Golden Line, correct?

[00:57:36] Yes. You may not be able to answer this one. If I remember correctly, Cochrane Tech was approved on the basis that it would be able to tie into existing substations. Is this new substation one of those that Cochran Tech was going to tie into because if we say it's for the Aspen to Golden Line That tells me a hundred percent of this capacity will be used for the Aspen to Golden Line not for any surrounding data centers Can you confirm any of that? I can't speak to Cochran Tech. I don't know

[00:58:08] Okay, all right. I'll save it for the applicant. Thank you. So you said that that it would not encroach on the WOND trail But that doesn't mean it cannot be seen from the WOND trail, correct? not necessarily correct i'm sorry i i miss you yes you're correct so you'll see it on the trail it may not be on the trail or but you'll see it on the trail what is the reason they have to remove the what is the reason they have to remove the tree buffers and then put in shrubs and a wall

[00:58:44] why can't the tree but the tree buffer stay there to for the for the to protect the sight line what why are they why did why do they have to is that an applicant question i would defer the applicant that's an applicant question okay and just to be to be clear again this is not well it's a question this is or is not to serve any existing capacity i would defer to the applicant on that mr mr galena galena galenda we don't know that question no ma'am we don't okay all right thank you very much

[00:59:18] how are you welcome you have um uh 10 minutes um um did you have a presentation okay they're going to load it for you we're going to we're going to just take it they'll load it in just a sec and then we'll go to questions thank you for coming in turn your light off thank you

[00:59:50] but it's not time yet how are you we're ready when you are good evening my name is jack story i'm with dewberry the applicant's representative with me tonight is krista mcdonald from dominion and i think hearing the questions i'll just try to try to answer those rather than go through this full presentation. So to explain some of the need for the substation, this is one of five

[01:00:30] substations that's part of Dominion's Northern Virginia Reliability Plan. It's a critical substation that's, like I said, one of five. This is the fourth one of those five. The first one was the Goose Creek expansion, which is already on this site. And then there was Wishing Star and Mars, which have both been approved and are under construction now. And then this is the Aspen one.

[01:00:52] And as you can see on the screen, this is the Aspen to Golden Line. So then the last substation would be on the other end of that. So this is bringing capacity into that section of Loudoun. It's not for a particular user.

[01:01:19] So with the previous application, there's been multiple commitments that have been made on this property. As you can see, the area in white was about approximately two acres of right-of-way reservation that was for Gloucestershire Parkway and Cochran Mill Road to be realigned. And that's kind of set up where this location could be.

[01:01:35] were again with the Goose Creek application. The area in blue is a water and sewer easement to extend the water line into the JLMA area. There's also in orange a 30-foot trail easement that connects the WNOD to Bolin Park. And then up in the top half of the site you can see in green it's approximately 98,000 feet of tree conservation area that was committed to previously.

[01:01:59] I'm sorry sir could you just pull your mic a little closer please. So this special exception is for the use as well as what you heard earlier to reduce the parking ratio on this.

[01:02:16] There's one per 1,000 square feet that's needed. In this case, we're asking for one for 33 for the entire site, so that would be one parking space. And then the minor special exception that was a discussion earlier is for the type C, the type C buffer that is right in that area there.

[01:02:37] It is not all the way around the site. That was modified between the planning commission and the board because that is an administrative item, the buffer that was down on the bottom. So the only areas that we are modifying with the special exception is the existing transmission line that runs into Bowling Park that you see there and then the small white area down in the bottom left hand side of the substation.

[01:03:05] The other buffers will be part of a Z-Core that we're applying for separately. There is a 20-foot solid precast decorative wall that runs around the entire substation. And in those areas where we are asking for the buffer to be modified, we're still gonna plant 100% of the plant units, but that will be with other materials that stays under 10 feet.

[01:03:29] And to mitigate some of the environmental benefits of the buffer that are being lost through the trees, we're planting a native pollinator meadow in all of those future transmission lines and the existing transmission line.

[01:03:52] So with this application, we are agreeing to continue to maintain the tree conservation area in total, but we are reallocating some of those areas, and those were some of the areas down along the bottom half of the site. They are now being moved over to the WNOD.

[01:04:09] In that bottom right-hand corner, you can see some additional green. We are agreeing to provide three years of invasive species control on all those tree conservation areas. We are engaging a certified arborist prepare a tree preservation plan for the specimen tree that staff has identified outside of the limits of disturbance. We are working to protect the wood turtle on the site. We're creating pollinator habitat in the transmission line corridors, and we are working with PRCS to realign that trail easement at their request. And we're agreeing to a condition for the 20-foot solid wall around all four sides of the substation. And with that, we'd be happy to answer any

[01:04:47] questions? Thank you so much. Again, Ms. Umstead, this is your district. Do you have any questions? No questions. Thank you, Madam Chair. Thank you. Ms. Bricksman. Okay, yes, thank you. So...

[01:05:03] Wait, fix our time. Okay, here, time's good. Okay, go. Thank you. So talk to me a little bit again about why you need to not do the buffer and you're going to do a 20-foot wall instead. In areas where the transmission line will be, there's a requirement to maintain the trees so that there's adequate clearance for all of the overhead lines.

[01:05:28] So we are asking in those locations to remove the tree portion of that buffer. Okay. And for the screening aspect of it, we're conditioning to that 20-foot wall around the entire substation to provide the visual screening. Okay. So it says, due to federally regulated clearance requirements to maintain trees at less than 10 foot at maturity within the transmission corridor, you're requesting the elimination of the large, small, and evergreen tree plant requirements.

[01:06:00] To minimize the impact, Dominion proposes a 20-foot precast concrete wall on all four sides of the substation. Would it be possible to build the substation smaller so that we could still have the buffer? In other words, give more room, more space between the substation and the W&OD trail?

[01:06:21] So the transmission lines do run down the W&OD trail, so that is the reason why there can't be trees where those lines are connecting from the substation to the W&OD trail. Okay. It's not the entire area.

[01:06:39] So, yeah, do you want to show me where the buffer, where you're minimizing the buffer? So there's a small area in white. Here? Yes.

[01:06:55] Every one of those white areas is a future transmission line coming out of that substation. This whole, like, kind of triangulated area is going to be a power line? No, each one of the white, yes, one of those white areas has transmission lines connecting out of the substation.

[01:07:13] Okay. And then, I guess, maybe I should have asked staff this, but are you really sure you can... You can ask staff. Okay. Well, I might ask them in the motion, but are you really sure you can operate this thing with just one parking spot? So this is typical of all of Dominion substations.

[01:07:34] The only people who come to the substation are for maintenance and service, and there's approximately five trips per month. And the vehicles that come go directly to the piece of equipment. If I might ask staff really quickly, Madam Chair, they're asking to permit a utility major utility substation in the JLMA 20 zoning district.

[01:07:54] Could staff remind us what JLMA 20 is and there's utility substations are not allowed there right now, correct? That is correct. Well, by special exception, they are allowed. Okay. Were all three of these special exception?

[01:08:11] I can't speak to the two. Thank you, Ms. Briggsman and Mr. Turner. Oh, I'm sorry. Oh, Mr. Sainz. Thank you, Madam Chair. Is there, well, I'm assuming we're going to be voting to move this to the next meeting.

[01:08:27] So between now and before the next meeting in advance, is there a way for you to do imaging for us at the eye level to see what the buffering will look like, the wall and, you know, et cetera, from the WOD trail sight lines, our street viewer, is that possible?

[01:08:49] Yes, we can do some simulations for the next hearing if it gets moved to that. Well, like they have it before the next hearing. Yes. They can send that all to us in email. Thank you. Also, to clarify, we know Dominion has been doing some clearing work along the WNOD Trail in Loudoun County and Fairfax County and upwards and to the east.

[01:09:10] So in regards to the buffering, asking for the reduces, is that because of some of the requirements? We just heard Supervisor Bristman read some of the requirements from the federal side. Is that why you're asking for the reduction in the tree heights? It is for the same reason.

[01:09:26] Those are two unrelated. The one is a maintenance, ongoing maintenance for those lines, but that would be the same requirement for these new transmission lines coming out of the substation that they would have to be maintained at that same height. Right, and so that's where you're asking for the reduction? Yes.

[01:09:41] Okay. Okay, and then for the wall, also in that illustrative, you can depict what the wall will look like or if you can take pictures. I'm assuming you have a wall in some of your existing substations around the area. If you can send us some of those pictures what they look like currently right now yes we can do that okay thank you mr crony uh thank you chair randall so staff mentioned that you're doing a screen wall

a 20-foot screen wall and in here it says it's a precast concrete wall what is it is it a concrete wall or is it a opaque screen wall

[01:10:21] it's a 20-foot precast concrete wall that will screen the substation and it's because it's concrete it's 100 opaque i think isn't opaque a color no opaque is the um the visibility through the wall the amounts of visibility through ah okay okay so it is concrete okay because i've seen a different kind of wall this will be on a nova solid and you will not be able to see through it okay i've seen a different type of wall i would like to i agree with supervisor saints get a visual of what this might look like and then what's the closest point to the w and od of this substation

[01:10:58] how many feet I believe it's about 70 feet okay staff said 140 but if it's 70 I can tell you just actually I can't tell you can you can you read that bottom one it is over 100 feet but we will get the exact number okay thank you very much Mr. Turner thank you Madam Chair the data center I

[01:11:32] was thinking about was cross mill data center not Cochrane Tech so my question is this is a 500 230 combination coming into and going out of this substation correct that's correct so that's about 2.8 gigawatts to give or take it's all going to the east on the aspen to golden line it is all going to the east yes okay so i believe if i remember correctly the applicant assured us that there would be no extra power line transmission lines or tie-ins to existing or planned substations I just want to confirm that cross mill is not going to tie into this substation for power.

[01:12:14] Not to our knowledge. Okay, thank you. Hi, okay, a couple of questions. Is this, would this be to serve existing capacity or is this for new capacity coming in?

[01:12:30] This is to bring additional capacity. This is to bring additional capacity coming in. So something that's not there already, this is to serve something not there yet. That is correct. Okay. You talked about the trees. You said you're going to plant new trees on the WOND trail to make up for the trees you're taking down, basically. That's kind of the way to say that, right? But when you plant the new trees, what will be the size of the new trees when you plant them?

[01:12:57] I may have misspoken. We're putting additional trees into tree conservation, so we're removing some where the transmission line is going to come through, and we're saving some of the existing trees that are on the other parts of the site. So you won't be doing any new plantings? There will be new plantings in other portions of the buffer.

[01:13:15] I was only speaking to the trees being removed from along the WNOD, that we will put other trees along the WNOD into tree conservation. The new plantings in other portions of the buffer, what will be the size when you plant them? How long will they take to become full-size trees to kind of support the environment that's there right now?

[01:13:35] Approximately 15 years. Okay. You talked about the wood turtles. And wood turtles, if I'm not mistaken, if somebody help me, are wood turtles, are they not in danger? What is it before you're in danger?

[01:13:51] There's something before that. Protected. Protected, is that what they are? Are they a protected species right now? I believe it's a protected species. They're a protected species right now. And they're doing fine right now, correct, where they are. But then you're going to, like, move their habitat and protect them again? There's none that have been found on the site.

[01:14:07] But as part of this condition, we're agreeing that to give specific instructions to the contractor and they do a daily inspection to check to make sure there aren't any that have wandered into the site. And if they are, there's procedures for how to deal with that. How you're going to move them and take care of them at that point.

[01:14:24] And I agree with Mr. Sands completely. I would like to see an illustrative of how the wall will look from the WOND trail as one is walking by. Because right now, it's a trail.

[01:14:43] There's trees and things. And now you're going to, for all the reasons that you described, put a wall up. I'd like to see how that's going to look in advance. Okay? If that would be helpful for me to have that. All right? yes yes thank you sir um okay uh supervisors we have i think we have no speakers on this one i don't think do we have any speakers who'd like to speak on this i think we have no speakers on this one okay seeing no speakers i'm going to go to miss umstead for a motion thank you madam chair

[01:15:25] i move that the board of supervisors forward leji 2024-0038 aspen substation specs 2024-0054 specs 2024-0055 and specs 2025-0026 to the may 19 2026 board of supervisors business meeting for action. Second. Motions made by Supervisor Umstead. Seconded by Supervisor Letourneau. Discussion on

[01:16:04] the motion. Supervisor Umstead. I do not have any comments. Thank you. Oh, Kirsten, I'm sorry.

[01:16:17] Ms. Brickson. Thank you, Madam Chair, and thank you so much for answering all of our questions. I do have one question for staff. One more question, if you can answer it. What does JLMA20 mean? does that mean like 20 units per acre residential or it's the joint land management area i know it's joint land management but what did we foresee here when it became joint land management 20.

[01:16:44] very low density residential i'd have to see if it's very low density residential yes was envisioned here okay i'd also like to know if if we can figure out at some point when the goose creek substation was approved i don't have to know right now but i'm just curious you can maybe email that to us um i'm not going to vote for this to go forward i'm not going to vote for it when it comes to the full board um i'm not going to vote to put another yet another substation right next to the w no d i know that's where we're we have a lot of power lines but um the the question was

[01:17:20] answered if this is i know it's a little bit for liability but you also said it's for future use and so um i i don't want to incentivize any more future use right now we are constrained with power right now um and if you know we call streams impaired when they are not healthy and i'm i'm on the w no d almost every weekend and if i could call it an impaired paved trail i would call it an impaired paved trail the amount of substations and data centers that we have crowded around the w no d is starting to get very very annoying and feel very very unhealthy

[01:17:58] And we do not have to approve a special exception for what was initially supposed to be JLMA 20 to put, you know, major utility there. I know there's utility all around it. You know, I get that.

[01:18:14] But we don't have to keep saying yes. And I specifically remember in January when the commission permit came through, because I was very uncomfortable when that commission permit came through. If we don't make a decision on a commission permit, it automatically gets approved. But I specifically asked in that meeting, just because this commission permit is approved, that doesn't mean we have to approve the special exception for the utility substation.

[01:18:38] Staff said yes, and here we are. So I'm not going to support the motion. I apologize, Supervisor Umstead. But I'm not going to support this motion because I don't see any sense in supporting it if I'm not going to support it at the business meeting. Thank you. Thank you.

[01:18:56] Discussion on the motion. So, in general, I just tend to be a little more pulled in on these comments and these moments.

[01:19:13] From a land use point of view, there is more discussion I would normally like to have. I say this all the time, and people don't believe me. I don't want to go outside and be walking and hiking and stuff.

[01:19:28] That is not me at all. but I certainly want to protect it and I certainly want to make sure it's there whether I'm in it or not. It needs to be protected and you cannot sit up on this dais and take thousands of votes every year and not make some not make mistakes and have some votes that you wish you could take back.

[01:19:52] I have votes that I wish I could take back. At the same time it would be unwise for me to sit up here and continue to make votes that I think are unwise at the moment. It is very, very rare that I don't send something on for further conversation.

[01:20:12] But as I sit here right now, I cannot see myself saying yes to this eventually. And so in some ways, you know, just kind of being, you know, not being holier than thou and not being kind of, but just being realistic, in some ways, it's more harmful to the applicant to say, yes, I'll vote for it to go on, because the message or the meta message is, you may be able to get me later on. And if I know you can't, then it's not really fair for any of us

[01:20:47] to do this. And so between now and when this does come to the board, I think it's on May 19th, was that the motion? Actually, my birthday. When it comes to the board on May 19th, if you want to talk to my colleagues, other colleagues, about what they want to do with this, you guys go for it. But I don't want you to think that talking to me is going to help. And so, in other words, you need not take that time because I just don't see myself getting there for a couple of reasons. One, it would add greater capacity. That was my decision point

[01:21:25] is the will it add capacity that's not there already is the decision point was the decision point for me i also don't particularly like the idea of seeing just big opaque walls when you're walking down the wond trail so i have a couple of different reasons why i'm not going to i really do appreciate your all's job i appreciate what you're doing i appreciate what you have to do i appreciate you being here because you came here kind of at the last moment and i appreciate all that but i don't i just don't need to to make you kind of contact me for no particular reason and so i won't be a no i won't be a yes on that vote for those reasons all right miss umstep i'm going to

[01:22:04] go back to you would you like a closing no closing thank you all right the motion was made by miss um start and seconded by mr kirschner right mr kirschner mr letourneau mr kirschner they're very similar all in paper please say aye opposed all right so i think that was a 6-3-1 vote from what i heard if you were a name will you raise your hand yes that was a 6-3-1 vote with this so that

[01:22:37] so this will go on 6-2-1 yeah 6-2-1 with no no 5-2-5-3-1 with mr um the vice chair turner Ms. Brixman and Chair Randall voting against, and Ms. Glass not being here.

[01:22:54] So this will be moved for decision by the majority of the board to the May 19th meeting. Thank you for coming in on such short notice. We do appreciate it. All right, and we're going to do quantum because that's the only thing we have left before we get to Valley. I will say this, it is my practice, and I will do this today, it is my practice to call elected officials first when we have people on on the list. I see three elected officials on my list today. I will call them first. I will also say when we get to Valley which we're going to get to right before we do Quantum Park. I don't think oh no no no I'm running

[01:23:33] to public hearing. Everybody's going to speak tonight. Just hang out. We'll get to everybody tonight before we before we make any motions on that. Hello, hello. Is there an applicant on this? I guess there's not an applicant on this. Quantum Park. There you are. Okay. How are you? Staff, we are ready when you are.

[01:23:57] Good evening, Supervisor. I'm sorry. Hold on a second. This is whose district? Oh, this is the Broad Run District. Okay. Would anyone, does anyone need the presentation? Yes, Mr. Sains will say, yes, we need the presentation. Thank you.

[01:24:15] Good evening. My name is Supervisor. My name is Wada with the Department of Planning and zoning here to present application of Quantum Park. The 40-acre site is part of the Quantum Park office campus located north of Loudoun County Parkway, south of Waxpool Road in the Broad Run Election District. The property is on Office Park and is located within the suburban policy area and the suburban employment place type. The applicant requests a zoning concept plan amendment for the development of data center, substation, and office use.

[01:24:54] note that the office use option has been removed in the latest submission which is still under review and is not part of today's meeting analysis. This application is grandfathered under the revised 93 zoning ordinance which allow for the development of data centers and transmission substation without a need for the special exception request. Presented on screen is the concept development plan in blue is the proposed data center buildings and in with the generated yard in purple. The orange is the proposed GIS substation. This is a

[01:25:34] change from the air substation that was originally proposed. The proposal include railway dedication for future apprentice drive and installation of a 10 feet wide share use path along Loudoun County Parkway and Waxpool Road. As proposed, the proposal will meet the landscape buffering requirements and exceed the buffering requirements for the substation.

[01:26:01] While the proposal utilized existing open space of the existing campus, the remaining area complies with the necessary open space regulation and recommended policy. Staff has not identified any outstanding issue pertaining to this request and raised these three topics for discussion. The 2019 general plan provide design guidelines to ensure compatibility and of development when viewed from travelways and adjacent properties.

[01:26:39] The property includes commitment to use multiple design elements such as building step back and recesses, action materials, fenestration, and variation of buildings, height, material, pattern, texture, and colors.

[01:26:55] Staff finds that the design of the post data center is consistent with the design guideline and complement the existing office buildings on site and the surrounding data centers. On screen is the proposed elevations.

[01:27:12] The southern elevation is the view that you will see from Loudoun County Parkway where the northern elevation is the one you will see within the campus. So on to the rear of the data center.

[01:27:27] And here are renders of different perspective of the proposed use. The play states support a building height of up to four stories or 160 feet.

[01:27:43] The proposed data center is proffered to have a maximum height of 65 feet. This is a reduction from the 100 feet that was originally requested. The exhibit on screen illustrate the building height of the surrounding data centers as well as the on-site quantum office park.

[01:28:06] The existing data center on site is 60 feet tall, while the existing offices are also 60 feet tall at that front's Loudoun County Parkway. Again, the proposed data center will be slightly taller than this office's building at 65 feet.

[01:28:26] The general plan recommends locating the substations where there's minimal impact to key travel corridor, and if alternative location are not possible, providing additions design techniques to minimize the visual impact. The applicant has provided a proper commitment for a GIS substation in addition the applicant has provided sufficient justification to support the location of the proposed substation. On screen are the renderings of the proposed substations from Loudoun County Parkway. The wall material

[01:29:05] complements that of the data center and as proper except for the H frame structure the substation equipment would not exceed the height of the screening wall which varies between 16 to 25 feet. Staff could support the board approval subject to proffers and based on the findings for approval. As the proffer are not approved to legal form this application is not ready for action. Staff is available for questions. It's not ready for action but you could get ready for action by the

[01:29:42] time we moved it on to it if it was moved on to another meeting is that correct okay all right wonderful um this is miss um um glasses district she is not here yet today and so i'll just go on and get questions from whomever might want them um mr letourneau thank you i was trying to look at those renderings is the existing quantum park office facility visible from loudoun county parkway if these structures are built let me let me go back to

[01:30:14] It didn't look like it but it will be especially where the main entrance is but other than that majority no. But what? The majority will be no except for that entrance. Except for the entrance it will not be visible from Loudoun County Parkway. That's correct. Do you have any idea exactly how much square footage of office space is in Quantum Park? You may not have that available. Not the exact square footage, but I have an overall. So the original approval was for about 7,500 square

[01:30:48] feet. Today, a million, sorry. Thank you. As of today, I believe about 1.7 has been developed, and -- 1.7 million square feet of office has been developed.

[01:31:05] Yeah, and data center. Yeah, I was asking specifically about office, though. I know we have a major government tenant in there as well as the private sector tenant but I would be curious as to what the occupancy is today if we have that information.

[01:31:29] Thank you. Mr. Crony. Thank you, Chair Randall. So if we deny this application, can they build the 525,000 square feet of data center use by tearing down existing office and the parking not without a modification because the previous approval tied it to a specific a substantial conformance concept plan so

they would still need a modification which is we'll have to go in front of this board for any alteration to the existing site okay so

[01:32:04] they cannot build the data center without this without approval of this application because of the WorldCom. I know that happened a long time ago because of proper commitments long ago, correct? That's correct. Okay. So I want to make that clear that we're approving a data center here, that this is not by right, that they would not be permitted to build it. They would have to come for, you know, they couldn't tear down other structures to build it by right. That's correct. Okay. Thank you for that. So there are two ponds on this site. Tell

[01:32:40] me what's going to happen to these two ponds. The applicant will have that detailed presentation in there which will cover so staff will defer to applicant when they present. Okay so one I think is a stormwater pond and then I think one's a natural pond my understanding. Right the one to the west is the pond that they will be upgrading to a level two bioretention pond while they want to the east. Doesn't serve any purpose as of today which will it will be removed. Okay and then

[01:33:16] it looks like they're encroaching in the risker which is a sensitive area of our environment. Is that a temporary encroachment or is that a permanent encroachment of impermeable surfaces? I believe those encroachments are tied to Warner County projects on the area. Are you talking about it's the risker buffer it looked like they were putting a road into it into the risker buffer right it's a i believe it's a timber construction for the road for a 20 40 feet row access so there

[01:33:56] will be a road constructed okay thank you very much it's briggsman thank you madam chair can you go back to the beginning of your comments you said something about this is not a specs because it was grandfathered so basically we're looking at a zcpa which is a concept plan amendment as opposed to a specs so but is there really much of a difference i mean we could deny this and it doesn't get built as well as we could have denied a specs for it to get built correct so the use itself for the data center and substation does not require specs because it's under the 93 revised ordinance it

[01:34:35] can be done by the right. However, the previous approval with the rezoning tied it to a specific site layout. So therefore they need this CCPA request to modify that site layout. I see.

[01:34:53] I see. Okay. Thank you for that. Could you please go back to slide 10? That's 10? Yes, ma'am. All right. So this is where the data centers are proposed right here. And these are office buildings correct that's correct right and the this parking lots right parking five parking structures yes parking structure parking structure parking structure parking five of them correct yes this data center yes okay data center data center data center data center data center data

[01:35:31] center data center right correct okay um i just i just so so these and it's my understanding from applicant, there are people working here and in here, correct? No, in here and in here. I can ask the applicant. I just want to make a point of clarification because I'm not quite sure I understood the answer to Supervisor Letourneau's question. And I think he was asking, if we're driving down Loudoun County Parkway, can we, right now, can we see these offices? You're saying,

[01:36:07] could we see them after okay because right now you can see these offices and you can see this entrance but once these are built you won't see that you anticipate that you would not see the office buildings that what are the actually are the what are the comparison and building are you asking the question two you're asking questions what what what are the comparison heights between what they're

asking for and what these buildings are the proper data center building is at 65 feet tall maximum what the 16 office or 60 toward the front toward lowron county parkway

[01:36:45] and 80 toward going back and i'm sorry once again these they're asking for 65 foot correct 65 60 80. so you would not if this is 65 and this is 60 you're not going to see past the data data centers except for right here that's correct yeah thank you thank you mr briggsman mr sayings thank you madam chair okay can you clarify and i think some of my colleagues were trying to get at it but i'm going to ask because i think they're asking in regards if they're going to knock buildings down the office buildings down can they build by right data center and i think you said

[01:37:23] no they can't they would have to come in front of us for a special exception correct that's correct okay now if they were to and obviously they're in front of us to build the data centers where the two ponds are so can they right now by right build the data centers where the ponds are without coming in front of us no because it's still tied with a previous because they're grandfathered no no a previous um rezoning plane gotcha yep okay all right very good okay so so regardless if we say yes or no um well if we say no these are not being built regardless

[01:37:59] A data center cannot be built without a zoning, without this application. Okay, they cannot build a data center unless we say yes to it. That's correct. Okay, thank you. And let me see the other question. And to clarify again for one of my colleagues, I'm not going to name any names.

[01:38:20] My little thing. Ms. Pritzman, can you use your highlighter, please, to go over the ponds? The bigger pond here on the left, which one is the one that's actually in use? That one you have, the western one. The stormwater pond is the one on the left, and the one on the right is for aesthetics and looking pretty.

[01:38:38] That's correct. That one is going to be eliminated, while the western one is going to be upgraded to a level 2 bioretention pond, and they're also going to do some underground stormwater. Right, they're going to stormwater because they're going to build on top of it. And for the substation, because they're asking for a substation on this, correct?

[01:38:57] That's correct. And again, that cannot be built unless we say yes. That's correct. okay and then where would the power come from to power the substation along the eastern property line there is a 230 um kilowatt i want to say so it's going to tap into one of the substations that's on site kilo volts uh along unet's drive okay so it's going to type so all right because there's a substation currently on site on another side of the property so it's going to tap into the

[01:39:32] one that's it's going to come from umet drive and come around okay thank you all right uh let's see do i have any other questions for you no i have questions for the applicant applicant oh no one other one last question for you um gas turbines do they proffer those out gas turbine gas turbines do they proffer those out they've not if you don't know i can ask the applicant uh no they do not proffer it out okay thank you thank you mr kirchner yeah i just had a follow-up i thought i understood the application after reading it but you said there was a couple things that come up so i know

[01:40:10] we're amending this is basically coming to board to amend the concept plan the way it's currently built prohibits it i'm assuming i haven't read the details of the concept plan but prohibits it because the current layout kind of maximizes everything or or does the concept plan limit the number of data centers can you tell me what is it about the concept plan that says you can't put something in even

though it may be by right under the 93. the concept plan show the development In a specific configuration, those do include those two ponds.

[01:40:43] I see. So it's the ponds that really are part of the concept plan that would be being removed that make it necessary to come in and amend that concept plan. That's correct. Okay. That's helpful. Thank you. Yeah. I know that you've been asked this three times.

[01:40:59] I'm going to ask it one more time because it feels like the answers were not as clear as I need them to be. Maybe all my colleagues are just a lot smarter than me. They're not. maybe that. Okay, so in a nutshell nothing can happen here unless we say that it can. Nothing can happen here by right at all. Is that correct? For what the applicant requesting they cannot develop cannot be done without the board

[01:41:32] approval. Okay, is it possible for if the applicant said maybe they don't want data centers, but they would do, well not flex, but some storage use or some kind of other light industrial use that's not data centers. Would that be a discussion that could be had? Because we know that when we find the right locations in this county, we do have a big need for flex industrial or light industrial spaces.

[01:42:10] So would this area, by the zoning, allow for that to happen? Anything other than data centers that could be industrial? I don't have this information, if you give me a couple minutes, I can look up what that zoning allows, but this is zoned for office park, so the majority of use is related to office but I can look that up okay well I will I will I will come back to you on that question when we get to the motion because I think I have all the answers I need right now I'm gonna try to move us along by going to the applicant welcome

[01:42:47] and thank you for being here you all have 10 minutes you can sit right there or stand at the podium and we're ready when you are I will sit right here thank you very much here members of the board I'm Brian Winterhalter with DLA Piper here on behalf of the applicant I'm joined by Liz Nicholson with American real estate partners. I will answer a few of your questions very quickly and then jump into my presentation when Mr. Dow loads it. With respect to the view sheds of the existing office building, we had a number of discussions with the Planning Commission design changes as we went through the process. This application, in addition to having the support of the county staff and their recommendation of

[01:43:25] approval, also had a recommendation of approval from the Planning Commission and a 7-1-1 vote. A big part of that effort was reducing the building height at the Planning Commission from 100 feet to 65 feet and also pulling the building the eastern building in particular farther back away from the center of the campus so the iconic well-known portion of the center of the campus will continue to be visible from Loudoun County Parkway and additional portions of the existing office buildings will will continue to be visible as well. Slides are not

[01:43:58] advancing with the clicker. Can you advance the slides for me? Stop his time, please. Can you advance the slide for him? Yeah, there we go.

[01:44:13] Let's try his time back. I'll just keep saying next slide, if that's okay. That's fine. Thank you. So the site is designated for suburban employment uses, which permits data centers from a comprehensive plan perspective. It was subject to, obviously, the original WorldCom rezoning application and a subsequent ZCPA, which is similar in structure to the ZCPA that we're proposing because it was to allow more flexibility in the building footprints that could be developed on the campus.

[01:44:38] and I'll get back to that in a bit more detail. We are zoned OP under the 1993 revised zoning ordinance. This application's been in the queue for quite a while, so we've continued to be grandfathered, and we've worked very diligently with the county staff, and as I mentioned, the planning commission at three work sessions, so we've been going forward with that.

[01:44:55] The campus is obviously home to a significant employment center. There are a number of office users at the campus. They are still there and active at the campus, and the application before you to add two data center buildings to the campus is not in any way detracting from the office campus that is there, that is very important to us, it's very important to the other ownership groups that are part of the campus as well, it's not just the applicant, all three of the ownership groups that are involved and own portions of the overall Quantum Park campus are in support of this application and we need everyone's consent to be able to move forward, so just to establish that for everybody.

[01:45:30] But as you can see, it's home to Verizon's government IT division headquarters, that's in the eastern portion of the building, there's a government facility that's obviously secured as well. And then there also is existing data center on the campus with aligned energy data centers. Next slide, please. This just shows you what the overall campus looks like.

[01:45:47] The area in blue is the Verizon leased area. Verizon had a long-term lease at the time that the American Real Estate Partners team acquired this property. That was a long-term lease that remains in effect. There are renewal options for that lease, and it's up to Verizon to decide whether they would like to continue at the campus.

[01:46:03] But they certainly are there, and we have no intention of tearing down any of the buildings. In fact, we as the applicant don't own those buildings and so there's no plan to tear down those buildings, just to clarify that point for everybody. The purple is the aligned data center development and the sort of neon greenish color is the government facility that's on the property.

[01:46:22] That facility required as ECPA to allow more flexibility in the building footprints for that to be built, which is similar in structure to what we're proposing with this ECPA application. Next slide please. So the prior ZCPA was based on a prior interpretation issued by the county.

[01:46:40] And to clarify for everybody, the data center and office and other uses in OP are permitted on a buy-write basis for the property. The square footage that we're proposing is within the original remaining amount of square footage that was originally approved for the World Comp Campus.

[01:46:57] The determination that was previously issued by county staff, which still governs the property, was part of the impetus for this ECPA in the 2017-2018 timeframe was that the staff opined that we were limited to the number of buildings that were shown on the plan originally with a WorldCom rezoning approval.

[01:47:14] There were two unbuilt buildings that were on the plan. Those two unbuilt buildings are the aligned buildings now. They were shifted around, but there are no more buildings than were approved on the original concept plan. In order to modify the building footprints for the government facility, we needed to process a ZCPA application, which essentially allowed us to have more flexibility in the building footprints on the western half of the campus and the northern portion of the campus.

[01:47:38] There were other commitments associated with that application, including the dedication of right away for Lockridge Road and some reforestation and other items. Next slide, please. So the purpose

of this ZCPA application is, again, similar in structure. We are proposing more flexibility for building footprints in the area outlined in red, and have significant proper commitments associated with that which we'll go through in more detail.

[01:48:02] Next slide please. So this shows you the existing uses around the property and what they are so there's data centers all around us and we are quite literally surrounded by data centers. In fact next slide you will see the data center buildings around us as well as the planned land uses.

[01:48:24] It's important to note that the suburban combat neighborhood recommendation on the property that That is to the west of the aligned building off the campus. That is going to be developed with Byright data center development. That's not part of our project. That's not any of the ownership groups at the campus. That's a separate developer and property owner.

[01:48:40] But that residential planned area is subject to Byright site plan approval for data center development. Next slide, please. This shows you the original WorldCom zoning approval. All of the orange buildings are data center buildings. The purple are substations.

[01:48:56] And the only office that is built is the office that is on our campus at WorldCom. And that office will continue to be remaining in place. We're not proposing to change that as part of this application. To answer one of the earlier questions, it is about 1.75 million square feet that the aligned data center buildings are in addition to that office number.

[01:49:18] The amount of square footage that's left overall on the campus is about 525,000 square feet. on the reduction in building height, we are not proposing to max out that 525,000 square feet with our proposed application. Next slide, please.

[01:49:34] So to run through the proper commitments, we have committed to a GIS substation similar to what we did at Arcola. We have GIS substations at all of the AREP powerhouse facilities in Loudoun County, at Bowmead, at Pacific, at Arcola, and then we're proposing that here as well.

[01:49:50] As far as I know, we're still the only group that has done GIS substation commitments. We've reduced the building height to 65 feet. We have the highest quality of architecture for data centers that there will be in Loudoun County if the board sees fit to ultimately approve our application. We've got enhanced building materials.

[01:50:06] We'll review that as well. We meet the general plan open space recommendation of 30% and that is part of our progress. Next slide, please. Next slide. You've seen all these renderings, so I'll keep moving quickly. Next slide, please. Next slide.

[01:50:22] This shows you the area of the campus in the middle. Let's pause here. That is the same shot of the campus, that existing building in the center. So you will certainly see that building from Loudoun County Parkway. And if you note the building on the east where those mature trees are, between where the center of the campus is in that building, that area is an existing stand of mature trees that will be preserved as part of our application.

[01:50:44] There will certainly be additional tree planning and supplemental reforestation as part of the project. We have additional amenity spaces, park-like areas within the site. But just to note for everyone, we have pulled that Eastern Building back over the course of this application for the specific reason to preserve more of the view shed into the campus as requested by the Planning Commission.

[01:51:05] Next slide please, next slide. This is a view of the substation. We've proffered to the architectural renderings. Next slide, keep moving, next slide. Same as we did at Arcola.

[01:51:22] You can see here the comparison of the GIS substation. All the equipment is enclosed. It's a smaller footprint. It's set back significantly from Loudoun County Parkway. There is an existing substation across UUNET Drive from us. We're not using that substation. The substation that would be constructed to serve this project is on our own campus.

[01:51:39] That substation will be set farther back, will have far nicer screening, and much more tree buffering planted in front of the substation. Next slide, please. Let's keep going. That just shows you what the GIS equipment looks like inside the substation building.

[01:51:56] This shows you how far set back it is. 142.9 feet to the screening wall from the edge of pavement, edge of curb, sorry, along Loudoun County Parkway. Next slide, please. The lines connecting the substation will connect to the transmission lines.

[01:52:13] Those are existing transmission lines. We will connect directly to them. There are no new transmission lines as part of this project. The lines coming from the substation to the data center buildings would be underground. Next slide, please. This just again shows you the substation view. Next slide.

[01:52:30] Next slide. And we've committed to significant transportation improvements as part of this application, including the area in red in the image on the right is a stormwater management pond easement that we are granting to the county and that is in our proffers. That stormwater management easement is to support the future Quantum Connect Boulevard and Lockridge Road.

[01:52:48] So that is part of the county's, whoops, sorry, I was timing myself. That is part of the county's road project. We're also dedicating additional right of way. We've made some additional proffer commitments based on requests from supervisors in our recent meetings over the past few weeks and we will add those to the proffers as well.

[01:53:08] I was timing myself, so I know that you will probably be timing me as well, and I will conclude and say, we appreciate it, we appreciate the coordination with county staff, we appreciate their support in the Planning Commission's recommendation of approval. - Thank you. - And we are happy to answer any questions. - Thank you. Supervisors, we have three speakers on this, but I need to take a point of clarification before we can go any further, because supervisors, if you go to your package and go not to the presentation, but to the actual item and go to page 12.

[01:53:37] Staff, please go to the actual item and go to page 12. And look under the section that says zoning analysis. I'm going to read it because I'm sorry, I'm still confused and I need a point of clarification.

[01:53:52] Zoning analysis reads, the county accepted the application for review prior to the adoption of the current zoning ordinance on December 13, 2023. Since December 13, 2023, the applicant has made no substantial modifications and has diligently pursued approval of the subject application.

[01:54:13] Staffs find the application complies with the requirements of the board's grandfathering resolution for review of applications. I am confused if this is grandfathered or not. I don't understand. I feel like I'm hearing many help me out.

[01:54:30] Grandfathered does not mean they have the right to construct the use. Grandfathered means that they do not have to pursue the special exception that is now required under the zoning ordinance, nor do they have to comply with the special use-specific standards that are in the new zoning ordinance, since they are still, this application is grandfathered per the board's grandfathering resolution under the revised 93.

[01:54:50] What can they do from a grandfathering point of view? All the grandfathering allowed them to do was carry the application forward without having to comply with the new regulations. What Wal has said earlier is correct, they cannot make any additional changes to this site without AZCPA, either this one or a future one, to modify the footprints of where buildings can be placed on the site.

[01:55:14] Okay. Thank you very much. We have three speakers. They are -- Can we get a question? Oh, I'm sorry. Question to the applicant. I'm sorry. My apologies. Ms. Bricksman. Thank you.

[01:55:30] go back to the slide where I think the Align data centers were in purple? I think it, I don't remember which number it was. No, those are in orange. I think they were in purple in one of your earlier slides. There we go. So this, this, and this, you got, sorry, the

[01:56:05] property owners or whoever owns this, these were able to be built by right? Yes. So in other words, when the original WorldCom application came through, these three buildings were envisioned to be office? No, not exactly. Those three buildings were not on the original WorldCom plans. But you had permission to build this many buildings. You had permission to build like a certain number of buildings. Yes, correct. A certain number of buildings. The staff interpretation when we requested the Z Corps back in, honestly, I forget what year it was,

[01:56:42] But the issued interpretation was that there were a number of building footprints shown on the original WorldCom application. And we were able to utilize the same number of building footprints. Right. And so by right, I'm sure when WorldCom was approved, it was probably assumed that those would be office buildings.

[01:57:05] Data centers weren't even a gleam in anyone's eye, right? So those would have been assumed to be office buildings. I think that's a fair assumption. Okay, fair assumption. So, but you were able to build them by right data center, probably because of the memo that came out that determined that office use could be determined to be by right data center.

[01:57:25] That's what I'm assuming. So, but you don't have the right to build any additional buildings. So that's why you're, so your ZCPA is adding two more buildings to the original plan.

[01:57:41] Yes. That's fair to say. Right. Okay. and then this so you're saying that even though this is going to be 65 feet tall both of them right this one's pushed out a little bit or pushed down a little bit but these are 65 feet tall but you're saying even though these are 60 feet tall and this is 65 feet tall that it's not going to block the view of those office buildings so the building that is in in white that doesn't have a color on it yep that one you will be able to see you will be able to see the d1 building that is in

[01:58:17] the center and you will be able to see behind the trees that are there about half of the e1 building this is e1 oh this is yeah okay okay that's what you'll be able to see so basically you'll be able to see this and a corner of this versus being able to see everything that you can see now right Oh, I'm out of time.

[01:58:37] All right. Thank you, Madam Chair. Thank you. Mr. Saints? Thank you. You said you're doing EV charging stations, bike racks, and some pathways.

[01:58:54] Who are going to be able to use all those? Great question. The EV charging stations would be available to anybody at the campus. We'll put them in where they can be accessible by tenants at the campus. So everybody, the whole campus or just hypothetically if those were to go up, it would just be for the folks in the data center?

[01:59:15] No, I don't think it would be just for the folks at the data center. That was not the intent. So it would be if I was in the Verizon or the Allied, I would have access to them, is that what you're saying? Yeah, my assumption is that they would be provided in somewhere in the internal drive loop at the front of the campus.

[01:59:32] but we haven't we haven't we haven't figured out exactly for what it's worth the the entire campus is secure like all of this is inside a fence already and there are actually several different fences because they're secure that's why i asked the question who would have access to this and what about the bike racks was that the same you right no the bike racks will be closer to where the data center buildings are so that'll be for the data center folks possible i think that's the intent right what about the pathways the the pathways are on-site and also off-site. So they would be for anybody who's walking through the area. We were asked to commit to provide some additional off-site shared use path connections that are sort of missing links

[02:00:10] right now. So we had committed to do that. Okay. All right. Thank you. I'll just say it now. I'm pretty sure we're going to vote for this to move forward. But when it comes back in front of us, I'll just tell you I'm not going to support it. But thank you for your presentation. Mr.

[02:00:26] Crony. Thank you, Chair Randall, and thank you for the presentation. Are you doing any noise attenuation, and I'm not just talking about the two that are being proposed, but I'm talking about the one near Regency. Would you be willing to do, my understanding is there is noise, that the community is hearing noise, and I'm talking about the purple one that is in the south. Would you be willing to do noise attenuation on your existing data centers? So those existing data centers are not owned by us and are not within the bounds of this application.

[02:01:04] We can certainly encourage the aligned folks to provide noise attenuation, but those buildings are not part of this application. With respect to the proposed data center buildings, we have not yet specifically been asked to provide any specific noise attenuation measures, but we certainly would be happy to consider that.

[02:01:22] We don't expect that there's going to be a noise issue based on the evolution of the design the data center buildings over time from when the aligned buildings were built. That aligned data center building is closer to the Regency. There's also data centers that will be built between the aligned building and the Regency, so we will be farther away. But nevertheless, to more directly answer your question, we would be happy to consider noise attenuation measures.

[02:01:44] A portion of it is less than 500 feet from the Regency. We looked at how many feet it's from the residential are you doing tier four generators uh what kind of uh cooling systems are you using are using water we we would commit to tier four generators we did not commit to that as of yet we had already written to mr dow to identify that we would commit to tier four generators so we will certainly add that to

the proffers in terms of the cooling system i actually don't know the specifics of the cooling system so i can certainly provide more information on that and which pond are you Are you building over both ponds?

[02:02:23] Yes. The east pond right now is not a – both of the ponds were built as stormwater management ponds. So just to be clear, neither of these ponds were natural ponds. They were both stormwater management ponds. The pond on the east, though, has never been necessary to be used for stormwater management because other stormwater management facilities have been developed in the area.

[02:02:41] And so the idea that these were sort of larger regional ponds, they never ended up being utilized to the extent that it was anticipated at the time because other stormwater management was provided on other sites. So the Eastern Pond functionally is not providing any stormwater management capacity or function. It's actually, water is piped into it so that it doesn't look bad.

[02:03:00] But there is absolutely zero stormwater management function to the Eastern Pond. The West Pond has some stormwater management function, which we will be continuing. We will recapture that. There will be a level two bioretention and there also will be underground vaults. So the stormwater management is certainly going to be provided for for the site as part of this development project okay thank you thank you mr kerster thank you madam chair so i i don't know if you were on the original application i assume you were not but if you were because we're here to amend a concept plan why wasn't this envisioned

[02:03:35] for data originally this front section that we're doing now do we know that's part of the concept plan and that may be a tough question to answer and you may not know the answer i don't know I don't know. Is it 1,000 years ago? I would say -- so I was on the earlier ZCPA.

[02:03:51] Fair enough. I was not here for the original WorldCom application. Right. But I was here for the earlier ZCPA. And I think, quite honestly, we were focused on accommodating -- on processing that ZCPA to accommodate the government facility.

[02:04:08] That was a GSA lease that we had secured and needed to be able to make changes to the campus to to implement that project um i was looking at the packet and clearly you guys have done a lot of work with the planning commission it appears it came out as an 801 vote but you did you did work sessions three different times june i think you mentioned that presentation june 12th november 13th and february 12th and um obviously they appear to be fruitful because they came through we we obviously don't have the luxury of doing that many kind of planning sessions but i just wanted to

[02:04:47] to point that out as I know. I don't know where I am on this application and let me explain why. I have to go drive by there. I'm not as familiar with this area. I mean, I drive up and down Latin County Parkway, but as to how this is going to actually kind of look and play out ultimately visually, what you present is very interesting, but unfortunately you find yourself in a place with a board that potentially is not in favor of this for a variety of reasons, but now you have this concept plan even though you are grandfathered and you took all the processes necessary.

[02:05:20] So we'll see where things panned out, but those are just my thoughts. - If I may, one quick note to point out. If you do drive by the site, you will see under construction, a data center building to the west of the West Pond. That data center building, that way, driving west on Loudoun County Parkway, that data center building is I believe in the mid 80s in terms of the feet, mid 80s, 85, 87 feet, I think.

[02:05:50] And it is also at a higher level of topography than where the two ponds are located on our campus. So if you drive by and see that existing building, not existing, the under construction data center building, our buildings will not be nearly as tall as that building, just for a point of reference.

[02:06:05] Thank you. - Thank you. Can you go to the presentation and go to slide two, please, of the presentation, our presentation, staff's presentation, and go to slide two. Sir, when you keep talking about the data center that is under construction, let it come up so I can ask you this question.

[02:06:29] Page two, please. There we go. Are you talking about this right here? Yeah, it's in there.

[02:06:46] No, wait, are you talking about that right there? Yes. So you're saying that this right here is under data center construction right now? That site does not look like that right now. That's like a gravel parking lot, it looks like, but that is an under-construction data center building that is at a higher topography than our site and is also much taller.

[02:07:06] Okay, thank you. I don't think that the question about gas turbines was answered. Would you proffer out gas turbines? Yes, we would be happy to proffer out gas turbines, no problem. I think the answer to my colleague's question is, like, why wasn't this originally in the WorldCom application?

[02:07:24] You were probably in the fourth grade when the World Cup application came out. What year was the World Cup application? Does anyone know that answer? It was like in the late... It was a 98 zoning case. Was it that late? 1998. 1998, yeah.

[02:07:41] So that's... Karam was a junior in high school. Thank you, Mr. Sains. I was in high school as well. You were in high school as well. So my point is, you know, I understand what you're saying when you say it was there originally, but 1998 was a long time ago, and we, can we be quite, we have learned so much since 1998 of what we should do, what we maybe shouldn't have done, and so I understand what you're saying, but I don't know that I'm gonna use 1998 as, if we knew now, if we knew in 1998 what we know now, you'd be sitting right here right now.

[02:08:18] So I don't know if that's the best measurement you could possibly use. Same question. This piece of land would allow for flex buildings or other light industrial buildings. It would allow for something other than data center by land type zoning. Have you thought about something other than data centers? Because we have a great need for that product in Loudoun County in the right locations. Have you thought about something else besides that? We have not. You have not. Okay well I appreciate that

[02:08:54] honesty thank you very much we do have three speakers and then supervisors this is in this Mrs. Glass's district I'm going to make the motion because I think she has the right to speak on this issue because it's in her district and so that's why I'm going to make the motion so just so you all know in advance why I'm doing that the three speakers are Tia Ehrman Chris Tandy and Julian Cantor if you are here you are my speakers and then we're going to go to

[02:09:20] the Commerce City, Commerce application. Good evening, Ms. Ehrman. Good evening, supervisors.

[02:09:38] I'm Tia Ehrman speaking on behalf of the PEC, asking you to oppose this application. Quantum Park is one of our last corporate parks. It's beautiful, and we know from our partners that its ponds have some of the best birding in this area. It is rated a Class A facility, one of the most prestigious properties in its market. More than that, it represents a long-standing partnership between Keystone businesses and the

county, dating all the way back to UUNet, then Worldcom, and then Verizon, who still leases space here, holding down what Data Center Frontier has called a historic telecom property with a long legacy as a key connectivity hub dating back to the early

[02:10:17] days of the internet. The Times Mirror once wrote, to the pioneers of the telecommunications revolution, the high-tech campus on Loudoun County Parkway in Ashburn is hallowed ground. But Loudoun does not seem to be retaining cornerstone establishments, even ones for which we'd like to be known. The National Conference Center, this Verizon property, both asking to redevelop, and community partners like GW increasingly think that key spaces in our community are up for redevelopment, especially for the oversaturated data center industry. Additional data centers on this property do not advance county goals for the policy area. It does not provide a broad array

[02:10:53] of employment uses and would replace open space, both encouraged in the suburban employment environment. According to the applicant, the property employs over 5,000 talented workers. This campus was very intentionally designed to support them.

[02:11:08] In fact, in 1998, when WorldCom applied to build out this campus, the specs, conditions of approval specifically stated that uses like utility substation were inconsistent with a high-quality corporate complex. Thank you. Mr. Tandy followed by Julian Cantor. Hello again. I just find it depressing that this whole area is like a little bit of office space. I mean the the the maps

[02:11:43] in the in this application are I think kind of insane and now they want to turn the the two little part that's not already developed into more data center right next to a neighborhood. And there's been so much press lately about the hellish situation of living next to a data center. There's international press about Lenz data centers and how bad it is living next to them now. The phrase surrounded by data centers was mentioned. I can't help thinking that really should be the new county slogan at the rate we're going. I just called

[02:12:21] to sacrifice zone, but that's kind of six of one, half of the other, I guess. VCU put out a report that found that emissions from data centers are already a problem in Loudoun and that several in Sterling and Ashburn are emitting over 30% of their permitted emission types, even though it's non-emergency use, which kind of runs counter to the notion that emissions from only emergency generation use are quite low uh any day seems like a good day to turn a corner and

[02:12:58] stop approving these things and i'm i'm hoping that this is that one uh thank you thank you and the last speaker is jillian cantor good evening good evening my name is jillian cantor i live in ashburn quite close to where this is um and thank you so much for raising the noise issue It is noisy. I don't want more data centers. My family lives there. I'm a mom to two small kids, and it is already terrible driving past there on wax pool and seeing all those data centers.

[02:13:36] It makes me so upset. There can be no question at this point that data centers are harmful to people and to the environment. If there is any contention, I have plenty of studies that I can support that with. I urge you to deny these amendments. To deny it would be acting in the citizen's best interest, your constituent's best interest. This is not necessary. It is not needed for Loudoun County. All it is going to do is raise our taxes. A vote to approve this is a vote to raise our

[02:14:10] taxes and to put more burden on us for paying for water needs and the electricity and power grid needs. My power utility bills have already gone up 35% after the data centers were built most recently.

More building is just going to hurt us, and your constituents do not want more data centers. Please do not do that to us. Thank you. Oh, no, no, no, no, no, no, no, no, no, no, no,

[02:14:45] no. We actually don't clap because if we allow clapping, we have to allow jeering. And if we allow jeering, then that gets out of control real, real fast. And so we can do jazz hands and things like that to show your appreciation, but we don't do clapping, and I appreciate that, everybody.

[02:15:02] All right. Because Ms. Glass is not here, I'm going to make this motion. I'm only making this motion because I don't know what her position is on this, and it is her district, and I feel like she has the right to speak on this motion. So I'm going to go in and make the motion. I move the Board of Supervisors for LEGI 2023-0097 Quantum Park ZCPA 2023-0008 to May 19th, 2026 Board of Supervisors Business Meeting for Action.

[02:15:30] Motions made and seconded by Mr. Letourneau. Thank you. I am very likely to not vote on this application for a host of reasons, but I also will say a couple of things. It is interesting that two of the three people who came up to speak against this data center spoke against it while speaking from their laptops, right?

[02:15:51] I just want to just point out sometimes some of the things that we are actually, yeah, well, you did, I was actually saying, and I say this all the time, and I'll be having a data center town hall, and I'll say this a lot more. The truth is, data centers don't raise our taxes. In fact, they lower your taxes by a good little bit.

[02:16:09] This is not good land use anymore, and I would agree with Ms. Cantor on that for this location. I think that for this location, well not I think, we need other industrial uses a lot.

[02:16:24] And this is a great location for another industrial use. It doesn't have to be a data center. Data centers give us, for every \$1 we spend on data centers, we get \$26 back in revenue. We have never, ever, ever, ever, ever given a tax incentive for a data center to come.

[02:16:42] And we have the lowest tax rate in this area, including Clark County, by far, because of data centers. And so I think it's important to have a balanced conversation, and I think part of that balanced conversation is, have we gone over a tipping point for data centers themselves?

[02:17:01] I would say we have. In fact, I'd say we have a couple of years back, but that doesn't mean that I'm going to let incorrect information sit out there either. I think we can say that we're not going to vote for something while still giving factual correct information.

[02:17:18] And so that's the goal that I'm doing. And again, I'm making this motion because Ms. Glass is not here, and I do think she has the right to vote on this item, although I know that you've done a lot of work on this And you all have been patient and wonderful in all those things, and I appreciate it.

[02:17:44] If you'd like to come back with something, some other industrial use, I think we'd love to hear that, and I think we actually need that. But I think right now, for me, this will not be a yes vote for me. With all respect, this will not be a yes vote for me.

[02:18:02] Mr. Letourneau. Yeah, I do want to make an important point, which is a yes vote to move an application to a business meeting is not a yes vote for the application and in fact don't think he would be mind my saying it the county attorney has repeatedly advised the board that we should not be voting no at this stage on applications for one thing if the board were to deny this application we would need findings

for denial that's a legal document it is not in the packet it was not created for this application because the recommendation from the planning commission was to approve it so nobody should be voting against moving this forward at this juncture the next meeting the business meeting when we have findings for denial in front of us is a different story and i will be voting to deny

[02:18:41] the application at that point um look i there comes a point where it just becomes egregious and it's truly just trying to stick a data center into every possible square foot you can have a data center come on i am a reasonable person i have supported plenty of data centers in reasonable locations. And yes, the land use around here is obviously lots of data centers, but we're really at the point where we're going to take a pond out to put more data centers in to block an office

[02:19:13] building. It's absurd. So I'm sorry. It's a perfectly nice applicant. I know they do great things. Otherwise, I even support other applications, but this is just jumping the shark. And we'll work with the county attorney on those findings, but just to be fully transparent, not supporting this application thank you sir mr kirschner thank you madam chair i just want to associate myself with supervisor letourne in a lot of ways um obviously i don't i'm not going to be quite as strong on the on my know on this until i actually fully look at the location but i am concerned i'm going to see exactly what he described and that is we we are trying to jam some of these

[02:19:52] in sometimes it makes a lot of sense and i have supported those applications um for some some land and leftover area and that sort of thing you've got data center um and that and that fits that part But what we're literally trying to do here is put it right up fairly near the road, block Office Park, and kind of fit two right in here because we can, potentially, unless this board of course says no.

[02:20:18] So that does concern me. You know, a lot of recent applications that have been supported by this board or members of this board have had a lot of buffering setbacks. this one's not going to fall under the design standards that we put forward on the specs because it is grandfathered, but I'm sure you, I think a lot of that stuff was already put in here.

[02:20:43] But the setbacks and the buffering and those sorts of things are not as, I think, robust as perhaps the ones that we have adopted in more, in the last couple of, have accepted in the last couple of years. So I associate myself with Supervisor Letourneau.

[02:21:00] I do have those concerns, but I promise the applicant to do as thorough a job as I can, go out and look at it, and likely I would not be persuaded differently, but it certainly will take a look at it. Thank you. Thank you, sir. Mr. Turner. Thank you, Madam Chair. Can I address the county attorney for a second?

[02:21:15] Sure. Mr. Rogers, if we're not supposed to vote no at a public hearing to advance the proposal, why do we even have a vote? If the board were inclined to turn down an application at the public hearing, the recommendation is then to forward it to a business meeting so that we can have grounds of denial.

[02:21:41] Understood. So let me repeat my question. If we're supposed to vote yes to move it to the business meeting, why do we even have a vote? Why isn't it just procedure that they come to the public hearing and automatically move to the board meeting? Well, the board can approve things at the public hearing, and the board does need to hear from the public.

[02:22:00] The public is charged with following the case, and so the board's vote tells the public when the board will be making its final decision. Okay. All right. I'll accept that. I am surprised but gratified at Supervisor Letourneau's comments and passion.

[02:22:19] I share it completely. We are at a point, we're the most mature data center market on planet Earth right now. And we're at the point with every data center that we approve, we put enormous burden on our existing infrastructure to the detriment of our constituents and our citizens in Loudoun County.

[02:22:37] We increase more transmission lines. We increase water use. God knows we increase noise, which we are all dealing with now on a fairly major basis. And the aggregate strain on infrastructure has approached the point that is intolerable.

[02:22:55] So I understand that there are specific issues with specific data centers. In point of fact, to me, the data center industry ought to be addressing the six critical factors right up front. Sound, pre- and post-construction noise studies, DBA and DVC noise, setback at least 500 feet, sight, what does it look like?

[02:23:18] I think these look pretty good. Power, where's the power coming from and how much are you going to use? Water, is it a closed-loop system? Is it a hybrid system? What kind of cooling are you going to use? And emissions, you ought to be using tier four generators. If I were the industry, I would move organically to those positions as my opening argument for a data center.

[02:23:38] And at this point, it doesn't change the fact that every new data center we approve puts another burden on an already overburdened infrastructure in our county. So I will be voting no on this. However, in accordance with legal opinion, I will vote yes to move it to the next meeting for a decision. Thank you.

[02:23:53] Thank you. The only reason I don't vote yes to move something on is because when you vote yes to move something on, what happens every time is then the applicant starts calling you or emailing you or trying to meet with you because they believe that your vote yes is saying maybe we can get this done.

[02:24:15] I'm trying, my goal is trying to say, to be respectful, to be quite honest, to the applicant and say, if you think you have five votes on this dais, you go for it. I'm not one of them. So, and I don't want to say, like, don't waste your time, but don't waste your time because I'm not going to be one of them.

[02:24:33] So I'm not trying to do anything but be respectful as possible to the applicant. If I can vote yes to move this on, please don't call me because I know that I'm not going to vote for this in the end.

[02:24:50] I just don't think taking out two bodies of water, even if one was a stormwater pond, the other one was not, is a good idea. I think there's so many other uses we could possibly have. One reason I'm going to have a data center town hall is because I think everyone is probably correctly asking, well, why now? Why'd you get here now?

[02:25:11] And there is a long history of how we got here in Loudoun County to be the data center capital of the world, quote, unquote. And much of it was just because we were where MCI WorldCom and AOL was located. When the tech bubble broke, they left, but they left their fiber.

[02:25:29] And then we start putting fiber in the ground, and data centers followed the fiber. And it's kind of a long story. But I understand, I completely understand the frustration of the constituents. But I also think that there's maybe more nuance to the discussion that could be, some more meat could be put on this bone.

[02:25:49] But we are now at the place where we do have the power that we didn't have before to say no to data centers. Before, that wasn't a power that we had for reasons that I can't go into in the next 56 seconds. But we have the power to say no now that we didn't have before.

[02:26:07] and it would be a mistake for us to not use this new power that we have now to say no to data centers if we think they're not located in the right place. That's not saying I'll never say yes to another data center. I've seen one that's like the perfect location, but this is not the right place and not the right use.

[02:26:28] So if you want me to say yes to move this on, Mr. Rogers, cool, not a problem. But I'm going to be a no when this vote comes up, and with due respect, because I know I'm going to be a no, I probably won't even take your phone calls if you give me a call, and I mean that completely respectfully.

[02:26:47] I'm just trying to save us all some time up here. So, again, I made this motion because Ms. Glass was not here, and I have no idea what her position is on this, and it is her district. I made the motion. Who seconded this? Mr. Cliturno seconded the motion.

[02:27:03] All in favor to move this on to May 19th, which is my birthday. There you go. That is the right. Please say aye. Aye. Opposed.

[02:27:20] All right. So we will move this on with Ms. Bricksman and I think Mr. Crony voting against it and Ms. Glass not being here for the vote. So it's 6-2-1 vote. Thank you very much. Supervisors, do not move. I know you've been here for a long time. What we're going to do is this. We're going to do the application for Commerce, and then have the applicant, and then we'll take a break before we hear all the public comments, but I do want to get started on this because people have been sitting here for a long time, and I think if we walked up to Deus right now, people would not appreciate that.

[02:27:51] And so we're going to go on and do the application and have the applicant come up, and then after that happens, we will take our break. And then we'll come back from the break, do public comments, starting with the elected officials first. Will everyone please come to the table? Good evening.

[02:28:16] Good evening, good evening, good evening. All right.

[02:28:32] I think this is the first time we've seen Commerce, although I've had more than one presentation, and I've talked to members of the Percival Town Council, and I've gone out there, but I think it's the first time we've seen it.

[02:28:48] And so this is in Mr. Kirshner's district. And so, Mr. Kirshner, I'll go to you first. Would you like to see the presentation? I think we probably ought to have it as well. All right.

[02:29:04] So we're going to do the presentation. We're ready when you all are. Thank you, Chair Randall. Good evening. Good evening. Chair Randall and supervisors, I'm Rachel Evenchuk with the Department of Planning and Zoning, presenting Leji 2023-0080, Valley Commerce Center, ZMAP 2023-0008, and ZMOD 2023-0041.

[02:29:35] The applicant is requesting rezoning for 117.07 acres from the Joint Land Management Area 3 or JLMA 3 zoning district to the planned development industrial park PDIP zoning district for development of a business park, industrial park with up to 986,000 square feet of industrial uses and a zoning modification or ZMOD to eliminate the water, and waste water standards under the grandfathering provisions of the

[02:30:13] revised 1993 Zoning Ordinance. The subject property is located in the Percival Joint Land Management Area or JLMA on the north side of Route 7 east of Percival Road which is between Berlin Turnpike and Route 287 and Hillsborough Road, Route 690. It's north, basically north of the town of Percival. The parcel, the former Warner Farm, remains undeveloped with some

[02:30:50] tree areas containing old-growth forest. Land to the east is in the Wright Farm subdivision. Land to the north is forested with two adjacent parcels in the New Hillsborough Agricultural and Forestal District. Chestnut Hill subdivision is located to the northwest the mayfair subdivision within the town of percival is located to the west across percival road and there are several other parcels that are still remaining in the county on the west side of personal bill road as well and to the immediate

[02:31:29] south is an out parcel formerly part of the warner farm currently in residential use and there is industrial uses located on the west side of Percival Road south of the Mayfair subdivision and there's some land in the county that is also industrial around St. Francis Court to the east and south of Wright Farm. Most of the surrounding area within the county is zoned JLMA 3. A few of

[02:32:03] the parcels on the west side of Percival Road are zoned JLMA 2. There is the parcel as I mentioned that's industrial use near St. Francis court that is zoned General Industry, GI, and the other parcels are all located within the town of Herceville. Staff identifies two issues that remain with the application. Several others were resolved as the applicant went through the review process with staff and through the planning commission public hearing and to work sessions.

[02:32:43] The primary issue that staff has identified is that the proposal is inconsistent with development pattern of land use guidance in the Percival-JLMA rural neighborhood place type as described in the 2019 General Plan, or GP.

[02:33:02] The place type supports low-density, large-lot, and clustered residential development, along with agricultural and rural economy uses. The impacts of industrial uses are not mitigated with regard to the proximity of the subject property to residential uses.

[02:33:23] The next issue that staff suggests for discussion by the board are the wastewater and wastewater that would be provided on-site. hence the zoning modification to eliminate the requirements for PDIP uses to be served by central utilities.

[02:33:48] The applicant is proposing the use of well VCCD on site on the property that could provide up to 43,680 gallons per day GPD based upon a yield of approximately 52 gallons per minute for up to 14 hours per day that might be permitted by the Office of Drinking Water of the Virginia Department of Health.

[02:34:13] Staff acknowledges that ODW could provide a shorter period of pumping that would decrease the amount of GPD per day. In contrast, 39 single-family residents that could be built by Wright have an estimated demand of 13,650 gallons per day cumulatively using parameters contained in the Loudon Water Engineering Design Manual for uses that are within the Loudoun water service area in areas to the east of the rural policy area.

[02:34:49] Staff acknowledges the three acre lots permitted by right on the property are likely to contain larger homes than would generally be built in the Loudoun water service area. And that the parcels are likely to have more extensive lawns, gardens and plantings than typically found on smaller lots.

[02:35:11] And as such, the 13,000 gallons per day may likely be a floor for water demand. And at the same time, with the applicant proffering that 300,000 square feet of the total 986,000 square feet would be storage and warehousing uses with a lower water demand than other light or flex industrial uses, The water demand may be less than the 43,000 gallons per day estimated to be permitted by ODW.

[02:35:44] The applicant is also proffering to provide offsite well monitoring for two years following operation beginning for well VCCD as shown on the concept development plan.

[02:36:01] And well VCCD is located roughly south of where it says primary entrance road on the west side of the collector road there. Should the adverse effects be demonstrated to exist for off-site wells, the applicant would apply on-site mitigation or off-site mitigation that could include drilling new wells for the off-site wells. That was a request that staff had made of the applicant to add to the proffer. There are four CDP options that the applicant has provided,

[02:36:40] which include the Percival North Collector Road that is a CTP roadway on three of the options and the fourth one would not have that the roadway should the board remove the Percival North Collector Road from the CTP prior to development of the property. Option one shows the PNCR extending east from personal road opposite mayfair crown drive option 1a moves the collector road further to the east so that it runs southward along the western property lines of the wright

[02:37:19] farm subdivision homes option 1b does not contain the percival north collector road at all and option 1c which was presented as suggested by staff moves the northern collector road further to the south along the route 7 right of way so that it avoids a an archaeological site that may or may not have human graves in it um on the suggestion that by staff that there's not going

[02:37:58] to be any parking setback needed for either route seven or for may or may not have human graves in it the county archaeologist has said that they are unsure at this point so there would have to be further determination made so avoiding it would be the thing to do at this point um as you can see here there's also an expanded tree conservation area

[02:38:35] present in the northern and northeastern portions of all of the cdp options this was done at the request of the planning commission which preserves more of the old growth forest the expanded tca would also help with groundwater recharge provide greater buffer for the northeastern portions of the property as well as helping to mitigate noise and light off-site the cdp

[02:39:10] options depict site vehicle circulation with the primary entrance road extending east from Percival Road, approximately mid-site with a proffered traffic signal. The northern collector road is located near the northern property boundary and would be right in and right out opposite Mayfair Crown Drive. As long as there is no connection to Mayfair Crown Drive to Route 690, it would stay right in right out to avoid traffic traveling west into the make fair community

[02:39:48] the applicant is proffering to install signage to direct traffic especially trucks to use the primary site entrance to go south on percival road rather than for them to head north toward alder school road the planning commission this again forwarded the z map and z mod 621 Barnes and Frank. Okay. There we go. The Planning Commission considered this application at a public

[02:40:25] hearing and two work sessions and on February 12th forwarded the application to the board with a recommendation of approval by a vote six to two to one. Staff recommends denial by the board due to the inconsistency of the proposal with the 2019 general plan place type, the introduction of land uses and development pattern that inhibits the ability to promote development practices to realize the vision of the 2019 general plan policy and that impacts to surrounding neighborhoods are not sufficiently

[02:41:01] mitigated. The applicant has submitted signed proffers that have not been approved as to legal form by the county attorney's office. They have also submitted appropriate affidavits and notice, and staff

is available for any questions. There is also on virtual, on Webex, staff from Department of Transportation and Capital Infrastructure, Real Property Asset Management and Planning, and from the Health Department. Thank you. Thank you very much. We appreciate that. This is in Mr. Kirshner's districts. Again, we're

[02:41:39] going to do the questions, and then we're going to do the applicant and questions then we'll take a break and start doing a public the public's comments but this is mr. Kirshner's districts mr. Kirshner questions first sir thank you madam chair and thank you staff for the presentation just a couple quick questions I want to make sure I get out I understand was the Mayfair and the other development on the other side were they originally built on commercial property or were they always residential can you answer that question The -- I'll answer the Mayfair community first.

[02:42:17] That was originally -- I think it may have been A3. It was rezoned circa 1990 as Autumn Hill as an innovative quadruplex design and was subject to many lawsuits over the following 18 years or so against -- All right, so it's changed a lot from commercial to residential, what it is.

[02:42:47] All right, fair enough. Traffic, obviously I know a lot of residents are going to talk. One of the things that's concerning, one of the things that concerns me, and I just wanted to know if staff has the answer to my question. I know Hurst Road can be a real mess, and that's one of the reasons we're putting, but it occurred to me, and it wasn't really in the application here, that when the on and off ramps are put on in Hillsborough Road, that that is probably going to clear up a lot of the traffic going up and down Hearst.

[02:43:15] Have we done any of those numbers, figured out any of those numbers as to how much relief it would or would not give Hearst Road and how many numbers are on there? And if not, I can get it later. I just want to know if you had those. I think staff from DTCI might be best equipped to handle that question.

[02:43:33] And we can follow up with them if they have it. I don't know if they're here. If they are here, they can come forward and answer. If not, we'll get the answer later. Supervisor Kirschner, Mary Pham, DTCI, do you want me to respond? If you have the numbers real quick, because I have a couple of questions and one minute left.

[02:43:49] So they did analyze it with and without the interchange in place, and with the interchange, they were fine at that intersection with a signal. So the intersection does not fail with the on and off ramps on Hillsboro.

[02:44:07] Right. Okay, that's fair. I'd like to get the numbers ultimately at some point, so thank you for letting me know that. What is the square footage of the commercial property you mentioned in your opening presentation across the way? And how many acres is that?

[02:44:25] And if you don't have that, that's okay. I think that's important because it is a nearby commercial use. I'll move on to the next one since you don't have it ready. And that's fine. You guys can get back to me on that. I know that there was a lot of work done by the Planning Commission.

[02:44:40] I'm almost out of time. But can you tell me what some of the most significant commitments were that were made by the applicant? I know they went to two work sessions. you give me some thought on that uh sure um as i mentioned adding to the tree conservation area although their staff is still discussing with the applicant whether it would be a tree conservation easement or a tree save area in the proffers however they are the applicant is pledging to

[02:45:14] keep those trees up there the applicant or the also the mitigation for water that they would if necessary drill new wells off-site in the right farm subdivision if there was an adverse effect by the um on-site welfare valley commerce and the then proffering to provide 300 000 square

[02:45:44] feet of storage and warehouse uses. Okay, thank you. Thank you, sir. Thank you. I'm stuck. Thank you, Madam Chair. Question for staff, but I may need to ask the applicant. So the Mayfair community looks like it was more densely developed than Wright Farm. If this land were developed at the density of the Mayfair community, would you expect the water

[02:46:18] use to be above the projected 43,000 gallons, I guess, a day that is proposed to be used by this application. Offhand, I cannot say how many residences there are in Mayfair, which is, of course, within the town and getting water and sewer from the town of Percival,

[02:46:54] But I would imagine it would have, you know, certainly have greater water usage than the 39 by Wright homes that would be permitted for the 117 acres.

[02:47:10] And I could not answer as to whether it would approach the PDIP uses proposed. The applicant has offered for, I think, two years to monitor impacts on wells in Wright Farm if their application is approved and to mediate any negative effects by digging additional wells. Is that right for Wright Farm?

[02:47:42] If necessary. If it's determined that if those off-site landowners accept monitoring, and if it's shown that there's an adverse effect, and if the well went dry, they are proffering now to dig a new well.

[02:47:59] And is that the only mitigation that they are offering? No, they're also, they would be monitoring, and if it's indicating that there are adverse effects, they will certainly explain that they could reduce the amount of pumping from the on-site well, move it to a different location, I believe also drill their own well deeper, but I'll let their hydrocephalus answer that.

[02:48:29] Okay, thank you very much. Thank you, Mr. Crony. Thank you, Chair Randall. Thank you for the information. So my big concern is the fact that they're using an on-site well versus central utilities. The zoning ordinance requires that industrial projects be served by public utilities. Are the two properties in Percival that are light industrial? Are they connected to central utilities? Do you know? There's two properties that have light industrial.

[02:49:03] The properties to the west, south of Mayfair, they would be on-town utilities, certainly also the properties to the south of Route 7. Okay, thank you. So a third-party consultant did look at the water study, the hydro geologic study, and their comments were that we don't agree with their finding that impacts will not occur at off-site supply wells from operation of the on-site well of Valley Commerce.

[02:49:41] So I'm just wondering, is that accurate? Because I saw it in the staff report, too, that we can't necessarily firmly conclude that there won't be off-site well impacts. The county's consultants suggested, as written in the staff report, that there's a reasonable potential that there could be off-site effects.

[02:50:00] And the monitoring is only for 24 months, am I correct? Yes. Okay, and that I think there was only a 30-day period where you could get a new well. I think you have 30 days to respond. I believe so, or 30 days to respond to the certified letters offering monitoring.

[02:50:18] Yeah. Okay. All right. Thank you. Thank you. Mr. Sains. Thank you, Madam Chair and staff. Thank you for the presentation. All right. So in regards to the well, well, this about the property not being

hooked up to the town water, it's because at some point, correct me if I have this wrong, the town council voted not to allow them to get hooked up to town.

[02:50:44] - Town water, is that correct? - The town council actually twice within the past decade has turned down annexation of the subject property, which would allow them to get town utilities. - Okay, and then force them to be on well water.

[02:50:59] Okay, and then in regards to traffic, there's about a quarter mile between Mayfrey Crown Drive and Hearst Road. Has the traffic impact study considered future volumes and the impact of having two lights within that proximity to each other.

[02:51:21] I'll let staff from Department of Transportation, Capital Infrastructure, answer that one. Supervisor Sains, are you asking about a signal, I'm sorry, at which intersections, Mayfair Crown Drive and... Hearst Road. Hearst Road, H-I-R-S-T.

[02:51:38] Okay, yes. Well, actually, they analyzed a signal just south of Mayfair Crown Drive on Percival Road, as well as the intersection at Hearst Road, and the spacing does work. Okay, and then how about to be, anyone conducted a study to show that it is feasible to have a traffic light at the intersection of Hearst Road and Hillsborough Road, given the proximity to the county's Route 7 and 690 interchange?

[02:52:06] They looked at a signal at this intersection, and they did analyze it with the interchange. Okay, all right, thank you. And then we have four options in front of us for, you know, as you went through your slides for the North Collector Road in different locations, not having it and whatnot.

[02:52:27] So is that right now for the board, can we pick and choose which one or another option or is it all, look, so they say hypothetically if we were to approve it, it would be all those on the table or we can identify which one or another alternative? It would be governed by the proffer language, I believe, but the applicant, you know, I'll defer to them to explain their proffers themselves, but the proffers do apply to each of the four CDP options.

[02:53:04] I believe that the board could make their preferred option or direct what the option would be. Okay, yeah, because if we didn't direct, it'll just be open for interpretation, I guess. Okay, then last question with my last remaining time. There's a two-year period for the well study, but would that be, do you feel that two years is enough to say when it gets to full build-out?

[02:53:28] Again, hypothetically, if it's just approved, would that be enough time for full build-out with tenants moving in, or would that not be enough time for full build and full tenants in place? The way that the proffer reads, it would begin with 90 days prior to the beginning of operation of the on-site well, which is unlikely that they would begin operating this well without any tenants.

[02:53:54] All right. Thank you. I have some questions for the applicant when we get there. Thank you. So a couple things. One, I see my main job when I'm having these discussions is land use. I say all the time, I love land use in zoning. This is land use. Can you tell me how the Planning Commission got to a point where they will approve this application when they're supposed to be doing primarily land use?

[02:54:18] And I'm not criticizing them. I'm actually trying to understand because from a land use point of view, this is not an appropriate use from just a land use point of view. So I can go back and watch their meetings and such like that. I'm a little confused how the Planning Commission got to a yes on the land use piece.

[02:54:38] That's my first question. My second question is this. We do need this product in Loudoun County. We need this product very much. I had this discussion with Mr. Reiser last night. I asked him when an applicant or whomever needs to have a product that is storage or flex industrial and that type of thing, how often do we work with that applicant, that person to find that product somewhere?

[02:55:07] I believe that this is not the right land use but I know the product itself is needed. Is there a possibility that we could work with the applicant to find an appropriate place for this product type to go that's not fronting a main road and how often do we do that and do we do that because I don't I don't think it's for me it's not the use it is the land use that does not that does not work for me. So those are my two questions. And then I guess I would have questions about

[02:55:41] the well monitoring, but Ms. Umstad and Mr. Sains asked most of my questions I would have about water usage. Any more I'll just ask to the applicant. But for the questions I just asked can you can you help me out land use as i stated in the my presentation is percival jlma

[02:56:14] rural land use but you all you all are not recommending this based on the comprehensive plan correct that is which is a land use document so how does a planning commission whose main job is land use get to a yes on that they they i would say that they were swayed by looking at the the historical documents, going back to the Choices and Changes Plan, the Revised General Plan, and the Percival Urban Growth Area Management Plan that the board and the town jointly repealed in 2013.

[02:56:54] But the 2019 Comprehensive Plan, which is later than the 2013 plan, the 2019 Comprehensive plan says that this is not an appropriate land used for this piece of property, correct? That is correct.

[02:57:10] Okay, all right. It's my understanding. And again, I mean, I can go back and watch it. I can call my planning commissioner. I'm just curious how they got there. And then the other question? Which is the water use or? No, ma'am.

[02:57:25] My other question is, was, and I'm sorry, I know my time's up. I'm going to re-ask the question again. My other question is, do we help an applicant find an appropriate place for a product that we actually need? That would be something that would be done by the Department of Economic Development.

[02:57:42] Okay. Okay. All right. Dan, did you have anything you wanted to add to that? I was just going to add that if they ask for our assistance in evaluating sites, that's when the Department of Planning and Zoning would get involved, but Rachel was right that that would generally be economic development handling that task. Okay. I did ask Mr. Briser that last night, so thank you.

[02:57:59] Good evening. How are you? have 10 minutes, you can stay there or you can stand at the podium and we're ready when you are. Good evening, Madam Chair. Thank you for having us this evening. My name is Michael Romey. I'm a land use planner with Walsh Colucci here in Leesburg. With me this evening is Mr. Charles Yod from J.K. Land Holdings and Mr. Jamie Emery from Emery & Garrett Groundwater Investigations. We have a whole team of consultants as well. If you have any specific questions, we can have them come up. For the record, the affidavit for mailing and posting has been submitted. I'll wait for my presentation to come up.

[02:58:30] Okay, stop his time, please, until the presentation comes up. I think this is working now, by the way.

[02:59:01] It's your touch. You did that. I hit the on button. Okay, you're good.

[02:59:24] We're ready. Thank you. Thank you, Madam Chair. Again, the Valley Commerce Center, just in a brief summary synopsis slide here, it's a business park, as we all know, is in high demand in the county.

[02:59:41] It offers different uses that are very beneficial to the community, diversifies the tax base. is self-sufficient on its water and wastewater systems and it mitigates impacts better than the by right development. I do want to make a very clear point this is JLMA not rural policy area which is a focus of the comprehensive plan over the years. Planning Commission did recommend approval of the application. This slide pulls policies from the current 2019 general plan and supports the location of industrial type businesses around the towns and within the towns And it does focus on the origination of the JLMA from the 1991 Choices and Changes General

[03:00:16] Plan, which is where this property was originally designated for industrial community uses. The star is the VCC. To the north of that, you'll see a dashed line, which is the Percival North Collector Road. That's where that also originated. That is still in the comprehensive plan per the 2019 General Plan.

[03:00:33] Also, the Pugamp, as Rachel mentioned, also identifies this for light industrial uses. This was in place for a number of decades. The intent for this site back when these plans were adopted was for industrial use. And there's reason for that. If you look at the purple areas on the map, the GI is within the county, the M1 is within the town.

[03:00:53] They have your industrial zoning districts. A big portion of that M1 district is part of the Mayfair settlement. So they have industrial buildings that are far closer to their homes than we would propose in our site. And the light purple to the south is a more lighter CM1 industrial zoning district.

[03:01:08] this is the industrial core of the town of Percival. Just to give you a picture of some of the buildings that exist to the west of the property within Mayfair, it's in the upper part of the screen, the buildings there. On the bottom part of the screen are the buildings to the east of the site on the GI zone property within the county. We had a lot of community outreach with the residents of Mayfair and Wright Farm, and it was actually very helpful, I think, for us and for the residents.

[03:01:35] We had in-person discussions. It wasn't us versus them from a discussion standpoint. It was in-person common discussions, and we found a lot of common ground. We made a lot of changes, which I'll show you in the site mitigation section here. Just to point out, as Rachel mentioned, the tree conservation area in the northern corner was a significant give.

[03:01:55] We also have a number of specimen trees along the eastern boundary, which we're preserving, as well as the bottom part of the screen as well. We're saving over 70% of the existing trees on the site, which would exceed anything under the buy-right scenario. The brown areas you see on the screen are not building footprints. Those are just building areas that we're restricted to actually placing buildings into.

[03:02:15] So we can have multiple buildings within those areas. The buildings on the left-hand side of the screen will be a maximum of 32 feet in height. The buildings on the building envelope on the right will be a maximum of 40 feet in height. We are limited to 40 feet under the existing zoning and the surrounding zoning as well, so we thought it was prudent to match that zoning and actually go beyond that in some instances.

[03:02:36] You'll see that road going through the middle of the site, that's the Percival North Collector Road. We're providing right away reservation for that in three of our four scenarios. We're ambivalent toward it. We would be happy and fine with it if the board got rid of it. That was one of the things we heard from Mayfair and Wright Farm. If that goes away, everyone's happy.

[03:02:52] So we would be okay with that as well. That's why we put in a right in right out at Percival Road so we would not have through traffic going through that area as well. We did limit 300,000 square feet of the property to warehouse and storage uses. This limits the traffic generation and the well consumption or water consumption on the site.

[03:03:12] And it's one of the cues that we gave at the Planning Commission. We also, as has been discussed, provided a well mitigation and well monitoring proffer, which is significant for this site. There's a number of other issues I could go through, but unfortunately we just don't have time for that. Along the eastern boundary of the property, along Percival Road, we have committed to a 40-foot-wide enhanced buffer that would include a six-foot berm.

[03:03:34] It would also include vegetation and a fence. Along the western boundary against Wright Farm, we would have a 120-foot-wide enhanced buffer and the no Perseville Road collector option. It would also include a 60-foot-wide reforestation area. The closest home to this property or to a building on this property will cross Perseville Road.

[03:03:52] Perseville Road will be 280 feet. On the opposite side, on the eastern side, against Wright Farm, be minimum 358 feet maximum of 798 feet along that property line so there's a significant difference distance there we've created proffered renderings which are located or which you can see on the screen here we use the retail center at the enter or entrance of percival for the inspiration for that and the name is eluding me right now but it's the percival gateway shopping center And we used that for the inspiration for the design of the site.

[03:04:30] We wanted to have a rural aesthetic for the design of the property. For transportation along Percival Road, we added significant transportation improvements along the frontage. We widened the lanes. We widened the shoulders to VDOT standards. Currently, if you drive along Percival Road, it is a rural road that is substandard.

[03:04:49] We talked to the Mayfair residents about the intersection, Mayfair Crown Drive and Percival Road. There was an accident that occurred just before one of our meetings there. We are gonna improve that intersection with the left turn lane into Mayfair Crown Drive and provide a crosswalk to connect to the sidewalk on the other side of the road to help provide access for school children at the school bus stop there.

[03:05:08] We also have a construction management proffer in place that would address school children, school bus stop pickup and drop off. As Supervisor Kirchner mentioned, we do have the Route 690, Route 7 interchange coming into place just the west of our site. There will also be significant improvements at Route 7 and Route 287.

[03:05:26] those improvements will significantly increase or I'm sorry, decrease the pressure on Hirsch Road. And in fact, when the Hirsch, I'm sorry, when the Hillsborough Road, Route 690 interchanges in place, it will reduce traffic along Hirsch Road by about 25%. So for wastewater on the site, we compared to

the Byright scenario for Perseville Commerce Center, I'm sorry, the Valley Commerce Center, we have one comprehensive drain field on the site and one well that's central to the site.

[03:05:58] This requires pretreatment for this use. It also requires monthly operation and maintenance, and we have a public waterworks well on the site that requires detailed groundwater study and groundwater withdrawal. The buy-right scenario for 39 homes does not provide those things.

[03:06:16] There is significant difference from an environmental perspective that is beneficial from Valley Commerce Center versus the buy-right scenario. If we were to develop our site, if you look at the image on the left, We would have the one well, potentially a backup well in the upper part of the site, a drain field and a reserve field.

[03:06:31] If you look on the right side of the screen, you would see 39 wells and 39 drain fields throughout the site. The 13,000 number that was mentioned by staff is very much so a low number. We anticipate minimum 38,000 to 61,000 in a conservative scenario of gallons per day that would be used by a by right development because these would be larger homes, five to six bedrooms.

[03:06:53] They would all have, a good majority of them would have pools and other uses and in terms of irrigating the site in fact 45 percent of the homes within Wright Farm have pools and there are larger homes so you'd see something similar to that here which would be a much greater environmental impact than what we would propose so this time I'd like to turn my presentation over to mr. Jim oh yeah sure you can just say that to the right there Jamie there you go just as an introduction I served on the Loudoun

[03:07:31] County Water Resources Technical Advisory Committee for 20 plus years, as appointed by the board. And part of our job was to evaluate the resource, the groundwater resources in Western Loudoun. And so I'm very familiar with the concerns and the issues about that because we've been working very diligently to try to, we were, to try to get that under control. I want to talk about this project because all ground, many people don't realize that all the towns in Loudon, Roundhill, Hamilton, Percival, Hillsborough, so forth, use groundwater. That's

[03:08:07] what they use. The schools use groundwater. Most of your parks use groundwater. Groundwater is the mainstay for use in western Loudon. So I don't want this to be considered an unusual. And I've also was the person involved in developing Creighton Farms, Selma, Raspberry, Elysian Heights, or main subdivisions that Loudon Water now manages, those are all groundwater resources.

[03:08:35] And the purpose of the groundwater studies are to determine if they're going to be offside impacts. So one of the things we spent a lot of time and effort on was three years, I've got three minutes and three years of investigation to give you, but the information we have is very specific and I believe that we've demonstrated very clearly by meeting all the FSM requirements, which we have.

[03:09:02] We've gone through a hydro study process that's been reviewed by the county and been approved. The last years have been investigations, evaluating offsite impacts, and determining whether or not, and permitting the supply. So here, I just want you to see that the well that we're talking about is VCCD, it's in the middle.

[03:09:20] - Sir, I'm sorry, you all, time is up. - Okay. If you're asked questions, you can continue on in a question, but for that right now, your time is up. Supervisors, if you have questions, again, Mr. Kirshner, this is your district, so I will go to you first for questions, sir.

[03:09:37] So I want to follow up on some of the comments that we may make sure I understand it. And these might be leading questions. You can answer yes or no, just because I've got to get through a few things. I heard you say that in western Loudoun, west of 15, all water is either primarily from wells, And then in some cases, it's from reservoir as well.

[03:09:58] But primarily from wells. Is that fair? 90, probably over 95% is groundwater. Okay. So this would be groundwater. Correct. Whether it's coming from Percival or from wells on this location, it's still coming from the ground in the general area. Correct. Okay. Just want to make sure that I understand that.

[03:10:16] And you have how many wells that you have tested and looked at on this location? So we have one well called VCCD. Yeah, and that's 75. 7,000 gallons per day. And we tested that at 75,000 gallons a day, but we are going to be, the state will diminish that and restrict that to 40,560 because they allow you to pump 52 gallons a minute, which is the tested rate, for 13 hours a day.

[03:10:42] So that reduces it to 40,000. So I was kind of curious because you had 45 and staff had a number I think 13,000 or so with a 39 by right. I did a little research myself, AI. I said, and I'm sure this would be large lots if this went residential. I looked it up and I said, what does the average home use in water that's a 4,500 square foot home that has a sprinkler system? And it said during the summer, it's 2,000 to 4,000 gallons per day per home. That is far more, that is almost double what 45,000 is. So that alarmed

[03:11:18] me quite frankly that 39 homes could potentially use double what this facility is so that that was very very interesting to me so um in terms of the water i'm i'm kind of like okay what what is the what is what is the best decision here can the one the one thing that wasn't answered in your presentation that i asked staff um and that is uh the square footage and acreage of the other commercial park across the way that was part of the mayfair location do you do you happen to know that? I don't know off the top of my head we can certainly get that for you. And do you know what

[03:11:53] amount of water they use? You probably don't. Okay. Let's just find that out for you. Okay. Could I respond just one? Yes, sure quick. So when you're 80,000 or you know the 2,000 to 4,000 per unit that is very uh that is common but one of the things that's happening is that when individual wells are put out there there's no regulation. A person can go in and irrigate as much as they want. In this situation, this is going to be highly regulated by the VDH.

[03:12:21] The VDH is going to get a report every quarter as to how much water is going to be there and they're not allowed to take any more water out of the out of the ground. Okay, so my last question, since I'm almost out of time, are there any, west of 15, are there any reasonable better locations that you're aware of for flex industrial than this? And my understanding that JK is going to move some some of their passive storage here, and they employ about 1,300 FTEs, is that correct?

[03:12:52] The passive storage is that 300,000 commitment that is a minimum, and that doesn't have a lot of folks in it. It doesn't have a lot of employees, it doesn't have a lot of trips, and it doesn't use a lot of water. So that is just the long-term storage. Also, we have looked high and low for alternative sites that would fulfill this business objective they're just not out there when the chair was asking staff about would economic development help oh if they could

[03:13:25] there's such a shortage and such an extreme market trend that vacancy industrial vacancies are so tight and there's a variety of reasons for that we're not alone in the in the region but we are trying to find a place for loud businesses to locate we're also trying to manage the the trips and not have a negative

impact on the local road network along with the projects the transportation projects that are coming and also as jamie said our water is a

[03:14:02] de facto limitation we have to have the have the users that would use that resource and not exceed it thank you mr yet uh mr decroni i mean sorry missed mr letourneau i'll see you now you prompted her to fertilize you did you reminded me i'm going to be very quick though because we had a long night and a lot of speakers um i was going to ask specifically about what the users are i've heard different things and there's you know obviously industrial park business park there's a lot of variations of this so walk me through at this juncture

[03:14:41] understanding that there will be tenants and things like that should this proceed. But what is the internal sort of JK use, and then what would be for outside users? And what's that breakdown? As I just mentioned in the prior question, the long-term storage use is something that our organization is very interested in.

[03:15:02] You'll hear from folks about it. We're full. We're talking like storage rentals. we're talking about long-term storage primarily with the federal government as a client folks that are not this is not consumer focused or no folks that um folks that are um detailed um to points of service around the globe they need to pack up their households and store it and that is but wouldn't you want to be closer to where the population is for that it's not out here the market is full so then you look for the next best place to go that is when you say the market is full

[03:15:39] you mean that in eastern Loudoun County or central Loudoun County there are no sites that could be developed for storage? There are very very few opportunities and and if you're aware of them you can share it with us but we're in need of long-term storage and this would be a great place for it. It's a great place for it. You all do own a lot of land it might not be the highest and best use of it. Well we do own a lot of land a lot of it is put into conservation I meant in Eastern Loudoun, not in this.

[03:16:09] Okay, so what's the breakdown between what would be for that use? About a third of our 968,000 square feet right now is committed to in-proffers for that long-term storage use I'm trying to describe to you. The remainder would be a blend of Flex Industrial and other IP uses, such as we refer to it as light manufacturing.

[03:16:33] but if you go through the IP ordinance there's a number of there's a number of uses that could allow a contractor HVAC plumber all the folks that are about two-thirds of the total so it would be a blend between the one-third long-term storage and then a mix of flex and other IP including other commitments to building design and things like that or is it we when you say commitments to building design we have an awful lot of them we have the

[03:17:07] profit illustrative we have building height 32 feet on the west and 40 on the um on the east and um you see a lot of industrial applications where folks are right at 60 or asking for the ability to go up to 100. we also have a very low far this is 0.193 and that's because it's a a context-sensitive layout that we provided.

[03:17:32] All right. Thank you. Thank you very much. Mr. Crony. Thank you. I know Supervisor LeTurneau reminded me that I had to turn on my light. Yeah, sorry. So I have a question. You mentioned that you had data that showed that the homes, bi-ride homes, would use more water than if you did Flex Industrial.

[03:17:59] where is that data? Do you have data on that? You just said that, um, so if you do the buy right, the 39 homes, you mentioned that it would use more water than if you, than the flex industrial use that you're proposing. Um, the, um, flex, there's three categories that I was trying to describe to supervisor Letourneau. So for you, for you to come back and say, um, those 39 homes use more water than our Flex Industrial. Our Flex Industrial is just a component of it. And when you look at

[03:18:38] long-term storage, manufacturing, and Flex, Flex uses the highest because there's such a wide variety of uses that fall under that category. If you were a use in Flex that was just office, you probably have more people in it. But if you were a small percentage of office and more storage in the back of your HVAC contractor's establishment, you'd use less.

[03:19:04] But of the three categories of uses that we would have, long-term storage is a very low gallons per day per square feet. Then next up would be the manufacturing that would have some employees present. And then flex would be a higher use.

[03:19:22] But all told, our uses are capped at the 40,000 figure that Jamie mentioned. And if you are, if that's what you have to use, if you went to 39 individual wells, we believe that water demand would be significantly higher.

[03:19:40] But that's anecdotal. That's not data, though, right? Just to follow up on that, we did submit an email to Rachel that detailed this in much more detail. We also forwarded a copy to Vice Chair Turner because we had a discussion specifically about this. So it is public information that we can provide to you.

[03:19:58] It could be anecdotal. It's not because I have a two acre lot. I have a well. I don't irrigate and I don't have a pool. So I think it could be more anecdotal data rather than real data. More like extrapolating.

[03:20:13] We understand your point, and we believe that we have provided a great deal of information on how you get to that gallons-per-day range for that residential alternative. So we are glad to explain that further, make our sources available.

[03:20:32] I would say it's not anecdotal. The other side of that is measuring and preparing for the demand for our uses that I've just described. That's also not anecdotal. That's based on actual consumption after reviewing utility bills for like uses in other locations.

[03:20:52] So we'd be glad to share that with you in greater detail. Okay, thank you. Mr. Sains. Thank you, Madam Chair. Thank you for the presentation. When was the last time you had a community meeting again? September of last year. September of last year.

[03:21:07] So would it be accurate to say you've made some changes since then? We have, and a lot of those changes were based on that community meeting. All right, but you've had made changes since then from that community meeting during the planning commission, correct?

[03:21:24] Yeah, we had two work sessions after that community meeting. All right, well, has the applicant thought about having another community meeting since the planning commission? We have not. No, we have not. If that's the request of the board, we can certainly look into that. I think so, in my opinion.

[03:21:42] I'm pretty sure some of the folks maybe came out and watched the Planning Commission meetings or attended. I don't know. But if you made changes since then, and the last time you had a true

conversation with the community is back in September 2025, and here we are in April 2026, I think, so that makes sense, just my opinion and a suggestion.

[03:22:03] Would the applicant be willing, because right now you're looking to proffer doing up to only two years of monitoring with the wells, Would the applicant be willing to proffer beyond that? And in my opinion, I think it should go far beyond because just within two years, you're still not going to be at build-out, even though, yes, you might get your occupancy permit.

[03:22:23] But we all know most of the time when you get your occupancy permit, tenants are not moved in at that point. So it's going to be a few more years before you're at full build-out, full tenant capacity. So, again, hypothetically, if this was to come to pass, would the applicant be willing to proffer to go possibly until, you know, four or five years into full operation?

[03:22:44] We're certainly willing to increase that 24-month period. I think if we were able to share with you the details of what that monitoring actually involves, and it's stated in the proffer, very, very thorough effort.

[03:23:00] um you you would see that um maybe maybe there would be a sweet spot of amount of time but we would be willing to increase that 24 months i think you should because again we know for a fact once you get your occupancy permit you're still not going to have tenants in there you still might be doing building so i think beyond uh building and then having again hypothetically once you have tenants moved in and full operation you should go a few years past that time thank you So, Mr. Yed, with respect, I have to agree with my colleague, Mr. Crony.

[03:23:36] I do think that the water usage is anecdotal, and at the very least, it is, you are giving probably the worst case scenario of what water usage would look like. You're assuming the total irrigation, you're assuming pools, for gracious sake.

[03:23:53] And so it is, for me, it is more appropriate for me to use the numbers that were given to me by our staff who don't have any stake in the game financially or otherwise.

[03:24:16] I think that's the more appropriate thing to do. So I'll just say that. Now, truthfully, and I've said this before, I've read all these things. But my biggest concern actually is not -- well, my concern is always water because -- always. But my -- I am -- I am -- I'm land use.

[03:24:34] For this application, for me, it's a land use. And so I did hear you say -- I think I heard you say, if not, please correct me -- that you all couldn't find another place. And I will, with respect, push back slightly on my colleague, Mr. Letourneau's statement of the applicant has lots of land because this very applicant actually asked for this very use somewhere else, and we said no.

[03:25:01] And so we can't have it both ways. We can't, you know, hit him for wanting to put this here when we've said no to someplace else that might have been more appropriate. I'm just going to say that. However, in western Loudoun County, which is what we're in right now, are you saying that you have asked Mr. Reiser or you've asked our staff to look at possibilities and places for this type of use and they have come up with nothing.

[03:25:32] Is that what you're saying? I think we have had multiple conversations with Mr. Reiser and his staff about the extreme shortage of usable sites for this type of use. And we have looked extensively west of Route 15, and they're not there.

[03:25:57] I hold myself to my own time, so I need to just – the illustratives are pretty amazing. Are those real, or are those – Those are proper. No, that's how it would actually look. That's how the buildings will be built. Okay, that's how I actually look. I have gone out there before.

[03:26:17] I'm going to go out again and take another look. But I don't have any more questions for right now. What we are going to do right now, because we've been on the day since 6:00 and we haven't taken a break yet, so we're going to take a break. It's going to be 15 minutes. We're going to come back.

[03:26:33] We're going to do board comments. I'm sorry. We're not going to do board comments. We're not going to do board comments. We're going to do public comments. Mr. -- you're going to be leaving, right? Mr. Turner has to leave. Ms. Brixman is going to join me over here, if that's okay with you, because Mr. Turner has to leave, and then we will have Mr. Kirshner make a motion, and we'll go from there.

[03:26:57] So everybody, let's take 15 minutes.

[03:27:00] I have to do that, too.

[03:54:11] We are back, everyone, and we're going to start public comments. I'm going to remind everyone that when you come up to the podium, you can give your name And if you'd like to give where you reside, you can give that as well. You will have two minutes.

[03:54:28] And when your two minutes is up, I'm going to ask you to yield the podium to the next speaker. I will also say that in this boardroom, we don't do cheering and jeering. So if you want to do jazz hands, you can. And sir, hi, how are you?

[03:54:44] Good evening. Hi. I'm your first. You're not, though, with due respect. But I'm sure you're very fast, because I have a practice of doing elected officials first.

[03:55:00] And I'm sure you're right after that, though. My first person is going to be Mayor Christopher Berteau, followed by Councilwoman Erin Rayner, followed by Councilman Eric Stout. And then, sir, if you are Lloyd Harding, then you, sir. Okay, wonderful. Good evening, Mayor.

[03:55:17] Good evening, Chair, and the entire Board of Supervisors. I want to urge you to not move this forward, the rezoning application for the Valley Commerce Center. As proposed, it will have severe and long-lasting impacts to the surrounding residential neighborhoods.

[03:55:35] And by surrounding, I mean they literally go all around it. This includes more than 600 homes and brings with it the risk of catastrophic increases in traffic and long-term impacts to the availability of groundwater for both residential wells and the local municipal water supply.

[03:55:52] As proposed, this project was rejected by your own planning department because it's fundamentally incompatible with uses envisioned in the county's comprehensive plan and also in Percival's comprehensive plan for this area.

[03:56:07] Its placement within the joint land management area fails the test of providing uses that complement uses in the town of Percival and also fails to offer land uses compatible with the predominantly rural character of the surrounding land.

[03:56:24] The amount of light industrial space proposes more than six times the amount available inside the town, which would lead to a hollowing out of the commercial cores of the town. Furthermore, the

Valley Commerce Center would overstress local roads and endanger local residents with heavy truck traffic.

[03:56:40] A note that the bridge that provides connectivity to Route 7 was completed in the late 1980s. Its service life would be diminished by a large increase in heavy vehicular traffic, should that occur.

[03:56:56] Should it be required to be removed from service for repairs or, heaven forbid, replacement, The only other viable route, and it only becomes viable at the point that the 7690 interchange goes into service for vehicular traffic takes the past hundreds and hundreds of students at Mountain View Elementary School and Woodgrove High School.

[03:57:16] During a hearing by the County Planning Commission, the applicant stated there's a need for additional flex industrial space. I'm sorry, your time is up. Sorry. All right. We will have Councilwoman Erin Rayner, followed by Councilman Caleb Stout. And actually, is Susan Khalil, are you here?

[03:57:33] I'm sorry. You are also on my list. I'm going to go on and call Mr. Lloyd, Mr. Harding, because I told him I would, but then I'll go to you, Ms. Khalil, okay? Thank you. Good evening. Madam Chair, Board of Governors, I would like to personally actually thank you for everything you do for our great town, all the projects, all the funding you give our town.

[03:57:52] I truly appreciate everything you do for us. Since you are all now in complete control of this project's future, and our town has no authority anymore i am here not as a member of percival town council truly but as a resident of the mayfair development i am asking the board to consider the traffic impacts on percival road and mayfair crown otherwise known as the infamous northern collector road the road is already a safety concern and mayfair crown it is a residential road ending at a school road the new center field road that goes to woodgrove high school i do not know if you plan on approval or not of this project

[03:58:28] but can you please, please remove the Northern Collector Road portion of Mayfair Crown from Percival Road that ends at Centerfield Road that goes to Woodgrove from the transportation plan. I called Mr. Kuhn himself and asked him if he could please remove that portion of the road from one of his plan sites and he is more than willing to remove it. However, he said he was required by the county to keep it in one of the plan options because it's the Northern Collector Road on the transportation plan so if he's willing to remove it i would be asking the board in your consideration of this project to remove the northern collector road portion of mayfair crowned it is a residential

[03:59:05] road it ends at a high school road and if the road eventually connects it becomes an extreme danger to both the high school student drivers the people in my neighborhood and also where it ends at percival road that road is very narrow and has already caused a death with one tree falling down and some major accidents.

[03:59:25] I also would like to consider with the project, I do not like the exit and entrance on Percival Road because of the state of the road. I think it is a big accident waiting to happen, especially with left turning cars out of our neighborhood. And I please ask that you remove the entrances and exits on Percival Road and see an alternative on the other side of the project.

[03:59:47] Thank you. Ms. Councilwoman Rayner, what I'm probably going to do is give you a call and come out and we can just drive this together. I would love to take you. Because I don't have a good mind's eye and I kind of know what you're talking about, but not completely.

[04:00:04] So I'll give you a call and we'll go out and drive it and then go get ice cream or something. I would love it. Thank you. Councilman Impervial, Mr. Stout, before you continue and after you would be Lord of Lloyd Harting and after that would be Councilwoman Khalil. I do want to say that, just a point of clarification, our Town Counts, our Planning Commission did not disapprove this. So I just want to say that. Ready for you, sir.

[04:00:37] Evening Chair Randall, Vice Chair Turner, who I trust is with us in spirit, members of the Board of Supervisors. My name is Caleb Stout. I live at 210 Upper Brook Terrace in the Mayfair neighborhood of Percival and I also serve as a member of Percival Town Council. The Valley Commerce Center rezoning application which has come before you tonight for consideration raises significant concerns for our community. I'd like to outline two key concerns for you tonight taken directly from the county staff report. The first issue is water. The project's reliance on on-site wells and septic systems poses a significant threat to water availability for surrounding areas. The staff report highlights that the development quote

[04:01:14] has a potential to have off-site effects on water availability for the surrounding area that also relies on well water, unquote. On January 9th of last year, the town of Percival moved to mandatory water restrictions in response to worsening drought conditions. A project such as VCC, which will draw tens of thousands of gallons per day from our local aquifer, can only exacerbate this problem, which has become so dire there were multiple bills in this year's session of the General Assembly to try to address it. The second, and by far the most severe issue, is traffic.

[04:01:43] In 2019, a 13-year-old girl was tragically killed on Percival Road by a falling tree. It is this same Percival Road which, if this project is approved, will be subjected to 3,500 additional vehicle trips per day. This road is not capable of handling this level of traffic. The intersection of Percival Road and Hurst Road is projected in this traffic study to operate at level of service E or worse.

[04:02:04] During the school year, I can tell you from personal experience that on more than one occasion, I have seen westbound traffic at that intersection backed up almost all the way to Maple Avenue, a distance of almost a mile. On a more somber note, this is not an intersection where I want traffic to degrade, as it was the site two years ago of a car accident that totaled one of my vehicles with two of my daughters inside.

[04:02:25] Thankfully, they were okay. Those involved in future accidents may not be. The agenda before you tonight says that county staff cannot support this application. I respectfully urge you to heed the staff's recommendations and not support it. Thank you for your consideration. Thank you, sir. Mr. Lloyd Harding, followed by Councilwoman Susan Kalil.

[04:02:43] Good evening. Good evening. My name is Lloyd Harding, and I live in Purcellville. I am not a member of the Purcellville Town Council. I'm here to respectfully urge you to vote against approval of the rezoning application to build the Valley Commerce Center, and here's why. First, a 2024 traffic study revealed that on average, 427 trucks travel on Purcellville Road over the Route 7 bridge every day during the morning and afternoon rush hours, and most of those trucks travel to and from the Mayfair Industrial Park, which is located off of Purcellville Road.

[04:03:14] If the Valley Commerce Center is built, then the number of trucks traveling on Percival Road will increase significantly, worsening the daily traffic backups that already occur at the intersection of

Hearst Road and Percival Road. Second, Percival Road is a narrow country road, and both lanes are only 7 feet 4 inches wide.

[04:03:32] However, the average tractor-trailer is at least 8 feet 6 inches wide. Also, there are no shoulders on Purcellville Road, so it is physically impossible for two tractor trailers to pass each other going in opposite directions. And there are two signs on Purcellville Road, which specifically state that through trucks are prohibited on the road.

[04:03:52] Furthermore, Purcellville Road north of East Nichols Lane is not a town of Purcellville Road, nor is it a Loudoun County Road. It is a Virginia Department of Transportation Road. so enlarging it to accommodate tractor trailers would require approval by and funding from VDOT.

[04:04:08] Third, since tractor trailers cannot access the Valley Commerce Center entrance using Percival Road, there's only one way for them to reach the entrance, and that's for them to take Mayfair Crown Drive, enabling direct access to and from Hillsville Road to the west. The lanes on Mayfair Crown Drive are 8 feet and 8 inches wide and have shoulders several feet wide, so the lanes are wide enough to accommodate two tractor-trailers passing each other going in opposite directions.

[04:04:34] However, tractor-trailer traffic on Mayfair Crown Drive, which is the only street into and out of Mayfair residential neighborhood, will create a safety hazard for children crossing the street to reach and leave the school bus stop on Mayfair Crown Drive. Thank you. Thank you, sir. Councilwoman Susan Khalil, followed by Daniel Carville.

[04:04:53] Good evening. Good evening, Madam Chair, Supervisors. I stand before you today to respectfully urge you to deny the reserving application for the Valley Commerce Center. This proposal is not new to the community as has been stated. It has already been rejected twice for annexation into the town of Percival. Each time the message from residents was clear, we do not want this scale or type of development at the gateway to our town. This sentiment has not changed. This project is fundamentally incompatible with both the county's comprehensive plan and the town of Percival's comprehensive plan. These plans exist for a

[04:05:30] reason, to guide thoughtful, consistent growth that reflects the character and long-term vision of our community. This proposal does the opposite. It introduces nearly one million square feet of industrial development into an area explicitly designated as a rural transition meant to preserve open space, protect neighborhoods, and maintain the character of Western Loudoun.

[04:05:54] Traffic is another concern. This project would generate thousands of trips per week along a two-lane road already used by families, school buses, and students traveling to nearby schools. The idea that this level of industrial traffic can be safely absorbed is simply not credible. The risk to public safety is real and immediate. This is not about economic development versus no development. It is about the right development in the right place, consistent with plans and values this county has already adopted. Approving this rezoning would set a dangerous precedent one that signals our comprehensive plans can be set aside. That community opposition can be

[04:06:31] overlooked and that incompatible development can be forced into areas never intended to support it. The residents have spoken, the town has spoken, your planning staff has spoken. I ask you to listen and to protect the integrity of our plans, the safety of our roads and the character of our community

by voting to deny this application. Thank you very much. Thank you. Daniel Carville followed by Dr. Gary Ellen Bojan. Good evening. Good evening. Thank you for serving our county.

[04:07:03] This is unbelievable the amount of time you guys put forward. Tonight I had a well-written speech but I'll be perfectly honest I'm tired so I'm going to speak from the heart. We talk about land use. 262 homes in Mayfair community, 100 in Wright Farm, 34 in Chestnut Hills, another 72 in Catoctin Meadows, and 137 in Old Dominion Valley. That is what actually surrounds the Valley Commerce Center development plan. This is a residential community. This is a residential area. Also keep in mind, all those folks that are going to be traveling up of Percival Road

[04:07:42] or Hillsborough Road will be traveling up to go to Mountain View Elementary and to Woodgrove High School. I want you to all think back for a moment. I looked up at all your bios. You're all parents of grown children. I want you to think back when you first started looking for a home and you were looking for something that was safe for your family, somewhere safe that your kids could play in the streets, somewhere you can go to school and commute and not have to worry about heavy

[04:08:16] industrial traffic. You wanted a home, a place and a community that matched your values. That's exactly what the people of Mayfair, Wright Farms, Chestnut Hills, that's what we want when we chose this area for our homes to start our lives. We wanted a safe neighborhood. This comes down to a choice? Do you want to keep the integrity of a community or do you want to add more industrial space on a piece of land? These are the critical questions that we need you to answer, but I want

[04:08:54] you to put yourself in every person's shoes. What would you do? How would you act if this was you and this was coming next to your home? Thank you for your consideration. Thank you for your time and thank you for serving Loudoun County. Thank you.

[04:09:10] God bless you. Thank you. Dr. Gary Ellenbogen, followed by Michael Parrish. Good evening. Good evening. Hi, I'm Dr. Gary Ellenbogen. Good evening, supervisors. To begin tonight, I would like to first commend Mr. Kuhn for being a conservationist.

[04:09:30] He has donated much of his land holdings to conservation easements, which preserves the land. However, in the proposed Valley Commerce Center, there are a multitude of concerns that I have and my neighbors have. A few years ago, a hearing was held at Patrick Henry College in regards to this matter.

[04:09:50] I think it was held January 26, 2022. At that time, we were told that this land would be a data center as well as an industrial park. This proposal failed, and later other proposals of the same property also failed.

[04:10:07] We were told at that meeting by Mr. Kuhn himself that you can't stop progress, and this is the future of Percival. Needless to say, this wasn't very well received. What concerns me about the Valley Commerce Center is how it would affect the bucolic nature of Percival.

[04:10:24] Many people move out this way for that small-town, rural feeling. It certainly was for my wife and me when we moved here. We moved from Ashburn five years ago, and I've been in the northern Virginia area for 52 years and have seen many many changes. One of the most shocking changes is what has happened to Sterling and Ashburn. It used to be a beautiful place in a beautiful area but is now inundated with industrial parks and data centers. It has been ruined and should be a cautionary tale for Percival. As a side note the same thing is happening to Leesburg right now unfortunately.

[04:11:02] With this industrial park traffic will exponentially increase. I live in the chestnut hills community and work at tyson's corner i do not need to make my commute any harder than it already is unfortunately i do not have a helicopter in three landing pans on my property like mr coon has i wish i did i'm also sure thank you so much michael paris followed by chase stewart followed by ryan goler good evening sir good evening madam chair and members of the board my name is michael paris and i live in percival virginia thank you for allowing me to

[04:11:38] speak tonight. County planning staff has recommended denial of the application finding it inconsistent with the comprehensive plan and not adequately mitigated given this proximity to existing homes. This site is designated as a rural neighborhood not an industrial park. The application is not just seeking approval they're asking to eliminate key requirements for roads water and wastewater infrastructure. Those standards exist to protect the safety of existing residents. Families in this area rely on non-constant private wells. This

[04:12:15] project introduces high-capacity industrial water use into that system. Even after multiple submissions, the county has stated that there is insufficient information to fully evaluate water usage and impacts. That uncertainty should not fall on the families who already live there.

[04:12:34] Percival Road is a narrow two-lane road. It is not designed to accommodate sustained heavy truck traffic. According to the county's own analysis, this project would generate over 3,000 daily trips. Many of those include heavy and extra heavy trucks. That fundamentally changes how that road functions today for the people who live there. And the impacts are not just traffic. Industrial scale lighting, activity, and intensity are not adequately mitigated next to existing neighborhoods.

[04:13:04] This is how industrial creep happens, one approval at a time. In a 2024 survey of homeowners in the Mayfair Wright Farms and Chestnut Hill communities, 93% opposed this project, 93%.

[04:13:22] For many families, homeownership represents stability, investment, and trust. This proposal puts that at risk. I respectfully ask you to deny this rezoning. Thank you for your time. Thank you, Mr. Parrish. Chase Stewart, followed by Ryan Goeller, followed by Audrey Young Chase Stewart, Chase Stewart going once, going twice Ryan Goeller, hello You'll be followed by Audrey Young, followed by Tony Howard Good evening, sir Good evening, Chair and members of the Board My name is Ryan Goeller, I live right here in Percival

[04:14:01] Or not here, in Percival I'm here tonight in support of Valley Commerce rezoning application I frequent the existing industrial park off Nichols Lane Weekly for local services, everything from contractors, service providers, and small businesses that our community relies on every day. From a personal standpoint, I can say these uses are an important and well-used part of my life in Western Loudoun. Professionally, I sell and lease industrial and flex space throughout Loudoun County. I work directly with businesses that are trying to locate and expand here, and I can tell you very clearly there is a significant

[04:14:35] shortage of industrial space in Loudoun County, especially in Western Loudoun. Today, industrial vacancy countywide is hovering around four percent and in western loudon it's near zero because this is because of this supply constraint rents have nearly doubled over the past several years and many local businesses simply cannot afford or find space at all this lack of space limits the type of local service and community oriented businesses that rely on flex and light industrial buildings such as research and development for tech companies sports training facilities gyms karate studios

[04:15:10] balance house businesses, plumbing and electrical service contractors, HVAC companies and many other small businesses that serve this community every day. On top of an already constrained supply, Loudoun County is projected to lose approximately 2 million square feet of existing industrial inventory in the coming years due to redevelopment. This will only make the shortage more severe.

[04:15:31] The Valley Commerce Center application directly addresses this need and just as importantly, it does so in the right location adjacent to an existing industrial park where these uses already exist today. It's a logical extension of existing land use. I respectfully urge the Board of Supervisors to support this rezoning application. This project is needed, it aligns with existing development patterns, and it helps ensure Loudoun County can continue to support the business and the services our community depends on. Thank you. Thank you, sir. Audrey Young, followed by Tony Howard, followed by Scott Moffitt. Good evening. Hi there, I'm Audrey Young. I'm a Percival resident

[04:16:11] and a Virginia attorney. I'm pleased to be here tonight to start to get some answers about this project. As the chair just mentioned earlier, I've been to a lot of these meetings. The applicant and his staff speak in platitudes and generalities and they never ever answer the actual questions we have about a project that is so detrimental to the health and safety and general welfare of the residents of Percival and by the way the other people that work in Percival and have to get there every day it's not just limited to the residents I've developed a top 10 list of questions

[04:16:50] I have that are not getting answered first of all they've conveniently framed this in this issue traffic wise as solely concerning Hurst Road that's so false in order to get from the east to Hurst Road, you have to transit 287. 287 and 7 is a terrible interchange. As far back as 2012, I sent you all the VDOT report about the changes that need to be made at that intersection that we're still waiting for 16 years later, but it is going to happen in 2028. And one

[04:17:26] of my comments is what's going to happen when that interchange looks like 9 and 287 now. I don't know if any of you have been up there, but it backs up for miles now because of the construction that's going on there. So what's going to happen when they have to change or take 287 and 7 and route the traffic?

[04:17:49] Is it going to go through Hamilton? Is it going to go on 9? These are the questions we need to get answered. I also, we've talked about some of the schools that are implicated about this, but Valley High is directly implicated by this. The students who go to that school and drive themselves have to go down Hearst to get to the turnoff to go to their school.

[04:18:11] And with this additional traffic, how is that going to happen for them? I also want to talk about the church. Your time is up. It goes really fast. But thank you. I sent my slides. That's what I was going to say. Thank you so much. Tony Howard, followed by Scott Moffitt, followed by Joseph Parker.

[04:18:29] Good evening, Mr. Howard. Good evening, Madam Chair and members of the Board of Supervisors. My name is Tony Howard, and I'm the President and CEO of the Loudoun County Chamber of Commerce, representing more than 1,000 employers here in our Loudoun community. And I'm here tonight to express the Chamber's support for the proposed Valley Commerce Center.

[04:18:46] Loudoun faces a serious and growing imbalance in its economy, and this imbalance is created by a critical shortage of flex industrial, light manufacturing, and warehouse space that is constraining

small business growth. County and regional data shows that vacancy rates for this product are in the low single digits and in sub-submarkets, zero.

[04:19:06] A healthy market should be somewhere around 6% to 8%. This crisis is truly hurting local businesses. We have heard from our members that companies cannot find space to locate and expand, and existing businesses are being priced out of the market. These are the companies that employ Loudoun residents and keep our local economy functioning.

[04:19:25] I'm talking about HVAC companies, contractors, logistic providers, and other types of service businesses. If we fail to act, Loudoun will continue to lose these employers to neighboring jurisdictions. It's going to weaken our small business base and limit our ability to create a more balanced and diversified economy.

[04:19:43] The Valley Commerce Center is a direct response to this problem. It would deliver nearly 1 million square feet of the exact type of space that our small businesses urgently need. Approving this project is a crucial step towards addressing a structural imbalance in the marketplace and ensuring Loudoun remains a place where small businesses can start, where they can grow, and where they can thrive.

[04:20:06] I want to thank you all for your service to our community, and I thank you so much for your consideration of our views. Thank you, Mr. Howard. I'm going to go to Scott Moffitt, and I'm going to go back to Chase Stewart, who's actually on the phone. But we'll do Scott Moffitt first. Good evening, Mr. Moffitt. Good evening, Chair Randall and members of the Board of Supervisors.

[04:20:22] My name is Scott Moffitt, and I'm a principal at Chris Sock LLC. a general contractor out of personal virginia i'm supportive of the valley commerce center as an area to help fellow businesses like mine grow and they're while serving our local community chair randall you said it earlier tonight there's a need for this product i think we can both agree that is due to the lack of this space in western louden and what that does is due to the lack of available space as it drives up our rent and makes businesses like mine have to make a tough decision

[04:20:57] of how can we stay in Western Loudoun or force us to move out. For years the board has stated that they support diversification of the local economy and have advocated for services and business to locate towards the towns and not in rural areas. If you reject this I don't see how that's possible.

[04:21:16] I support this application and I ask that you support this application as well. Thank you. Thank you, sir. We'll go back to the phone for Chase Stewart, and then we'll go to Joseph Parker and David Cox. Mr. Stewart, are you on the phone? I am, thanks. Sorry, I was initially signed up to be.

[04:21:33] Good evening, chair and members of the board. My name is Chase Stewart, and I'm a commercial real estate broker working in Loudoun County and the broader Northern Virginia market. I'm speaking here today in support of the Valley Commerce Center. From a market perspective, the need for this type of project is urgent.

[04:21:51] Industrial and flex space in Loudoun County is extremely constrained. Vacancy rates are around 4%, and in submarkets like Leesburg, availability is effectively zero. For flex space, that kind of light industrial product does support small businesses, contractors, service providers.

[04:22:07] And local entrepreneurs, the vacancy rate is even lower. I see this firsthand every day. I work with tenants who want to stay in Loudoun County, tenants who live in Percival and surrounding areas, businesses that employ local residents and serve the community, but simply cannot find suitable space. When that happens, they don't wait. They leave. They go to other jurisdictions where space is available. We've seen multiple businesses leave for Prince William and Frederick County that's lost economic activity, lost jobs, and lost tax revenue in Loudoun. The Valley Commerce Center directly addresses that gap. It introduces much-needed inventory in a location that is already surrounded by existing commercial and industrial zoning.

[04:22:46] From a land use standpoint, this is a logical and appropriate extension of the current development pattern. What also stands out about this project is that it isn't thoughtfully designed to mediate impacts. The applicant is committing to buffering, and building heights are significantly below what zoning would otherwise allow.

[04:23:05] From an infrastructure standpoint, the transportation improvements are meaningful. In my professional opinion, Valley Commerce Center is exactly the type of project Loudoun County needs. It meets a clear market demand, fits within the existing land use framework, and has been designed with appropriate safeguards.

[04:23:24] I respectfully encourage you all to support this. Thank you for your time. Thank you. Thank you very much. Joseph Parker, followed by David Cox, followed by Barry Morris. Good evening, sir. Good evening. My name is Joe Parker. I'm a resident of Percival, and I'm here to voice my strong support for the Valley Commerce Center in Percival.

[04:23:43] Our town faces a real shortage of light commercial rental space, space that small service-oriented businesses rely on to operate close to the customers they serve. Many startups and local service companies are being priced out of our current market or forced to locate far from the community they support.

[04:24:01] That's just not bad for business. It's bad for Percival's convenience, jobs, and local economy. The Valley Commerce Center would provide flexible, affordable units tailored to the needs of small businesses that serve our immediate area. Contractors, landscapers, repair services, and other startups that don't need or can't afford large warehouses or high-rent storefronts.

[04:24:23] By creating accessible, appropriately-sized units, the center would keep homegrown businesses local, create jobs, and maintain the character of our community. On a personal level, I run three small construction businesses that need nearby space for equipment, materials, and administration. Having units close to my employees in my home would reduce travel time, lower overhead, and allow me to better serve my customers.

[04:24:47] Please support the Valley Commerce Center so our small businesses in our town can thrive. Thank you. Thank you, sir. David Cox, Barry Morris, and Jeff Tauri. Good evening. Good evening. Chair Randall and members of the boards and supervisors, thank you for the opportunity to speak to you. My name is David Cox. I'm the president of JK Moving Services and have been a resident of Greater Purcellville since 2018.

[04:25:14] J.K. has been a proud member of the Loudoun County business community since 1992, when we relocated from Fairfax County to Sterling, a move that became critical to our company's future as the

cost of facilities in Fairfax County became increasingly untenable for small businesses like ours at that time.

[04:25:33] We moved to a warehouse in Sterling and have prospered along with the county for the last 34 years, providing steady jobs to our 1,300 team members who primarily live and work in Loudoun County while proudly serving Loudoun County residents and businesses.

[04:25:50] Today, we see the proposed Valley Commerce Center development as an opportunity to continue on that path for years to come by relocating a significant portion of our long-term storage customers to this location, which is ideal for our current business needs.

[04:26:05] We also understand the concerns expressed by members of the nearby Mayfair and Wright Farm communities regarding traffic patterns and the impact on water resources. In that regard, it is important to note that our plans do not include the move of our dispatch operations to these facilities.

[04:26:23] Valley Commerce Center would provide much-needed supplemental warehouse space for our long-term storage customers, including archives and record storage, long-term storage for government personnel who are on overseas multi-year assignments, and industrial storage lots with minimal inbound and outbound activity.

[04:26:40] Our primary dispatch functions will remain in Sterling. Given the realities of the very limited opportunities for many businesses, not just the JK organization, we are also exploring opportunities for expansion in Clark and Prince William counties, but our sincere desire is to remain in Loudoun County, which we have called home since 1992.

[04:27:04] Thank you for your time and consideration. Thank you, sir. Barry Morris, followed by Jeff Turry, followed by Janelle Bellinger. Good evening, sir. Good evening, Chair Randall, members of the board, supervisors. Just to go on record, I want you to know that no laptop here, just paper.

[04:27:27] So my name is Barry Morris. I'm a resident of Hamilton. I have a little mini farm there that I put in ag use. But I'm here representing Caprillo. We are a global mobility management company, been in business 27 years, and we were founded and started right here in Loudoun County, and we employ over 200 employees.

[04:27:52] Right now, one of our biggest challenges that we face is the lack of attainable industrial and flex space in western Loudoun County. Most available options are either too expensive, located too far east, or simply don't meet operational needs of companies like I run.

[04:28:10] That puts a real pressure on our ability to stay competitive and, frankly, to stay local in Loudoun County. I know Ryan said a couple of these facts, but we're pretty close. But I see there's around 3% flex space, industrial space in Loudoun County, of which is less than 1% in western Loudoun, which poses a big problem for us.

[04:28:33] Five years ago, I was paying \$9 triple net for our space in eastern Loudoun County. Three years ago, that was raised to \$18 triple net. And I just got my renewal this year for 2026, and it was \$28 triple net.

[04:28:52] So companies that are operating on small margins cannot afford this. We need an alternative. Now, I understand there are concerns about the consistency within the comprehensive plan, but I would respectfully suggest that our economic realities have evolved from that original plan.

[04:29:16] The demand for this type of space and the need to retain employees like us has outpaced the current plan's anticipation. Without options like this, companies will be left with difficult choices. Thank you so much. Thank you. Okay, thank you. Thank you. I only had four more pages to go.

[04:29:35] Jeff Tari, followed by Janelle Bielinger, followed by Angela Mendez. Good evening. Good evening. Thank you. My name is Jeff Tara. I am a 20-year resident of Loudoun County, a 20-year commercial real estate professional working in the county and currently marketing space.

[04:29:54] throughout the county, including Percival. There's been a lot of conversation time, bunch of topics on the transportation and safety. I trust that you and the applicant will find a landing spot there that will suffice for a project like this.

[04:30:10] There's been some comments about water tonight at length. These spaces, these industrial uses, it's a pretty simple equation. Regardless of the size of square footage that they occupy, they usually will build anywhere 1,000 to 2,000 feet of office space. They have limited amount of people. There are two bathrooms and a galley kitchen. That's usually where the water centralizes from. Supervisor Letourneau, Madam Chair, you mentioned today about land use and concerns about that. It's a very simple equation when it comes to development in our county. It's very challenging. It starts with

[04:30:45] the value of the land. If the land value is too high, the projects don't pencil. Construction costs are what they are. So we need to start to think about creatively and we respect the comp plan to think about new areas of the development of our county that go to the central part of the county and west. The last piece is I'll talk from I've been talking with tenants and working with people in this county for many years and we're at a breaking point where they're now they're now leaving. They're leaving the state. They're leaving the county. They're looking west. The communities have grown in the west, their personnel is coming from the west, and they're

[04:31:22] just basically thinking of new places to go. So this disruption is an opportunity to reset where these types of places that they can occupy. Pricing is out of whack, and it really becomes an issue. You guys know the numbers on the square footages and the lack of supply.

[04:31:42] So I encourage you to support this, and thank you for all you do. Thank you sir. Janelle Bellinger followed by Angela Mendez followed by Marcus Meyer. Good evening. Good evening Madam Chair and Board of Supervisors. My name is Janelle Lee Bellinger and I live in the Mayfair Community Association located off Porcelain Road and serve in the capacity of the President of the HOA. We are here today in opposition of the proposed Valley Commerce Center as it represents a fundamental departure from the Loudoun County's comprehensive plan. This is not simply a zoning adjustment it's a conversation or conversion from low intensity transitional land into an industrial

[04:32:19] park designation that was never intended for this area at a scale approaching nearly 1 million square feet our opposition centers on two critical issues first public safety and traffic impacts increased traffic of the scale would have real daily impacts on Mayfair residents Percival Road was not built for this type of volume or traffic particularly heavy truck use associated with industrial operations. In addition, the proposed Northern Collector Road would connect directly to Mayfair Crown, routing an estimated 3,500 daily vehicle trips, including heavy trucks through our neighborhood streets. These are the same streets where children wait for the school bus. This level of traffic would

[04:32:55] also create a significant congestion on surrounding roads, increasing delay, excuse me, increasing delays for residents trying to enter and exit our neighborhood, especially during peak commute hours. Second, zoning integrity. Residents chose this area based on its designation of JLMA 3, which promises low-intensity transitional land use.

[04:33:15] Reclassifying this land to PDIP, industrial zoning, is not compatible growth. It's a drastic and permanent change that benefits a single developer at the expense of the broader community. To be clear, this is not an opposition to all development. It's whether this level of industrial intensity belongs at this location.

[04:33:31] Right now, it does not. We respectfully urge you to deny this application. Thank you for your service to our community. Thank you. Ma'am, you are speaking on behalf of the Mayfair. On behalf of the Mayfair Community Association Board of Directors. And how many people are in Mayfair? How many homes are in Mayfair?

[04:33:48] We have 262 homes in Mayfair. Thank you, thank you. Angela Mendez, followed by Marcus Meyer, followed by Peter Dalton. Good evening. Good evening, everybody. My name is Angela Mendez, and I'm a homeowner at the Mayfair community. My husband and I come from very humble beginnings.

[04:34:06] For as long as I can remember, I helped my mom pay her bills and worked really hard. Very often she had to decide between paying the electric bill or putting food on the table. The community I lived in was so dangerous that we had an emergency plan in place, not for fire, not for earthquakes, but for stray bullets.

[04:34:30] At a very tender age, I learned to kiss my living room floor at the sound of gunshots and seek refuge in the only room in our small house that was away from windows. I share this so you can understand how important my home is and my community is for me and for my family.

[04:34:49] For years, my husband and I worked really hard, made sacrifices, saved, and held on to one dream to give our daughter a better life than the one that we came from. Moving to Percival wasn't just buying a home, it wasn't just a transaction, it was the moment that dream came true. We chose this town because it felt safe and peaceful, like a place where children could grow up surrounded by community and not cows. And that is exactly what I'm afraid of losing. I heard a lot about the hope to mitigate the negative impact in our community, but not much reassurance. This is about a change in our reality. It's about a moment where a parent

[04:35:29] hesitates before letting their children play outside. And it's about to being asked to accept the risk to our children's safety just as part of living here. I am asking you to please not take away our dreams and please protect our children and reject this proposal. Protect the essence of Purcellville and the essence of our community. Thank you. Thank you ma'am. Thank you. Marcus Meyer followed by Peter Dalton followed by Donald Middleton. Good evening. Chair Randall,

[04:36:06] members of the board, like most folks in here, I missed bedtime for my four kids, so thanks for your time, and I also missed my own. I've been here for 40 years. I'm not trying to compare against anyone else here, but I've seen a lot of growth here in my time here, and especially in Western Loudoun, but our local services and business space really haven't kept up. We still find ourselves driving east to Leesburg and as a service disabled veteran owned small business myself I'd have to drive all the way out to Tyson's for the services that I need and I'm looking for stuff closer

[04:36:42] to home. That's why I support the Valley Commerce Center. It's incredibly here's some of the stats I don't I don't know a lot of the stuff that goes behind this stuff so it's interesting for me to sit here and hear this stuff and the decisions are made so thanks for making that available to me but it seems to me like it's a logical location surrounded by existing commercial space it's very similar and from what I have read it's outside the rural policy area I'm speaking outside my weight class there I don't even really know what I'm saying there other than what I've read many residents I'm concerned about traffic no question especially getting on and off route 7 the turn lanes and plan to improvements tie this tied to this project will certainly help make it

[04:37:22] safer and more manageable there's a real shortage of space for local business like I already said, and contractors. This kind of project helps keep them here and supports our local economy. After 40 years here, I do see this as a smart, balanced step forward. I respectfully ask that you support the application. Thanks. Thank you, sir. Peter Dalton, followed by Donald Middleton, followed by Mary Turpak. Good evening, sir. Good evening. Chair Randall, members of the board, my name is Peter Dalton. I'm a Percival resident, and I own Country wildlife control um we're the guys that you call when you get a raccoon in your attic or a bird in

[04:38:00] your dryer vent which is in your garage or in your garage we'll do garages too um but um the reason the reason i'm here is i'm voicing my support for this bill me and my five employees serve percival community as well as the surrounding areas and i'm here because i need space to continue operating efficiently and to keep growing locally my business is in desperate need of space not only for storage and parking, but also as a central base of operations. Currently, our morning briefings typically take place at BKD Bagels, which I can't complain too much about that, but it is a logistical nightmare. We rent two different storage units, as well as another separate lot for our trucks and

[04:38:39] trailers, and the cost of renting three different locations, along with the time and fuel spent driving between them, has become a major burden. Many days, my technicians, a lot of who are based in Percival and the surrounding areas have to drive east just to gather materials and equipment only to turn around and come back to serve Percival, Round Hill, and Hamilton. I don't want to leave Percival. I live here. We serve this community, but without available space, we may be forced to relocate just to keep up with the demand. Our business has tripled thanks to this community over the past three years. For a long time, I know the board and other members of

[04:39:15] the community have expressed support for diversifying the local economy and encouraging small businesses especially in the trades and to operate within the town rather than pushing them outward so i support that vision and i'm asking you guys to support this application so businesses like mine can continue to grow here thank you for your time your support and your consideration thank you sir thank you for what you do too donald middleton followed by mary turpock followed by keith troxel good evening good evening chair randall members of the board my name is brooke middleton my wife and i are certified public accountants and we own an office

[04:39:51] just up the street at 121 north hatcher avenue from the valley commercial center when michelle and i started our business we started in my parents basement um we were able to rent space at a later date and hire one employee which was a big deal to us and eventually we bought the office on Hatcher Avenue, which was our first office. But right now, if you're an HVAC contractor, a plumber, or a carpet person, or a landscaper, and you're operating from your home, you just can't do that. There isn't anywhere to go. Recently, I had a client who was looking for

[04:40:28] space. They started in Western Loudon. They looked in Clark. Clark, by the way, is developing their own industrial park because they realize of the crisis that is occurring here. They looked in Winchester and eventually looked in West Virginia as a neighbor I was very curious about this project I've looked at it it's a great location it's close to seven it's unusually attractive look at some other industrial parks this one is very nice it will be an asset to the community I strongly urge you to approve this application as submitted it will keep jobs and businesses in

[04:41:08] Western Loudon County thank you so much thank you Sir Mary Um Terpock followed by Keith Trucks followed by Alfredo Carlin oh uh Madam Chair I'm not Mary Terpock you are certainly not she she couldn't stay and she asked if I could read her statement for her well you you can't do both so you could you because you're down here yourself you could do you could so I can't take Mary's time you cannot to read her statement you cannot thank you Ma'am thank you Um Keith Troxel followed by Alfredo Carlin followed by William Marsh so I ripped my speech

[04:41:44] up because I think you all understand the need for um CNI space particularly in Western Loudon my name is Keith Troxel Madam Chair good evening and supervisors I lived North Percival for over 30 years my daughter is a proud graduate of Mountain View Elementary and Woodgrove High School in the area so I know this area well one of the reasons I ripped my speech up is I want you all to take a look at this map, because I don't like this map, okay? Let me tell you why I don't like it. If you look at Mayfair Autumn Hill, underneath of that is Valley Industrial Park. If you go

[04:42:19] Cross Route 7 down to where North Bailey Lane is, that is the Browning Court Industrial Park. If you go where the green Percival is, where the PUR is, that is the KFC pad site, Bank of Clark County, and the Chapman Medical Building. And if you go over to where Ville is, that's the undeveloped Chapman Industrial Park property along Hearst Road. If you go to where the cutout is of the whole county, that is Loudon Stairs. And next to that is undeveloped property and then the firehouse. And then across the road, you have St. Francis Court property and commercial

[04:42:58] and industrial over there. So I don't want you all to get the impression that this is a residential area it is not a residential area I drive through it every day I come down Alder School or I come down North 21st Street so Chair Randall when you do your tour I would drive all the way around drive through the fields farm area drive through these existing industrial uses there the other supervisors I want to go out and see it and see what is there because this is not predominantly a residential area never has been since I've been here for 30 years so I thank you very much for your time and really do appreciate all your service. Thank you Sir. Alfredo Carlin followed by William Marsh

[04:43:35] followed by Mark Coomer. Good evening Chair and Board. Thank you for your time. I've been a resident of Loudoun County for over 35 years. I proudly own both residential and commercial properties.

[04:43:56] Very grateful. Wonderful people here in this county. Very very proud to be considered a Loudoun County resident, okay. I've made it my home for all these years once I got out of the service. I'd like to, number one, I'd like to support the project for actually very basic reasons, okay.

[04:44:18] Number one, logistically, it is right across the street from another industrial facility there. Kind of makes sense. There's also the issue of, you know, the balance of residential, calculated balance, I should say, of residential and industrial growth in the county. I think it's very, very important. As we can all agree, Western Loudoun is in really, really dire,

[04:44:52] straight need for, to bring the balance up with the industrial properties so we can, you know, small business can establish themselves and be able to support the community and I think we're definitely definitely short on that I don't know all the dynamics this stuff is way over my head I'm only going for my common sense here and as I've seen the county grow but I think there's got to be a balance and I think definitely Western Lounge is out of balance when it comes to industrial property. That's it. Thank you very much. Thank you. Next up is William

[04:45:29] Marsh followed by Mark Coomer and then John Ellis. Good evening I'm William Marsh. I'm here to speak in opposition to this proposal based on the risk of water supply loss that neighbors might endure. I asked board members to consider the affected property owners and their perspective of how they would navigate the property that's promised by this applicant for water supply testing. The affected property owner has no idea when commercial operation for the proposed well would begin, let alone when the 30-day notification window to respond to monitoring would be offered. What if the property owner is out of town or deployed overseas during that unpredictable time window? If so, they have no recourse for testing or mitigation. Let's say they

[04:46:08] respond and agree to participate in the testing. Then they see a decline in their well performance. Then what? They have to prove to the applicant or water owner that, quote, for the proffer, water levels are being adversely affected specifically by the pumping of existing well VCCD and not by other private wells or drought or other impact sources. Well, how do they prove that other than paying for their own very expensive consultant to contest the consultant's opinion of the applicant or property owner? Finally, what happens after two years of operation?

[04:46:39] The developer's commitment is over. Board members, how many property owners in Loudoun County are content with a two-year operation window for the well that they rely on for life's basics? Adjacent property owners are not protected here. I also want to criticize the applicant's approach to water resources.

[04:46:55] A developer can choose to address a known problem more proactively. For example, designing for capture and reuse of rainwater that falls on a new building's rooftops, storing that volume in a cistern, treating it, and then using it to satisfy at least non-potable demand in the buildings. If you've ever caught a performance in Capital One Hall and Tysons, that's exactly the design they use.

[04:47:12] Instead of proactivity, the developer uses buy-right boogeyman of 39 residential lots using exorbitant amounts of well water as an alternative scenario. I asked the board to call their bluff. A new residential development will take years to fully build out, and the board can use that time to investigate groundwater supply concerns with big picture and then pursue better land use policy that might protect existing property owners better.

[04:47:35] Thank you. Thank you. We have Mark Coomer followed by John Ellis and then Brandy Nicholson. Thank you. am Mark Coomer with the Mayfair community. I do oppose this proposed rezoning for all the reasons given tonight. I actually can't think of a whole lot of new ones, but I will emphasize an issue that we've talked about, but maybe not, it hasn't been emphasized enough, and that is the public opinion polling has identified the core views of the communities most affected by this proposed

[04:48:13] rezoning. 93% opposed in one poll of three communities. Also, we had an election in 2024 where there was a slow growth, managed growth slate of candidates that campaigned together.

[04:48:30] They shared campaign literature, and they proposed a vision for the town where there would be slower growth to prevent overburdened infrastructure and retain that small town charm and quality of life. they won they took over the city council they became the they took over the mayor's office when i say took over i'm i'm not saying they assumed all power but they did have a vision for the pace of development in my community that pretty much um controlled the response to these kinds of issues

[04:49:09] when it would come before the council so all i can say is i did learn some things tonight The vision that I had for what this development meant has been changed by the briefings that I received. My understanding of the connector road, which was my primary concern because the connector road, as I understood it, there would be 3,500 cars roaring down a two-lane road past my house with trucks and long-haul semis sharing the road with school buses.

[04:49:43] And that didn't make a lot of sense to me. So if, in fact, there is an amended vision that, oh, I'm out of time. I'm out of time. Thank you, sir. Thank you. Welcome back, Mr. Ellis. Thank you very much. After you will be Brandy Nicholson and then Nan Joseph Forbes.

[04:50:04] I'm John Ellis. I represent Saverall Loudon, and I've also been actively participating in the coalition group that has been following groundwater issues throughout Western Loudon. I want to quickly try to focus on four issues.

[04:50:20] First, I agree that we need a more diversified economy. This is not the right place to do it. And approving the Valley Commerce Center is not going to solve the problem of a real estate price of inflation in Loudoun County. So that's the first point.

[04:50:36] Second point, this is something that is important to me, maybe not so much to other people, But I'm not happy with destroying 30% of that established, well-established woodland. I would much prefer that we retain green areas like that in Western Loudoun.

[04:50:53] On the traffic issue, they have just started cutting trees, speaking of trees, cutting trees and clearing land for the 7690 interchange that was sold to many people. I spent a lot of time stuck in traffic on Hurst Road myself coming in from the north.

[04:51:12] Many people, that project was supposed to reduce traffic congestion on Hearst Road. This project would basically negate that benefit of that very expensive investment in that infrastructure. In terms of water, a lot of the comments here to me were very strange.

[04:51:33] They were sort of, if we have an impact on somebody else's well, no problem, we'll draw more wells. There are a lot of wells in this area already. The town of Percival has a lot of wells already.

[04:51:51] A 2019 study said the town of Percival already is not able to meet its demand for water with its existing wells and needs more wells. This would be competing with the new wells that Percival needs. Thank you, Mr. Ellis.

[04:52:07] If anyone does run out of time, you can absolutely either email us your comments or give us a call so we can make sure we get all of your comments. Brandy Nicholson, followed by Nan Joseph Forbes, I think that's right, followed by Kevin Fox.

[04:52:25] Good evening. Good evening, Chair Randall and members of the Board of Supervisors. Thank you so much for the opportunity to speak this evening. I'm Brandy Nicholson. I am a resident of Percival,

Virginia, and a very proud farmer's wife. As the spouse of a farmer, I see firsthand the day-to-day challenges of keeping a farm and small agricultural businesses running.

[04:52:50] As you know, farmers rarely support the building of anything, really. However, farming today depends not only just on the land, but access to a reliable support system. equipment, storage, contractors, most of all, repair services, and then local businesses that can understand and serve our rural community. And that's what we are. We are still rural. Right now, there are very limited places in the county where these kinds of businesses can operate and grow

[04:53:23] and serve the farmers. Our tradespeople, contractors, and service providers are essential to farms like hours. And without space for them, it becomes harder and more expensive for us to sustain agricultural operations and our equipment. We believe this location is well-suited for the flex space warehouse, the long-term storage for equipment, and other businesses that will directly support working farms and rural residents. Developments like the Valley Commerce Center would actually help strengthen the local agricultural economy by giving critical businesses

[04:54:00] a place to operate near us for these reasons i do support the valley commerce center never thought i'd say that or building up anything along percival road and respectfully ask that the board support it as well thank you so much for your time thank you man joseph forbes followed by kevin fox followed by jacklyn cheshire good evening good evening i want to start by thanking you all for staying late to listen to all of us it's really important and i know everyone really appreciates it. It's a late night. My name is Nan Joseph Forbes. I live on West Main Street in

[04:54:36] Percival. I've been there for 43 years if you count one way and about 70 some odd if you count another way. My family has lived in my home for over 100 years. I also am the chair of your BZA.

[04:54:56] So I'm here in a personal capacity. The criteria for zoning is controlled by section 15.2-221. 283 And it is supposed to achieve the objectives of 15.2 2200 I hope that you all will look at that code section. I know that staff can provide it to you And I don't have enough time to go into it in any detail This proposal for rezoning is not consistent with the comprehensive plan hundreds if not more homeowners near this

[04:55:31] 17 acres have made the biggest financial decision and personal decision of their lives to have a home Where that they are in Percival they've invested financially and personally based upon a reliance on the comprehensive plan No one bought their home expecting an industrial park next door. No one signed up for this only The planning staff of the county has recommended no and for good reasons. There are traffic issues water issues there's a gross denigration of the rural character of Percival and Western Loudoun County if you do

[04:56:05] this. The map is misleading. There is a four-lane highway south of this site, so the fact that there's commercial on Hearst Road, I would submit, is not hugely significant. You need to look at what surrounds this property. There is a bit of commercial property to the southeast, but the The rest of it is absolutely rural or residential.

[04:56:33] Thank you. And I ask you to respect that. Thank you. Thank you so much. And thank you for all your service to the county. Kevin Fox, followed by Jacqueline Cheshire, followed by Monica Hildebrandt. Good evening. Good evening, board. Thank you for having me. Apologize for my attire.

[04:56:50] I just came from work, I promise. It's okay. You're good. You're fine. My name is Kevin Fox. Lived here my whole life and now me and my wife own a gym in Loudoun County. We've been doing this

since 2019 We currently employ 10 people including ourselves, which is 12 We have about 250 members all residing in Loudoun County. I approve The Commerce Center mainly because right now we're struggling to find Adequate space for our business in Loudoun County. It's very tough to find something

[04:57:26] that is suitable for our needs and also cost-effective we could go to retail space but we're gonna pay three times as much as what we're paying right now and so that would basically mean closing our doors if we had to do that so more flex space more industrial space definitely helps our future endeavors getting to a better location and also I think a couple people don't didn't point out that, you know, whatever gets built in Percival also has an effect in the other places

[04:58:02] in Loudoun County because that opens up more places in eastern Loudoun to also allow business owners to find more vacant properties there, too. So I don't think it's just the impacts that it'll have in Percival. I think it'll also have an impact in the other parts of Loudoun County.

[04:58:19] So basically what this would do is it would allow me to keep employees. It would allow me to keep a community that we have built over the past 10 years almost. It would allow us to keep sponsoring events like 5Ks, 10Ks, sponsoring kids' teams, all those things that we try to do for the community.

[04:58:39] That's all I got. Thank you. Thank you. Thank you very much. I'm Jacqueline Cheshire, followed by Monica von Hildebrandt, followed by Josh Powers. Good evening. Good evening. I'm Jacqueline Cheshire. I own and operate an equine boarding facility where my family and I also live on Percival Road, which is about a mile northeast from the proposed Valley Commerce Center.

[04:59:06] I am also a real estate developer, so I do understand land use. When we opened our facility, VDOT was kind enough to install horse crossing signs because our clients and family often ride across Percival Road. We also, at the urging of Loudoun County Soil and Water, installed fencing to keep the horses out of the creek on our property, which made it impossible for us to access all of our land on horseback without riding down Purcellville Road.

[04:59:36] As such, I have serious concerns about the rezoning, specifically the use and scale of the project. Industrial use on this site is not consistent with the comprehensive plan and for good reason. My concerns are the traffic it will generate on a two-lane road that narrows to less than two full lanes and turns to gravel.

[04:59:56] It's inconsistent with preserving rural Loudoun. The project will dramatically increase industrial traffic and large trucks leaving the property in the direction of the narrowing gravel road and past my farm and the road we travel on horseback to access Route 9.

[05:00:14] This will be extremely dangerous. Replacing the four-way stop with the traffic signal at Hearst and Percival Road in addition to adding 3,500 vehicle trips a day at that intersection will only cause backups in all directions unless long signal dedicated turn lanes in all directions are also installed.

[05:00:35] Most importantly, the impact of the project, of the magnitude of this project we'll have on the water table, is immense. Our livestock rely on the well for survival and continued drought is a major concern to us. This property would be better suited in Ashburn, maybe instead of some of the data centers.

[05:00:54] Thank you. Thank you. Okay, thank you. Listen, y'all got to get off of Ashburn and Sterling. We love Ashburn and Sterling up here. Everybody be nice to all parts of Loudoun County. How's that sound?

Monica Van Hildebrandt, followed by Josh Powers, followed by Pat Tabari.

[05:01:12] Good evening. Good evening. Thank you so much. My name is Monica von Hillebrandt, and my husband and I live in the Mayfair community. We purchased our home this year after many years of saving because we believe this would be a stable place to build our future and start a family.

[05:01:31] I work in environmental justice, and I want to focus on something that is often insufficiently addressed in decisions like this, cumulative environmental and health impacts. A nearly 1 million square foot, 24-7 industrial facility powered by private well water introduces multiple interacting stressors, groundwater withdrawal, diesel emissions, continuous noise, and light pollution.

[05:01:57] These impacts do not occur in isolation. And when they are not evaluated comprehensively, risk is systematically underestimated. From an environmental justice perspective, this pattern is well documented. And from a mental health perspective, my husband is a psychiatric nurse practitioner serving in this area.

[05:02:19] These are not minor concerns. Chronic noise, artificial light at night, and environmental stressors are associated with anxiety, sleep disruption, and long-term stress. And perceived and actual safety risks, such as heavy traffic near residential areas, are also associated with elevated stress and anxiety for families.

[05:02:42] Children are particularly vulnerable. Increased exposure to diesel emissions and particulate matter is associated with higher rates of respiratory issues, including asthma, as well as other long-term health risks.

[05:02:58] These are not temporary conditions. They shape the baseline environment people live in every day, and once those conditions change, they are not easily reversed. We understand that development may ultimately occur on this site, but this proposal at the scale without a comprehensive and independent evaluation of cumulative environments on health and impacts for NEBRA residential communities does not meet the standard required to move forward responsibly.

[05:03:23] Thank you. Thank you so much for your time. Thank you. Josh Powers, followed by Pat, well, Pasquale, but Josh, but Pat Dabari. Good evening, Mr. Powers. It's me? Okay. Good evening, Chair Randall and members of the board.

[05:03:38] My name is Josh Powers. I live in Percival and have been a Loudoun County resident for the last 11 years. First, just want to say thank you to the board for moving forward with the plans for the Western Loudoun Recreation Complex last month. I have two young daughters and look forward to the years of using that facility with them and all the others that will benefit from that facility and appreciate the investment in our community.

[05:04:03] I'm here tonight in support of the Valley Commerce Center. As someone who has worked for the last decade in the local construction industry, I see firsthand the need for more industrial and flex warehouse space in Western Loudoun. I believe there's strong value in the Valley Commerce Center in adding amenities, creating job opportunities, generating additional tax revenue, and expanding access to commercial space.

[05:04:27] Western Loudoun has unique needs and opportunities. Supporting responsible development like this not only benefits the residents, but also strengthens the local economy and gives small business

and contractors the space they need to operate and grow without having to look outside of Western Loudoun.

[05:04:44] I'm hopeful the board will continue to support balanced well-planned growth in Western Loudoun, and I believe that most residents and business owners agree. Thank you very much and appreciate your time. - Thank you, Mr. Powers. Pat DeBarre, you're going to be followed, sir, by...

[05:05:03] Don Bowman. Good evening. I'm a homeowner of Wright Farm, 25 year military veteran and a civil engineer who planned and implemented federal capital improvement projects. I do not believe that you can mitigate the negative impacts of this Valley Commerce Center proposal. Please oppose it. As Rachel did a fine job in her recommendations, this is not a smart or safe location for this very valid commercial need.

[05:05:31] In fact, 228 households disapprove it. The vast safety, traffic, water, pollution, power, noise impacts will be worse than predicted and will require more county infrastructure in the future if this proposal is approved and built out over the next several years.

[05:05:54] It would industrialize Percival from a rural town to a congested mess. It will open a Pandora's box for greater unwanted infrastructure needs for second and third order effects, especially on 287.

[05:06:12] I have three children, including one son with severe cognitive and communication deficits due to autism. We moved from the congestion and data centers of Ashburn to live near the charming Percival near our church at St. Francis. This proposal will make walking, biking, driving more unsafe for me and my family, especially my autistic son, who strives to be more independent.

[05:06:36] My family originated from southern Italy. Small, charming villages align with a way of life for everyday people to interact, worship, eat, shop, raise their families, and enjoy life. It's called La Doce Vita, the sweet life. Let's keep Percival charming and sweet.

[05:06:54] Please vote no on this proposal. Don't extend Ashburn into Percival. Instead, let's keep the existing zoning and discuss ways to complement the rural atmosphere, the charm, and the agritourism. Please vote no.

[05:07:11] Okay. Thank you, sir. Listen, people. Ashburn is fantastic. Sterling is fantastic. Percival is fantastic. Waterford is fantastic. Loudoun is fantastic.

[05:07:27] How about we don't pit one part of Loudoun against another part of Loudoun? That's all I'm going to say. Well, that might not be I'm going to say. Well, no, Fairfax is not fantastic. Loudoun is fantastic. So thank you. Don Bowman followed by Wayne Bergstrom.

[05:07:46] And then we have somebody on the phone, and then we have other people. Mr. Don Bowman, that was next. Don Bowman, are you here? Don Bowman, going once, going twice. okay wayne berkstrom are you here no okay let's go to the phone for matt hopkins after matt hopkins will be william um alder mr hopkins on the phone he dropped off he dropped off i'm sorry

[05:08:19] william alder will be followed by brenda alder good evening sir good evening pardon me it's been a long one and thank you very much for your uh your patience and time sitting up here um yeah madam chair members of the board thank you very much for giving us the time to share these thoughts with you. I had a long speech too, but honestly I'm tired and I'm bored and I want to go home.

[05:08:41] There are a lot of commonalities that we're hearing from a lot of people here tonight. First and foremost, the people who live adjacent to this property that's being suggested we develop are really opposed to this and I am one of those people. I live on Alder School Road and that's one of the things that I've not heard people really talk about this evening is what the traffic impact would be like on Alder School Road. Specifically the gravel portion of it managed by VDOT that that gets torn up on a regular basis and really is slow to be repaired.

[05:09:07] The same problem would exist for Percival Road, it points north. No one has really mentioned that. It seems like there's this magical belief that traffic would only come in on Hearst, only turn on Percival Road, and only turn right into this development. That's just not the way things work, and I think we all know this. So maybe some traffic studies being done on what the overall impact would be, and certainly on the budget for repairing these roads would be something warranted in this instance, perhaps paid for by JK Land Holdings.

[05:09:31] I too am concerned about the water. I live on the gravel portion of Alder School Road, so ultimately my water would be impacted by this well should this whole initiative move forward. And while I appreciate the stopgaps being put into place, like the two-year measurement that might be assessed to see if there are long-term downstream impacts, we don't know those impacts, and some of the board members accurately pointed out that it takes time to fill the vacancies within these businesses.

[05:09:59] A lot of the small business community have indicated that might not be the case, and I feel their plight. I've worked for small businesses most of my life and have supported them since then, and I really want us as a county to find places where this type of development can take place. But seeing this time is short, I have two thoughts to share with you that I would hope you would keep in mind.

[05:10:18] First, the board member who stepped away had said that not all of the things that come before this board need to be voted yes upon, and Madam Chair, you yourself noted that there are things that you wanna make sure you don't vote, you vote yes for and vote no for, and this seems like one where maybe no is the right answer.

[05:10:38] - Thank you, sir. Brenda Alder, Brenda, thank you. And you will be followed, ma'am, by Michael Dowling. Good evening. - Good evening, Chair and members of the Board of Supervisors. My name is Brenda Alder, and I'm a resident of Percival, and I too live behind this proposed site.

[05:10:58] I'm here tonight to respectfully urge you to deny the Valley Commerce Center rezoning application. This project poses a direct and serious threat to my family's way of life. We live, garden, and raise animals on this land. Our well water is not just a convenience, it's how we survive, and the data presented in this process should alarm every one of you.

[05:11:19] The hydrogeological study itself found that nearly one million square feet of industrial space would require over 157,000 gallons of water per day from a site whose well can support only 75,000. That is more than double what the aquaphor can provide.

[05:11:37] And yet the applicant's proffers do not require drilling or deepening affected neighboring wells if ours runs dry. That is not a safety net. That is a gamble with our lives. Due diligence has not been done.

[05:11:52] The applicant attempted to monitor only one of 11 neighboring wells. One, that is not adequate testing. that is not protecting this community. Beyond our wells, this development threatens springs, wildlife that make Western Loudon the place we chose to call home.

[05:12:08] Once that is gone, it cannot be restored. As Chair Randall stated earlier, we must protect it. I ask each one of you tonight, if you lived where I live, would you vote yes? Please protect our water, please protect our community, please vote no on Valley Commerce Center.

[05:12:25] Thank you. Michael Dowling and you will be followed by Noah Holt followed by Carlos Llanos. Mr. Dowling, Dowling, D-O-W-L-I-N-G, are you here? Mr. Dowling, no? Okay, Noah Holt, are you here? And then you will be followed by Carlos Llanos. Madam Chair, Matt Hopkins and Wayne are on the line. Well,

[05:12:59] I have okay I will come back to them if they can hold on sir good evening my name is Noah Holtz I have lived in Percival for most of my life my family moved here in the spring of 2010 as I was headed into my freshman year at Loudoun Valley so I remember a time before the Harris Teeter shopping center for the Chick-fil-a the roundabouts and the Chipotle my wife and I still live in Percival and we're confident to say that we're thankful that these businesses exist and support

[05:13:34] our community. In that same spirit, the Valley Commerce Center represents another positive step forward for Percival. There's a clear need for this type of facility, so I ask you all to support this application. Thank you. Thank you. And after Mr. Lanos, I will go back to who did we say was on the phone? Matt Hopkins and Wayne Bergstrom. I have Matt Hopkins as being remote, but I have William Bergstrom would be in here okay that's fine we'll go back to both of them as soon as we

[05:14:10] finish with this gentleman hello how are you good evening chair rather than members of the board supervisor thank you for opportunity to speak to you this evening my name is Carlos Lanos my wife and I believe in Carmichael place and right far immediately to a chance to this project for all the speakers that you will hear tonight that you hear tonight there has no one who is as impacted As me, 2019, the Board of Supervisors moved the Portsville North Court Collector's Row

[05:14:42] someone from my previous alignment, from my property, and doing so, they placed on my property without telling me or my family. I would ask you to support this application and I agree that there's need for this type of development, and you can see that I can work well in this area.

[05:15:03] I'm aware of this building placement and building height that is being proposed along with the setbacks. Landscaping and building designs that the developers have committed and recommended that you approve the application.

[05:15:20] I'm also grateful for the well protection step that the owner, Mr. Kuhn, has agreed to appreciate my well and my neighbor's wells will be protected in ways that will occur for bite-white development and place support this development.

[05:15:38] Thank you. Thank you, sir. Okay, we're going to go back to Wayne Bergstrom and Matt Hopkins, and they will be followed by Lee Armstrong. Thank you, Madam Chairman. Can you hear me? We can hear you just fine, sir. Okay, thank you.

[05:15:56] Thank you all for allowing me to speak tonight. Speaking of statistics on groundwater usage, the staff came up with a number based on essentially 350 gallons per day per home. The USGS, in a study on the US and EPA, agrees that a design value or an expected value of 400 gallons per day for the average home is an appropriate value to

[05:16:34] expect in usage, that is almost the same value, a little higher than what the staff used. The EPA goes on to say that 30% of that number is used outside the home, lawns, car washing, et cetera. In arid

areas, that might go up to 70% outside the home, for instance, watering,

[05:17:03] etc. That still translates to only 700 gallons per minute per home. For 39 homes, that translates to 27,000 gallons per day. For the entire 39 homes, that's only two-thirds, less than two-thirds of the amount of groundwater that this project proposes to remove.

[05:17:33] And yes, some wells might hold 2,000 gallons in a day, but not 39 wells and not every day for 365 days a year. So this project will, in fact, contribute to groundwater depletion in comparison with 39 homes.

[05:17:57] And the groundwater resource in this area— I'm sorry. You may not be able to see the clock, and I apologize, but your time is up. Thanks. That's fine. That's fine. Matt Hopkins, you will be followed by Lee Armstrong, followed by Daniel Judd.

[05:18:17] Thank you. Can you hear me? We can hear you just fine, sir. Chair Randall and the members of the Board of Supervisors, my name is Matt Hopkins. I'm the president of Chesapeake Mechanical Solutions. I've been closely following the Valley Commerce Center project as we actively evaluate relocating our mechanical and plumbing operations to western Lyon County.

[05:18:40] This project represents more than just another development. It's an opportunity to bring high-quality, skilled jobs into the community. Companies like ours employ licensed tradesmen, apprentices, project managers, and support staff.

[05:18:56] Relocating to a well-planned space like Valley Commerce Center would allow us to expand our workforce, invest in training, and create long-term career opportunities for local residents. Western Loudoun County has a real need for spaces that support growing businesses.

[05:19:15] Developments like this provide the infrastructure necessary for companies to scale responsibly without leaving the county. Without opportunities like this, businesses are often forced to look elsewhere, taking jobs and economic activity with them. I strongly support this application and respectfully urge you to approve it. Supporting Valley Commerce Center is a direct investment in local job creation, workforce development, and a stronger, more resilient local economy. Thank you for your time.

[05:19:49] Thank you, sir. Lee Armstrong, you will be followed by Daniel Judd. Good evening, Mr. Armstrong. Good evening. Good evening, Chair Randall, members of the board. My name is Lee Armstrong. I'm the president CEO of a large specialty contractor company with over 400 employees working in Loudoun County today. I'm here to support the Valley Commerce Center. From a business standpoint, this is something our community needs, especially in western Loudoun. There's a real shortage of light industrial and flex space in the county, and it's making it difficult for companies to operate, grow, and stay low.

[05:20:28] local. I also want to say this county has been great to companies like mine. We've been able to grow here, build a team here and be part of the local economy. And because of that, we want to keep investing here. We want to plan deeper roots and not look elsewhere.

[05:20:43] But to do that, we need the right type of space. Having projects like this in Western Loudoun where there is clearly a shortage is a big deal. It gives companies like ours the ability to expand locally, support more employees and continue to serve this community at a high level. I appreciate y'all's time. Thank you.

[05:21:02] Thank you, sir. Daniel Judd, followed by Ryan Garrison, followed by Torrey Jasinski, I think it is. Good evening. Hi, Chair Randall, members of the Board of the Supervisors.

[05:21:18] My name is Daniel Judd. I was born and raised in Loudoun County. I'm also a Class A plumbing contractor. I've been in the industry all of my life, working closely with my father and his business before starting my own business five years ago. My book of business is primarily in Western Loudoun. I live in Western Loudoun. As my business continues to grow, so does the need for space. The Valley Commerce Center would greatly benefit my small business needs. Thank you.

[05:21:47] Thank you, sir. Thank you. Ryan Garrison, followed by Tori Jastensky, I believe it is. Good evening. Good evening. Hey, my name is Ryan Garrison. I was born and raised in Loudoun County. I currently reside in Round Hill. I also own a local business of about 50 employees, which unfortunately was forced to move out to Clark County due to lack of space in 2016.

[05:22:14] I hear everybody is concerned about traffic and the small town field, but I mean, living here, that ship has sailed. There's tons of homes. We're in need of more commercial space. I would love to be able to support my community with my business and my community versus taking over to Clark County. So having a flux-based industrial options and personal would be great for the local business owners.

[05:22:38] Thank you. Thank you, sir. Tori Jasinski, maybe that is, if I said your name wrong, I apologize, followed by Casey Chapman. Good evening. Good evening, ma'am. I want to first thank you for actually getting my name right. This is probably the first time in history, so thank you.

[05:22:55] Again, my name is Torey Jasinski. I've been a Loudoun County resident my whole life, which is 40 years. I'm a second generation business owner here right in western Loudoun. Coincidentally, we're also the other industrial county property there adjacent to the east. We're very familiar with the area. It took us 30 years to find this spot that we could move into because there's never really been any availability.

[05:23:19] I grew up in Blumont with the Loudoun Valley High School. I live in Hillsboro. There never was a desire to move outside of the town or the county, and we're fortunate to find it, but there's just no space for contractors and industrial needs. So this is a perfect opportunity. It's a perfect site for it. I mean, everything on there is brand new that I'm looking on that map as far as I'm concerned.

[05:23:43] I remember when we built the bypass and Hearst Road. I've seen it all. The town needs it. The county needs it. The area in general needs it. And as far as water usage, our property is on well and septic. So I would say that I have a pretty good handle on the commercial industrial use on the well.

[05:24:01] And the metrics that were used for the gallons per day that we were designed at, we monitor. We have meters and everything on that just to monitor for future regulation changes and things like that. And we are well below half of the design requirements that were set when we permitted and built.

[05:24:20] So, again, thank you for your time. I want to give my support and hope you guys pass this along. Thank you. You know, I would say I have never met so many people who grew up in Loudoun County. This is kind of cool to see so many people who grew up in Loudoun County. Casey Chapman.

[05:24:36] Casey Chapman, everyone should know, is actually my friend, literally. So, Casey Chapman. Good evening. Thank you. I also grew up in Loudoun County, proud graduate of Loudoun Valley High School. Currently run several businesses out of Purseville.

[05:24:52] Would love to have kept the businesses and keep them in Purseville. However, due to the lack of strategic planning, good comprehensive planning, strategic growth efforts within the town, I don't think that's going to be a viable option. They failed to adequately address the needs of Western Loudoun County and provide those services essential not just to the town residents but the regional residents that the town was designed to support.

[05:25:17] It's the business hub of Western Loudoun. And given that Purcell has failed to meet its obligation to grow adequately to meet this demand and growing population, as well as the industries that come into that local area, I feel that the county is stepping in in this moment to create an opportunity for companies like mine, where I have 60 employees.

[05:25:36] My office is separate from my warehouse space. My employees have to shuffle. I need a bigger space, but I have nowhere to move to. I don't look to move far away outside of Percival. I definitely don't want to leave Loudoun County. And to be able to continue thriving in the community in which I grew up in and investing in the community in which my family lives and that we continue to grow up in and my kids will grow up in is very important.

[05:25:58] I think you've heard it time and time again. There's been adequate plans to address a lot of these concerns, and there's still some valid concerns out there. But as you've seen, many people propose to pave a road or expand a road. They don't get the same opposition because they like the gravel roads. It's hard to blend Western Loudoun, and I'm not here to promote developing out Western Loudoun in its totality.

[05:26:18] I am looking to do good infill development or strategic developments sited near or around the towns that have a responsibility, not just to the residents, but the Western Loudoun community as a whole, to make sure that we can provide the services and jobs to these communities in which they expect, and that we can provide adequate costs, fair, reasonable pricing, good jobs, and support when needed.

[05:26:39] Thank you for your time, and I support this project. Thank you, Mr. Chapman. um francis i think that says i think it says collins i think that's what it says you'll be followed by beverly prosina good evening good evening thank you randall chair and board of supervisors for your time this evening i thought that my wife and i were the last two mohegans but obviously we're not we're both natives of northern virginia we relocated from aldi 10 years ago next month we live in the wright farm division of persilville

[05:27:15] We own two small businesses in the construction space. We own Flex Industrial Space in Ashburn. We understand the need for Flex Industrial Space firsthand, given the right location. When we moved here, again, 10 years ago next month, the first thing we did was check the land zoning to find out exactly what it was.

[05:27:45] It's R3, we were expected in one day for homes to be built behind our home. So when all of this emerged, the first thing that came to mind was not only the noise, the traffic, the environmental impact, but more importantly, our water.

[05:28:02] My property abuts this property, and that is a major, major concern of ours. I want to also just tell a story. I was coming back from the very far western part of Loudoun County this afternoon, towing a trailer with a tractor on it.

[05:28:19] And I purposely got off at the Round Hill exit, getting at 5 o'clock, it's almost impossible to turn off the exit from Route 7, left on to 287 to head to Wright Farm.

[05:28:35] So I got off at the Round Hill exit, came through Percival, made a left on 21st Street, down to Hearst, and then into Wright Farm once I was on 287. But that took 22 minutes at 5 o'clock to travel less than 3 ½ miles.

[05:28:52] So, again, the environmental impact, the additional 3,500 cars a day, these are all just concerns of ours that we left Aldi to get away from the traffic and move out here for a quieter, simpler life. Sir, your time is up.

[05:29:08] Sorry about that. Thank you for your time. Thank you so much. Thank you so much. Beverly Prozina, followed by Sam Chapman. Beverly? Good evening, Madam Chair and members of the board. Can you hear me okay? We can hear you, yep. Great. Hi, I'm Beverly Perzina, and my husband, Rich, and I, we live within yards of the proposed complex.

[05:29:31] We live right at the corner of Chestnut and Percival Road. I also am a teacher at Woodgrove High School, and I am on tonight because I want to ask you to vote no to this complex here. The major concern for us is the water. It's been dry here in the Percival area for a few years now and owning a property with animals. We have horses and we have just such a need for the water, the groundwater. We've been conserving and really monitoring our water

[05:30:10] youth praying that our wells hold so that is a major major concern for us with an industrial facility of this scale requiring more groundwater it really puts a major stressor on the immediate neighbors and the residents all around this proposed complex also being a teacher i have witnessed students getting, you know, in traffic accidents. We have a son who is a first responder responding out here in Percival. It is just a horrible mess, Percival Road is, with just students

[05:30:49] trying to drive to school, and you compact that with tractor trailers and more traffic. It is major major concern uh not only the noise and uh all that goes with a brand new complex like this but i'm asking you to consider the safety of our students that travel on that road but worries me the most is the precedent so once this industrial development is allowed to come in it's just not going to stop this project becomes you know yes to the next project and the next and

[05:31:25] ma'am ma'am i'm sorry um your time is up okay thank you yes thank you um the next is sam chapman hello sir hello chair um good evening chair good evening everyone else uh it's good to be here my name is sam chapman i live in round till um i wrote a bunch of stuff too but it is late so i'm just gonna talk and share some history on myself and in percival so when i look at that map and i've been looking looking at it for for a while now um i realized tonight that there's not there's only two homes on that map that were there when I was in high school. I feel pretty old right now, but I'm not that old. And the only other thing that was on that map when I was in high school

[05:32:04] was an industrial park. That means every other house that was built, Mayfair, everyone that built the house or moved into a house chose to move in or build next to an industrial park, right? And so those aren't labeled on the map. Someone pointed it out earlier, but Main Street of Percival used to be the home of Loudon Lumber and a lot of other industrial type businesses. A guy named Bruce Brownell changed that when he built the industrial park off Bailey Lane. He took that industrial park there because

that's where the other industrial park was. This is the industrial corridor of Western Loud, and it always has been. That's how I've known it. It's how I remember it. So when we

[05:32:39] started our business in 2011, important fact, I own multiple construction companies based out of Percival. Our shop and our office have been in separate locations for the last 12 years because there's not an office and a shop in Percival that will accommodate our growing business. I support valley commerce center for that reason it fixes that gap I have a lot of friends a lot of other fellow small business owners in western Loudon in the blue collar construction space um this is something we've been talking about for a long time I really can't think of a better use of that land than this if not here where maybe a bet you could you could maybe go into multifamily or affordable living I'm sure you'd have a whole lot of people show up start having

[05:33:19] that conversation right but this this is a great site and arguably I think the best the best use of this land and the need is no doubt there so I'm a strong supporter of it I appreciate what y'all do for the county this is the first time I've spoke at a meeting um at the county which is pretty unbelievable but just want to say thank you to all y'all for what you do and your investment into the county thank you thank you so much sam it's good to see you as well um tia ermine she's still here there she is tia you will be followed by I'm sorry miss ermine you will be followed by

[05:33:50] Magic Cahan. Good evening. Good evening to Randall and members of the board. My name is Tia Ehrman. I am a land use planner speaking on behalf of the PEC. Quoting from your packet, the policies of the 2019 general plan support the establishment of business uses in the Parsifal JMLA policy area that preserve the rural character of the landscape that are compatible with the dominant rural land use pattern and that promote opportunities for the expansion of the county's rural economy as well as as environmental goals. This one million square foot industrial campus surrounded by homes

[05:34:30] using close to 44,000 gallons per day of water and adding extensive impervious surface is the opposite of that guidance. The applicant's hydrogeologic study was conducted in 2023. From that day to this, we have been in a period of consistent drought. After many years of less rainfall and a prevalence of severe short-term storms versus the longer, milder rains good for groundwater recharge. This appears to be our new normal. We should be making adjustments to adapt to it and decisions to increase our resilience as a county in this changing climate. In reviewing the hydrogeologic study the county consultant found inconsistencies in testing and reported

[05:35:09] potential for off-site impacts to residents. The proffers included are quite insufficient to ensure resident protection from and restitution in the case of damage to their wells. Two years is much too short a time frame for damage to be identified. 30 days is way too short a time frame to contact and work with impacted homeowners. And allowing a hydrogeologist working for the applicant to monitor and determine/agree if damage to wells is occurring is akin to allowing the fox to guard the hen house. For Valley Commerce Center, we are asking for a safe land use with respectful traffic patterns for residential communities and realistic water consumption requirements consistent with

[05:35:48] the surrounding uses as anticipated in our county documents. Thank you. Thank you, Ms. Ehrman. I think it is actually Magic Cahan. Did I say that? Okay, and you'll be followed by Kevin Cochran. Good evening. Thank you. Thank you for the time. I am Magic Cahan, resident of Percival, and I'm actually the owner of the corner property on that side, which it was one time the whole thing was the Warner farm if anybody should be complaining should be me because that

[05:36:23] will be um wouldn't be a good place to allow this project but unfortunately the percival if they had any common sense they would have annexed this property to town because this adds so much to the town and something that we really need i own two businesses in town I have a gym in town for the last 25 years.

[05:36:53] I'm running out of room. There's nowhere to go. I have a warehouse on Main Street. Main Street is not a place for a warehouse. You need a place, something such as this, to move my business after 25 years.

[05:37:08] If I don't find anything, that forced me to move to a place like Manassas or Woodbridge in order to continue my business. I beg you to consider to approve this project.

[05:37:24] It would help us tremendously. I greatly appreciate your time. Thank you. Thank you, sir. Kevin Cochran, are you here? Yeah, can you hear me? I can hear you fine.

[05:37:40] Yes, sir, we can hear you. Awesome. I realized when signing up, I probably should have done another agenda meeting, but I'll go ahead. Hello again. I'm actually calling from home because my allergies are pretty trashed too. It's pretty late. So I wanted to talk about more of that Quantico data center, if I may, and Qualcomm Park. I feel like as a person who drives by there like every day, and I probably live like... Sir? Sir?

[05:38:18] Yeah. So did I miss calling on you when we did Quantum Park? Did I miss calling your name? It's my fault. I called originally to talk about data centers, and the person I spoke to recommended I do this.

[05:38:33] I'm going to stop your time and give you 15 seconds back, because with due respect, I'm kind of a stickler about staying on the subject we're on. And at this point, I'm sorry you did, Ms. Quantum Park, but right now we are actually talking about Commerce City.

[05:38:54] um valley commerce and so if you have comments on that i'm happy to hear them and your clock will start now sir um no i don't i think you'll just cut me off so i'd rather not okay but you can you can definitely email us your comments though okay on anything all right all right thank you sounds good kevin cochran

[05:39:20] All right. Kevin Cochran, you'll be followed by Keith Mainland. Mr. Cochran, are you here?

[05:39:39] Is Kevin Cochran on the phone? That was Kevin. Oh, that was Kevin Cochran. I'm sorry. Okay. Keith Mainland, are you here? I have a Keith Mainland and a Kirk Mainland. Are either of them on the phone or here? They dropped off. They both dropped off.

[05:39:58] Keith and Kirk are gone. Okay. Okay. I'm getting tired. I'm sorry. getting tired jeff haddock are you here jeff haddock wonderful sir and you'll be followed by wow wait a minute jessica alvarado who i believe will be my last speaker and she is and she is virtual good evening sir good evening chair members of the board my name is jeff hadlock i'm a commercial broker and i've been leasing space in loudon county for a very very long time I want to speak in support of this application.

[05:40:36] As everybody has mentioned tonight, Loudoun desperately needs this space. It's smart, in my opinion, it's smart growth. It helps with tax revenues, and it is a very positive development for the small business community, which, as everybody has heard tonight, is continuing to grow with a constrained amount of space.

[05:40:58] I urge you to support this application. thank you sir thank you we have one more speaker she is virtual um she's remote and then we're going to go to mr kirschner for a motion and our jessica alvarado yes good afternoon madam chair and members of the board my name is jessica varado i was born and raised in laden county for 24 years of my life i lived in the sterling area i just recently moved to percival a couple of months ago with my husband my husband i chose personal because it's a quiet close-knit and

[05:41:35] and loving towns. Very different from what we're used to in Sterling. Not with respect to the Sterling or the Ashland area, but it was very different. I expressed my opposition to the proposed Valley Commercial Center in Percival. At first glance, development can seem like progress, but not all growth benefits in community in the long run. This project risks changing the character of Percival in ways that cannot be undone. Increased traffic, noise, and congestion will put pressure on our road and infrastructure, affecting the quality of life for residents who choose this area for its peace and livability.

[05:42:10] We also need to consider the impact on local businesses. Large commercial developments often favor big, well-funded developers over small, locally-owned shops. The varied businesses that give our communities identity and keep money circulating locally. Environmental concerns cannot be ignored either.

[05:42:27] Construction and increased activity may harm green spaces, wildlife, and air quality. Once these natural assets are lost, they are incredibly difficult to restore. These are the same natural assets my husband and I were looking for when choosing a home. Most importantly, we should ask, who truly benefits from the project?

[05:42:45] The applicant is not a small local business, but a large, well-resourced development company. If the primary benefits do not clearly serve the residents of Percival, then we must reconsider. Percival deserves thoughtful sustainability development that reflects the needs and values of its residents, not projects that prioritize short-term gain over long-term well-being thank you for taking the time to listen to my concerns thank you very much ma'am okay um thank you all for all of your comments um whether you are remote or here and thank for all of you who've hung in there with

[05:43:19] us and people who have spoken left and all those things i'm going to go to mr kirschner for a motion Thank you, Madam Chair. I move the Board of Supervisors Ford-Legi 20-23-009 Center, am I on the right one? Hold on, I think I opened the wrong application. I'm sorry, here we go, I opened the wrong one. We're not going to move Quantum Park forward again.

[05:43:43] I move the Board of Supervisors, let me get off the mic. I move the Board of Supervisors Ford Leji 2023-0080 Valley Commerce Center ZMAP 2023-0008 and ZMOD 2023-0041 to the May 19, 2026 Board of Supervisors meeting for action.

[05:44:04] Second. Thank you. The motion was made by Mr. Kirshner and seconded by Ms. Almstad. Discussion on the motion, Mr. Kirshner. So thank you, Madam Chair. I came in tonight, I think maybe on the fence, maybe a little against the application. I think a lot of the folks who spoke have persuaded me maybe a little differently.

[05:44:23] I've still undecided, but obviously as we normally do, moving it forward doesn't mean we approve or oppose it. It means we are going through the process and doing as diligent a job as we can. Just a couple of comments. This is a very hard application. What I mean by that it is it's it's hard because obviously it was approved by the planning commission it was opposed by staff it's a project that's put

forward quite frankly by a very responsible applicant um mr coon has 1300 employees in the county he has done more for western loudon county than i think anybody else in terms of preservation so when he comes forward with a project like this

[05:45:00] i think it's with careful eyes also it's it's but this is also opposed by a lot of of the surrounding neighborhoods. On a personal note, I'm very familiar with this area. I go to that commercial lot right across the street all the time. It's heavily used. And the one question I always ask myself when we have an application in front of us, any piece of land that has an application on it like this, it's nothing is going to happen. Nothing is not going to happen.

[05:45:27] Something at some point is going to get developed on this. So when you have an application in front of you, I always ask myself, is this a good application, an okay application? What are the chances of getting a worse application. I always use the example of True North. We had a great application that was turned down by a previous board, then a data center ended up there in an area that probably should not have a data center.

[05:45:45] So, you know, rejecting something outright is a very difficult thing, accepting it sometimes, especially if it's a little bit of a change is hard. So there are a number of questions that have been presented. The water question to me is probably the easiest. I have done the research. There is no, I'm just sorry, I'm gonna have to disagree with staff's numbers.

[05:46:02] You look at anything on the internet, Large lot homes like this are going to use a minimum on average of 1,000 gallons per day. They're just going to, especially if they have sprinkler systems. Even half of them have sprinkler systems in Western Loudoun for their, you know, three-acre lots on a half-acre lawn or whatever it may be.

[05:46:18] It's going to be 1,000. That's about the same as this particular is limited. And that is on limited, that's on unmonitored wells, and that doesn't limit, and this one is limited use. We clearly heard tonight we need flex industrial in the worst way.

[05:46:36] Obviously, we have an employer here, JK, who said they are looking at other places in order to put their long-term storage. That concerns me. In terms of land use, obviously, this is not the place type. This doesn't fit the place type. But there's a lot of, as was pointed out, there's a lot of surrounding commercial area.

[05:46:53] So it really boils down to me in my last 18 seconds is traffic. And I'm going to be looking at this more carefully. I have a number of points here on traffic. I think with the new 690 and 287 interchange, that is going to make this a lot likely a project that will work.

[05:47:09] But clearly, this is a good project. You have a closing. Oh, you're right. Gosh, it's been a long night. It's almost midnight. Thanks. Mr. Crony. Thank you, Chair Randall. So I just want to thank all the residents for coming out tonight. I do support a more diversified economy.

[05:47:26] In fact, I do not support the conversion of Flex Industrial in Eastern Loudoun to Data Center. So I want to put that on the record right here, right now. I support, I know we need more Flex Industrial. We need more Light Industrial.

[05:47:42] And I will not be supporting converting that in Eastern Loudoun County because I know there's a need for it. I do question whether this is the right location in Western Loudoun County. So I heard

residents and I heard the town. It sounds like the town does not support this application.

[05:48:00] And it sounds like most of the surrounding residents around this development do not support this application because they're concerned about their quality of life. They're concerned about, excuse me, they're concerned about traffic. Yeah, I can't think of, I can't even hear myself.

[05:48:18] They're concerned about traffic on Percival Road. It's a narrow road. They're concerned about new drivers coming from schools. They're concerned about increased truck traffic, so I think I plan to go out and take a look at this location and do some research of my own regarding the traffic.

[05:48:38] I am concerned about water. I actually am concerned about water. We are doing a Western Loudoun groundwater monitoring program. I think that's coming to the board on May 5th. We don't know what we don't know about groundwater. We don't know what is going on regarding our water, and we have a lot of wells in Western Loudoun County, and I am concerned about the availability of water for our residents.

[05:49:09] I do think Percival has had droughts in the past, so we know that water is at risk, and I looked at the study that the consultant had done, and they said that they did not agree with the findings from VCC, and they believe there will be impacts that will occur at offsite supply wells.

[05:49:30] So I do have a concern about that. I know the place type is not the correct place type, and I have a concern about creep of industrial in rural Loudoun County. This is an area that was meant for residential, And I'm not convinced that the wells that 39 residential units will have, if it does go by right, would use more water than an industrial complex like this.

[05:50:01] So I will be going out and doing research regarding the traffic, but I am very concerned about the water issue. Thank you. - Thank you. Ms. Bricksman. - Thank you, Madam Chair, and apologies for talking over here with Mr. Kirshner.

[05:50:17] I just had a lot of questions, so it's kind of my fault. But anyway, and it's late, and we're punch drunk almost. So I'm struggling. I did commit to the applicant that I would go out and drive around the area, you know, because I have a lot of questions, obviously, because I keep talking to my neighbor about the layout of the area.

[05:50:42] We do desperately need flex industrial. I empathize with the business owners that have come to speak, truly empathize that we need these spaces in the county, and I'm a little frustrated with the reasons why we're looking at putting a space like this where we're looking at it right now, because I'm a little bit on the fence about whether it belongs here.

[05:51:09] One of the things that's really troubling to me is the traffic issue, and at first I was like oh it'll be okay that's an intersection and maybe like I thought I thought they could come out of here and just get right on Leesburg Pike but that's not an intersection that's an overpass so honestly that might be a that might be a non-starter for me because then then where are they going to go I mean I just don't see and I definitely am not in favor of this idea right so um i'm gonna vote for it to go forward i'm troubled by a lot of the i'm i'm very troubled

[05:51:48] by a lot of issues that this this poses um and and i'm struggling though because i know that that our businesses need this and our small businesses need this and the buildings are actually beautiful they really are uh as they're proffered so uh thank you madam chair thank you so i've been keeping really close

tabs on the speakers tonight and this is almost completely 50-50 tonight. And I am surprised at that, to be honest, but it's almost right down the center, 50-50.

[05:52:17] I don't think there's anyone in this day as Mr. Crony who's not worried about water and worried about groundwater and worried about all those things. I do think getting some facts around those items are very, very, very helpful. For anyone that said that I know that this project is needed, I did say that, but I also said that land use and the appropriate land use is also important to me as well um so i i do know this area i'm going to go back up with councilman rayner and drive around because i know this i know this area pretty well it's interesting because

[05:52:52] sometimes you don't see what would would if if something is neither a reward or a threat to you you you kind of just don't see it sometimes and so the industrial that is in this area i've never really noticed it before and i think i've never really noticed it because i didn't go looking for right it is neither it's it's a scotoma it's neither a threat to me nor it nor is a reward to me so I never noticed it but I'm gonna go up there next time with an eye for it and looking looking for it specifically because in my in my head I don't remember that much industrial around this area so I'm gonna go up

[05:53:26] there and and look for it again I will say that a couple of things I want to clear up Loudoun County is not losing residents in fact Loudoun County is one on a few counties that continues to grow and gain residence. I know that was said. That is not correct. I do not like people then when they have to leave the area to go anywhere else because I want all the businesses to stay here.

[05:53:49] I was kidding but not really kidding. It does disturb me when one part of Loudoun pits themselves against another part of Loudoun. The amazing thing about our county is we have four distinct policy areas. We have an urban that we're building. We have a suburban. We have a transitional policy area.

[05:54:06] and we have a rule, and you can have any kind of living environment you want in Loudoun County, and that doesn't mean any other environment's not great, it just means that's not the environment you want, and so I get kind of concerned when people pit one Loudoun against the other, 'cause we're a pretty fantastic county all the way across the board.

[05:54:25] I am happily going to support the motion to send it on to the meeting, and I will do some reaching out to some residents, and reaching out to Mr. Kuhn, who to be honest has never given me a product that was not a very high level product, not ever.

[05:54:46] If he says he has a product, every time he says I'm gonna do this setback, I'm gonna do this design standard, he actually does it. So I have concerns, I did hear everybody. People are always surprised when I actually do make a phone call to people.

[05:55:03] Don't be surprised if I do that. And we will see where we go on May 19th. Thank you, everyone, for coming out to talk to us this evening. Mr. Kirsten, would you like a closing? I was told to say no, but I'm going to say yes. Because I just want to keep us here a little bit longer.

[05:55:22] No, real quickly. I really appreciate everyone coming out. I think it clearly shows a level of commitment when you do. And regardless of the way this vote goes, I have listened to everybody. I am, again, these are hard, hard applications. You try to do the best you can for the overall community.

[05:55:40] As Chair Randall said, this was split. I do want to point out briefly just a couple of comments. I, too, as Chair Randall said, am always concerned about things like water to suggest. Otherwise, it's just unfair. And actually, that's why I keep bringing up these water numbers on the homes.

[05:55:57] You do your research. You put sprinkler systems on all of those. And peak season, you're going to run 50 to 100,000 gallons a day. I'm just telling you guys, you don't realize that. And then you add pools on top of that and everything else. So that is obviously not one way or the other.

[05:56:13] I just want everybody to know that. Also, one thing I learned tonight and didn't really think about was how commercial all of this is all commercial in here. This is commercial in here. And we have a huge need for Flex Industrial. Whether that sells me at the end of the day, we shall see.

[05:56:30] But it has given me a lot to think about. But regardless of the way this goes, I really want to appreciate everybody coming out. I appreciate the applicant for all the proffers that were given to Wright Farm. I think one of the planning commissioners sent me a whole list of them, of proffers that were asked by Wright Farm or were given by the applicant.

[05:56:47] These are the kind of applicants that we want when we do these things. But I also appreciate what all the members of the community had to say. And I understand their concerns. And we're trying to address all those concerns. Unfortunately, we can't say yes to both. And we can't say no to both. So we will figure out where we are.

[05:57:04] But thank you very much, everybody. And we heard your voice, and we will make the best decisions we can. Thank you, Madam Chair. Thank you. The motion was made by Supervisor Kirchner, seconded by Supervisor Amstead. All in favor, please say aye. Aye. And this was a motion to send it to the next meeting. Any opposed?

[05:57:20] That motion will pass 7-0-2. And with that, we are, thank you, staff. Thank you very much. With that, we are adjourned.



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